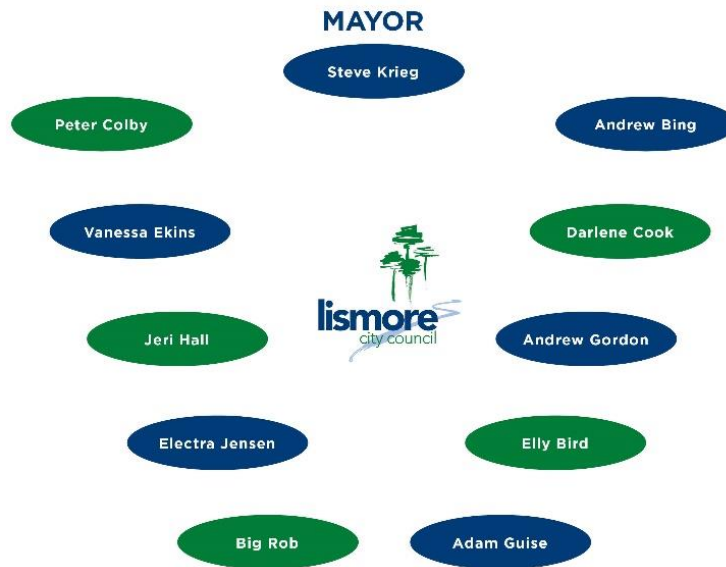




Council

An Ordinary Meeting of Lismore City Council will be held at the Council Chambers on Tuesday, 8 February 2022 at 6pm

Members of Council are requested to attend.

Lismore City Council acknowledges the people of the Bundjalung nation, traditional custodians of the land on which we meet.

Michael Donnelly
General Manager

2 February 2022



ETHICAL DECISION MAKING AND CONFLICTS OF INTEREST

A guiding checklist for councillors, staff and community committees

Ethical decision making

- Is the decision or conduct legal?
- Is it consistent with Government policy, Council's objectives and Code of Conduct?
- What will the outcome be for you, your colleagues, the Council, anyone else?
- Does it raise a conflict of interest?
- Do you stand to gain personally at public expense?
- Can the decision be justified in terms of public interest?
- Would it withstand public scrutiny?

Conflict of interest

A conflict of interest is a clash between private interest and public duty. There are two types of conflict:

- Pecuniary – an interest that you have in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to yourself or another person or entity defined in part 4 of the Lismore City Council Code of Conduct with whom you are associated.
- Non-pecuniary – a private or personal interest that you have that does not amount to a pecuniary interest as defined in the Lismore City Council Code of Conduct. These commonly arise out of family or personal relationships, or out of involvement in sporting, social, religious or other cultural groups and associations, and may include an interest of a financial nature.

The test for conflict of interest

- Is it likely I could be influenced by personal interest in carrying out my public duty?
- Would a fair and reasonable person believe I could be so influenced?
- Conflict of interest is closely tied to the layperson's definition of "corruption" – using public office for private gain.
- Important to consider public perceptions of whether you have a conflict of interest.

Identifying problems

- Do I have private interests affected by a matter I am officially involved in?
- Is my official role one of influence or perceived influence over the matter?
- Do my private interests' conflict with my official role?

Disclosure and participation in meetings

- A Councillor or a member of a Council Committee who has a pecuniary interest in any matter with which the Council is concerned and who is present at a meeting of the Council or Committee at which the matter is being considered must disclose the nature of the interest to the meeting as soon as practicable.
- The Councillor or member must not be present at, or in sight of, the meeting of the Council or Committee:
 - a. at any time during which the matter is being considered or discussed by the Council or Committee, or
 - b. at any time during which the Council or Committee is voting on any question in relation to the matter.

No Knowledge - a person does not breach this clause if the person did not know and could not reasonably be expected to have known that the matter under consideration at the meeting was a matter in which he or she had a pecuniary interest.

Non-pecuniary Interests - Must be disclosed in meetings.

There are a broad range of options available for managing conflicts & the option chosen will depend on an assessment of the circumstances of the matter, the nature of the interest and the significance of the issue being dealt with. Non-pecuniary conflicts of interests must be dealt with in at least one of the following ways:

- It may be appropriate that no action be taken where the potential for conflict is minimal. However, Councillors should consider providing an explanation of why they consider a conflict does not exist.
- Limit involvement if practical (eg. Participate in discussion but not in decision making or vice versa). Care needs to be taken when exercising this option.
- Remove the source of the conflict (eg. Relinquishing or divesting the personal interest that creates the conflict)
- Have no involvement by absenting yourself from and not taking part in any debate or voting on the issue as of the provisions in the Code of Conduct (particularly if you have a significant non-pecuniary interest)

Whilst seeking advice is generally useful, the ultimate decision rests with the person concerned.

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Mayoral Minute(s) and Condolence Motions



Mayoral Minute

Subject Condolence Motion - Steve Goulding

TRIM Record No BP22/53:EF19/25-4

That:

1. Council receive and note the Condolence motion.
2. a letter of condolence is sent to the family from the Mayor.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/53:EF19/25-4

Notice of Motions



Notice of Motion

Councillor Big Rob has given notice of intention to move:

That all archived HUB material be restored.

Councillor Comment

Outcome Sought

Since council is a continuing beast, all pre-election 2021 HUB material should be available so councillors can access it to refresh or to get up to speed on Council matters before having to make decisions or trying to find information relating to areas of interest. Councillors may even stumble across information relating to matters they have not previously considered while browsing content, which may turn out to be very important to them.

Councillors certainly cannot request access to what they don't know exists.

It is unusual that so much information would be archived prior to a new governing body taking its place. It is also extraordinary that the governing body was not consulted prior to such a decision being made.

Section 335 (f) of the *Local Government Act 1993* requires 'that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their functions'.

Forcing councillors to constantly seek out, request and wait lengthy periods of time for information, if it is ever forthcoming, is not timely or the support necessary so that councillors can effectively discharge their functions.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

Governance and Customer Service Manager

The archiving of material in the HUB was done for a number of reasons. The amount of material left in the HUB from the previous term would make navigation for councillors more difficult. Consultation was undertaken with other councils before making this decision. There also may well be information that was archived from the HUB that if released "on mass" would put councillors in a compromising position in terms of conflict of interest, privacy considerations etc.

There was also an amount of confidential information provided to previous councillors (required during their term) via the HUB. It is inappropriate to provide this information to new councillors when it is historical and not required to effectively discharge their functions.

Notice of Motion

Staff are happy to initially restore six months of meeting agendas and minutes. Staff can undertake further research and provide additional information but will require more time to complete the task. Be assured staff will, as we always have done, continue to provide information to councillors in accordance with 335 (f) of the *Local Government Act 1993*.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/48:EF19/25-4

Notice of Motion

Councillor Vanessa Ekins has given notice of intention to move:

That Council make a submission to the proposed Bentley Quarry Development Application outlining the impact on the Kyogle to Lismore road of 100 loaded truck movements a day and the contributions needed to adequately maintain the Lismore section of this road.

Councillor Comment

Outcome Sought

The proposed Bentley Quarry is a significant development and a potential 300,000 tonne/year quarry with a subsequent 100 loaded truck movements/day. 90% will be into the Lismore LGA and have an enormous impact on our road network.

Making a submission to Richmond Valley Council (RVC) highlights the road maintenance issue and provides an opportunity to quantify the cost of maintaining the road and propose RVC and the developers contribute toward that cost.

RVC will receive contributions from the development and Lismore can too. Our ratepayers should not be paying for damage to our road network caused by a heavy impact private business.

Cost of Implementing

Staff time

Funding Source

Not required

Staff Consulted

Director Partnerships Planning & Engagement

Staff Comment

Director Partnerships, Planning and Engagement

Staff have provided Richmond Valley Council with a submission outlining potential impacts of the proposed development on Lismore LGA infrastructure. A formal resolution from Council would reinforce the significance of the issues outlined.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/42:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:	
1.	Council includes the Lismore Lake Precinct in the Community Strategic Plan, Delivery Program, and the Operational Plan as an unfunded line item;
2.	Council enters a License Agreement with Lismore Lake Incorporated, allowing Lismore Lake Incorporated to: a. secure insurance at no cost to Council to cover volunteers; b. undertake bush regeneration work at the Lismore Lake Precinct at no cost to Council according to the previously submitted and approved Lismore Lake Incorporated Landcare bush regeneration plan; c. undertake other works at the Lismore Lake Precinct at no cost to Council subject to the current Bob Gates Memorial Recreation Reserve Plan of Management and staff oversight and final determination; and d. actively seek out and pursue State and Federal untied funding grants at no cost to Council to be considered by Council prior to being accepted or rejected.

Councillor Comment

Outcome Sought

To rectify an issue which has been before Council for a number of years which has prevented volunteers from improving the Lismore Lake Precinct at no cost to Council.

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Nil

Staff Comment

Environmental Strategies Coordinator

The Action Plan for the Lismore Lake Landcare Group is currently in draft form and not yet approved for implementation. Council provided the funding to prepare the draft Action Plan.

Outstanding issues to finalise the plan include an agreement between the Landcare Group and Friends of the Koala with respect to vegetation management activities in the Koala Food Tree Plantation on the site. Once this agreement is reached and documented, the Lismore Lake Landcare Group can commence activities at the site.

It should be noted that there has already been direct costs incurred to prepare the draft Action Plan via a third party bush regeneration contractor and staff time managing the process. There will be further costs incurred in the form of staff time to oversight and manage the group once activities commence.

Acting Director Infrastructure Services

As indicated in the proposed Notice of Motion, the Lismore Lake precinct is subject to a number of planning documents that guide the activities that can be undertaken in that area. All of these documents are quite old and out of date given a number of circumstances that have changed over time. For example:

- The lake, being man-made, is not water tight and “leaks”.
- Council’s ability to manage water levels in the lake for bird habitat and/or other activities has been severely affected by changes to water licensing processes to extract water from the Wilsons River – Council no longer holds a license for this purpose.
- Water quality in the lake is questionable and cannot be relied upon as suitable for activities such as swimming and boating etc.
- The closure of the Lake Pool some time ago has changed the use of the surrounding areas.
- An EOI process conducted in October 2021 for community groups to work with Council to revitalise the Lake Pool area did not yield any responses.
- Increasing activity and future plans for the Lismore Airport will potentially influence decisions around what occurs at the lake and surrounding areas as bird activity in an aviation precinct represents a hazard to aircraft.

As such the existing Plans of Management (POMs) need to be reviewed and updated to reflect current activities, challenges and aspirations at the site and reflect proposed future uses, which are likely to be very different from historical use.

From that perspective any activities at the site, other than vegetation management and regeneration, should be held in abeyance until a master planning exercise for the entire area can be completed and POMs updated to reflect Council and the community’s future vision for the precinct.

In this regard staff have been looking for opportunities for funding of a master planning process for some time, without success. Consideration of including funding for a master planning exercise and review of the POM in the upcoming Delivery Program, Operational Plan and budget processes is recommended.

There will be a cost for this work in the form of staff time to prepare the proposed license, oversee the activities of the group and pursue funding opportunities.

General Manager

Due to the lack of contestability, no current budget and concerns about probity, this is not supported. A report following the recent Expression of Interest for the Lake Precinct is scheduled for the March Council meeting.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/44:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:	
1.	staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and Budget process relating to the possible annual allocation of two (2) waste vouchers linked to each eligible rateable property in the local government area, which are to expire at the end of each financial year if not used;
2.	the future allocation of waste vouchers be done electronically via a Waste Vouchers Database, to be claimed by individuals presenting photo identification including an eligible address when accessing a Council waste facility to dispose of waste using a waste voucher; and
3.	staff record the number of waste vouchers used and the amount of waste being deposited at Council waste facilities in the Waste Vouchers Database, and an annual report be presented to Council outlining these details and the cost of the waste vouchers program.

Councillor Comment

Outcome Sought

To stop the administration heavy process currently being used to distribute waste vouchers, to simplify the process, and to provide greater access and a fairer system to all residents in the local government area.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

General Manager

Points two and three of this notice of motion are entirely operational and therefore not supported.

Manager of Finance

Options will be included the development of the 2022/23 Operational Plan.

The cost of waste vouchers are recouped through the Waste Minimisation Levy, therefore any increase will be reflected in an increased charge to users of this service.

The strategic objective of Council over the past two years has been to develop a reserve that can provide funding to implement recycling services, waste strategy and policy development, other waste reduction programs, waste education services and waste vouchers. The objective of the reserve fund is to minimise the volume of waste going into the land fill and which incurs Government levies (which are not returned fully to Council) and the Waste Facility operational cost.

Notice of Motion

The Waste Minimisation Levy is an externally restricted reserve meaning that any surplus funds can only be spent for the purpose for which they were collected. The purpose of this charge is articulated in the Revenue Policy & Borrowings adopted as part of the Operational Plan. [2021-2022 Revenue Policy & Borrowings](#)

Manager Commercial Services (Resource Recovery)

Currently waste vouchers are available via online application and redemption at either the Lismore Recycling and Resource Recovery Facility or Nimbin Waste Transfer Facility. This system is completely automated, and only requires manual intervention from staff if an issue arises with a specific application being processed. Vouchers are made available electronically and on request without staff resources required, and to minimise the cost and volume of resource consumption (paper) from printing hard copy voucher that may not be redeemed. The system was developed to minimise administration required by Council staff and the associated costs.

FY21.22 operational plan includes a total 5,000 vouchers at an approximate value of \$61 per voucher, and total budget allowance of \$305,400. The cost of these vouchers is covered by the Waste Minimisation Levy, which is generated from some 18,873 rateable properties in the Lismore LGA.

Under the current voucher arrangements 1,250 vouchers were available for Q1 FY21.22. 477 vouchers were redeemed over this period. This is approx. 38% redemption rate of the vouchers available. Unused vouchers remain available for use for the remainder of the FY, and Council has since advertised that the unused vouchers are available in addition to the usual monthly rate of availability. There is no evidence to suggest that supply within the community is not being met by the number of vouchers being made available online each month.

An alternative system for allocation and distribution of waste vouchers would be possible to create, and an estimated cost and timeframe for the necessary software programming can be obtained as desired. Any expected possible improvement / cost benefit from the current online request system would need to be investigated and reported back to Council to ensure transparency.

Alternate arrangements for voucher distribution with variations to the number and value of vouchers are possible, but need to be funded and provided for in Council's adopted budget. The difference in cost for providing those vouchers (increased or reduced) would be distributed across the Waste Minimisation rate base. The Waste Minimisation rate base is all rateable properties of the LGA other than those paying the Nimbin Transfer Station annual charge (approx. 330 properties).

The table below shows the comparative position from the current operational plan if the:

1. Current voucher distribution arrangement remains
2. 5,000 voucher limit is increased to 10,000 vouchers
3. 5,000 voucher limit is removed and all eligible properties receive 1 voucher, AND
4. 5,000 voucher limit is removed and all eligible properties receive 2 vouchers

	Voucher Arrangement	Vouchers Available	Cost to Provide Vouchers	Cost Variation to Provide Vouchers	Rate Increase (per property)
1	Current resolution: 1 voucher per eligible property capped at 5,000 vouchers PA	5,000	\$ 305,400.00	\$ -	\$ -
2	One voucher per eligible rateable property, capped at 10,000 vouchers PA	10,000	\$ 610,800.00	\$ 305,400.00	\$ 16.18
3	One voucher per eligible rateable property, PA	18,873	\$1,152,762.84	\$ 847,362.84	\$ 44.90
4	Two vouchers per eligible rateable property, PA	37,746	\$2,305,525.68	\$2,000,125.68	\$105.98

In extension of the above scenarios, additional voucher arrangements are possible and able to be modelled as desired including variation to the nominal voucher value.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/45:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:

1. Council takes no further action in relation to its decision of 12 October 2021 (Item BP21/810) relating to Browns Creek.
2. Council be provided as part of the 2022/23 budget and Operational Plan process a proposal and costings for review of the Urban Stormwater Management Plan, including the need for and priority of the naturalisation of Browns Creek project.

Councillor Comment

Outcome Sought

Council is trying to recover from a very difficult financial position. Spending considerable ratepayer funds in an area prone to regular flooding is not the best use of resources.

With Council's current position being not to proceed with the Lismore Park project, excessive spending in the Lismore Park area should be restricted to more appropriate and essential items.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

Acting Director Infrastructure Services

At the meeting of 12 October 2021 Council resolved:

RESOLVED that Council:

1. affirms its commitment and high prioritisation of the naturalisation of Browns Creek as Stage 1 of Lismore Park redevelopment and that allocated funds are retained for this purpose in any review of the Urban Stormwater Management Plan (USMP).
2. provides a possible timeline for the project, design options and breakdown of construction and maintenance costs at a Council workshop this financial year.

The naturalisation of Browns Creek is a project included in Council's Urban Stormwater Management Plan (USMP). All projects in the USMP are funded from the Urban Stormwater Management Charge collected from all rateable properties in the urban area serviced by a stormwater drainage system.

The USMP is the vehicle which Council has used to identify how it will spend these funds in accordance with the purpose for which they were collected. The funds may only be spent on improvements to the urban stormwater drainage network and cannot be spent or diverted to other projects that do not meet the criteria.

Notice of Motion

The purpose of the project is to convert the section of the existing concrete channel that runs through Lismore Park from Brewster Street to Uralba Street to a more natural watercourse to improve environmental outcomes and better aesthetics and integration with the surrounding park.

The project was also identified as a key component of the Lismore Parklands project for a number of reasons including:

- design of the project would integrate with the overall masterplan for Lismore Parklands,
- there were opportunities for the design of the project to provide interactive play spaces for park users during dry weather,
- funding for the project could be used as a co-contribution towards grant applications for the broader Lismore Parklands project.

As part of the overall design of the Lismore Parklands project, a design for the naturalisation of Browns Creek was progressed. Preliminary estimates for the costs of naturalising the full section of Browns Creek were approx. \$2.3 million. The available budget from the USMP is approx. \$1.2 million.

Given the budget challenge and that Council has not further progressed the Lismore Parklands project, no further work has been undertaken on the Browns Creek project for some time.

The USMP is now five years into a 10 year works program. It is due for a review given the status of this project in particular. Staff are preparing a proposal and funding submission for a review of the USMP in the 2022/23 Operational Plan and budget for consideration by Council. This would be the mechanism to review the need and/or priority of the naturalisation of Browns Creek project should that be the intention of Council.

Any decision not to proceed with the project would result in additional funds becoming available to implement existing or consider additional projects for inclusion in the current/future USMP.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/46:EF19/25-4

Notice of Motion

Councillor Andrew Gordon has given notice of intention to move:

That Council amend the airport fees to:

1. annual subscriptions as prior to landing fee changes
2. current fee structure remain for the weekend/recreational pilots

Councillor Comment

Outcome Sought

A fair and reasonable fee structure for aircraft owners and operators.

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Nil

Staff Comment

Acting Manager Commercial Services

Changes to Airport Fees and Charges must comply with the IP&R requirements – adjustments to Fees and Charges will trigger a process for changes under the *Local Government Act 1993* prior to implementation. The changes proposed in the NOM will also have impact on anticipated airport revenue, triggering necessary budgetary adjustments.

Manager Finance

To amend the adopted Fees & Charges Council is required to place the proposed revised fees and charges on public display for 28 days and invite public submissions, after which it goes back to Council for consideration.

Councillors are aware of the difficult financial position that Lismore City Council is currently in and that Council needs to take immediate steps to ensure that it can continue to meet its commitments to the community and to address its large infrastructure moving forward.

As has been presented to Council an integral part of the recovery strategy for Council is to reduce the subsidy paid by ratepayers to the large number of non-performing assets Council owns. This needs to be undertaken in context of the asset in question and the capacity of the market to pay.

From a financial perspective this is not supported.

General Manager

Any unfunded change to the current budgeted fee structure is not supported.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/41:EF19/25-4

Lismore City Council

Meeting held 8 February 2022 - Airport Fees

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:

1. Council take no further action in relation to its decision of 13 July 2021 (Item BP21/567) to hand back all Council owned land at the North Lismore Plateau to the traditional owners;
2. staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and budget process to investigate options for Council to realise a financial return on its R1 zoned land at the North Lismore Plateau;
3. the information above include an analysis of Council's obligations and associated costs to rehabilitate the quarry having regard to the North Lismore Quarry End Use Plan 2012, the North Lismore Quarry Rehabilitation Plan 2012, with a particular focus on the E2 and E3 zoned land; and
4. Council provide in principle support to transfer ownership of the E2 and E3 zoned land owned by Council at the North Lismore Plateau to the traditional owners and prepare budget estimates and supporting information to allow further consideration of this matter in the upcoming Operational Plan and budget process.

Councillor Comment

Outcome Sought

Considering Council's current financial position, together with various complicated compliance concerns, the outcome sought will ensure Council does not try to prematurely dispose of land prior to exploring various options and issues, including examining any risks, benefits, costs and potential for profit associated with each option and issue. This will allow Council to make an informed decision about how it should or should not proceed.

A rigorous analysis process, followed by the preparation of a business case, should always be undertaken prior to Council making decisions to develop, sell or otherwise dispose of any Council owned land. Moving forward slowly should also considerably reduce the risk of a substantial financial burden being imposed on ratepayers.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Manager Assets

Staff Comment

Manager Assets

At the meeting of 13 July 2021 Council resolved:

RESOLVED that:

1. Council owned land on the North Lismore Plateau be handed back to the traditional owners.
2. A briefing is prepared for Councillors to examine the relevant processes, possible timeframes and budgetary impacts.

3. An inclusive, transparent consultative process is identified in order to engage all relevant stakeholders to participate in the process.

A briefing was subsequently held on 2 November 2021 to update Council on progress and the likely process required to implement the decision.

A key part of any proposed handover process is the involvement of NTS Corp as a representative of the traditional owners/ Indigenous community. NTS Corp is fully occupied with the Native Title proceedings currently in progress in the Federal Court and has limited capacity for involvement until those proceedings are complete. Whilst the consent determination is scheduled to occur November this year, NTS Corp has advised it will seek instructions at their next Widjabul Wia-bal claim group meeting (scheduled for April 2022) so further advice can be provided to Council.

In regard to the proposed motion from Cr Rob, the requested information identified in points 2 and 3 will take considerable staff resources to compile. There is no budget available this financial year, but Council can approve it as part of the 2022/23 budget and operational plan process.

In regard to point 4, the process to be used would be similar to that contemplated to implement the decision of 13 July 2021. As outlined above, the involvement of NTS Corp will be vital to any process and it is not available at this time. Whilst every effort will be made to assemble suitable information for the budget process, until staff have an opportunity for meaningful discussions with NTS Corp, it will be difficult to get a good understanding of their recommendations on the process required and potential costs involved.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/47:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That since the Richmond River Historical Society is an incorporated association and not a committee of Council, Council no longer nominates a Councillor to sit on the Management Committee of that independent organisation.

Councillor Comment

Outcome Sought

Nominating a Councillor to sit on the committee of an independent organisation required to select members according to its constitution, which Council does not control, is quite peculiar. Not nominating anyone allows all Councillors to apply for a position on the committee directly through the independent organisation. No Councillor should 'own' a position on any committee which Council is in any way involved.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/49:EF19/25-4

Notice of Motion

Councillor Steve Krieg has given notice of intention to move:



That councillors' fees be reverted back to the pre-July 2021 rate and reassess in February 2023 to coincide with future budget planning.

Councillor Comment

Outcome Sought

A token of goodwill to the ratepayers of LCC that as a Council we are attempting to achieve financial sustainability for the city, and until we start to achieve some positive outcomes, councillors should not be on the maximum pay scale allowable.

Cost of Implementing

Nil

Funding Source

Not required

Staff Consulted

Nil

Staff Comment

Manager of Finance

If Council reverts back to the fees paid to councillors and the Mayor pre-July 1 2021, there would be a \$66,095 savings to Council and positive cash impact.

Note - Council did not apply the maximum fee increase allowed under the Local Government Remuneration Tribunal in the financial year 2020/21.

Fee Type	2021*		2022		Savings
	Per Councillor	Total	Per Councillor	Total	
Mayoral Fees	\$ 45,400	\$ 45,400	\$ 61,280	\$ 61,280	\$ 15,880
Councillor Fees (11 Councillors)	\$ 20,245	\$ 222,695	\$ 24,810	\$ 272,910	\$ 50,215
		\$ 268,095		\$ 334,190	\$ 66,095

* Council resolution 140/20 - Council did not adopt the maximum fees in 2021

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/43:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That:

1. Council takes no further action in relation to its decision of 9 November 2021 (Item BP21/779) to reclassify and transfer Council owned community land at 9 Sibley Street, Nimbin (Peace Park - Lot 1 DP 305607) to Nimbin Neighbourhood & Information Centre;
2. staff prepare suitable information and budget estimates for consideration in the upcoming Operational Plan and budget process to prepare a Plan of Management relating to the Peace Park, Nimbin area; and
3. staff consider leasing, licensing and other estate options in relation to the request from the Nimbin Neighbourhood & Information Centre and prepare a report to be brought back to Council for consideration.

Councillor Comment

Outcome Sought

To consider various options and the legalities of giving away community land prior to making a decision to give away community land.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

Acting Strategic Planning Coordinator

As outlined in the report to Council in November 2021, the Nimbin community through the Nimbin Neighborhood & Information Centre (NNIC) paid for the purchase of what is now the Nimbin Community Centre (81 Cullen St) and Peace Park (9 Sibley St). This was done through an initial 50% up front contribution in 1998 and the repayment of a loan to Council for the remainder that was fulfilled in 2004/05.

In 2009 the Nimbin Community Centre Inc. advised Council they would not exercise their option to become owners of Peace Park because of ongoing public liability costs associated with the proposed development of the site as a skate park. At that time they requested the land be retained by Council and reclassified as 'Community' land.

The subsequent purchase of a dilapidated house at 7 Sibley Street by NNIC in 2012 was again achieved through community fundraising efforts and was seen as a desirable outcome for the Nimbin community because of its strategic location adjacent to the skatepark. A master plan was prepared to develop the site as a Sustainable Living Hub to share skills and promote all aspects of affordable housing. This process involved extensive community input and consultation including Lismore City Council advising that in order to address access and parking requirements, the master plan should include the adjoining land at Peace Park.

Notice of Motion

When NNIC approached Council last year about reclassification and transferring part of Peace Park, the option of preparing a Plan of Management and an Occupation Agreement for the use of part of the site for the Sustainable Living Hub project was considered as an option in the report to Council in November 2021 but was not supported by staff. The reasons being that it creates uncertainty for both parties and comes with significant State Government oversight, including a requirement for Ministerial approval for any lease exceeding 21 years. In accordance with Councils previous resolution a planning proposal for the reclassification of approximately 1510m² of Peace Park has been prepared. It was intended to report this matter back to Council in March 2022.

There will be costs associated with the preparation of information requested in Items 2 and 3 of the proposed Notice of Motion in the form of staff time spent preparing the information.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/50:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That membership to the Aboriginal Advisory Group, Access and Inclusion Advisory Group, Nimbin Advisory Group, and the Koala Implementation Group be amended to include 'two (2) or more councillors'.

Councillor Comment

Outcome Sought

Increasing Councillor membership to the various groups will provide greater access to Councillors to those directly involved with the groups and the wider community, and it will result in a much better informed Council.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

Environmental Strategies Coordinator

In response to Item 2 - Koala Implementation Group (KIG). The operation of the KIG has focuses on the provision of specialist technical advice to Council in the delivery of the management actions in the CKPoM, including habitat restoration, threat mitigation, population monitoring and research projects. The membership of the group is made up of qualified and experienced personnel in koala ecology and the implementation of these types of projects. The KIG also facilitates development of strong working relationships between organisations and individuals involved in koala conservation.

The KIG does not provide input into development assessments or make decisions on budget allocations. The Terms of Reference for the Koala Implementation Group (KIG) are currently being reviewed to clearly reflect these functions. The draft Terms of Reference are due to be discussed at the next scheduled meeting of the KIG on the 16 February 2022.

The NSW Government is currently commencing preparation of a regional strategy for koala management in the Northern Rivers, which is likely to also involve a technical advisory group of some kind. As this may create a duplication of function and resources with individual Council advisory groups, it is likely that the need for, and operation of, the KIG will be reviewed again at that time.

General Manager

Consultation with members of these groups would be required before a change to the Terms of Reference.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/60:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

That the Terms of Reference for the Business Activation Working Group be amended so that:

1. section 4.2 stipulates the Group will include a maximum of eleven (11) members in total, with an additional position described as '1 Councillor as elected by Council' to be added to the membership;
2. the words 'and chair' be removed from section 5.2; and
3. the position described as '1 Elected Councillor as nominated by the Mayor' in section 4.2 be changed to read '1 elected Councillor as nominated by the Mayor (Chairperson)'.

Councillor Comment

Outcome Sought

Increasing Councillor membership and control of the Business Activation Working Group is essential, since the Group deals with hundreds of thousands of dollars of business ratepayer funds. Businesses are not very happy with how funds have been spent in the past, so adding an extra Councillor will result in the business community having greater access to Councillors. The change from ten to eleven members will also correct the anomaly of having an even number of members in such a group.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

Manager Economic Development

In response to Item 3 – Business Activation Terms of Reference. The amendments to the Business Activation Terms of Reference can be made as follows:

- 4.2 The Group will include a maximum of 11 members in total, including:
- 4 business and industry sector representatives (as outlined above)
 - Lismore City Council Mayor (Chairperson) or delegate
 - 1 Elected Councillor as nominated by Council
 - 1 Lismore Chamber of Commerce and Industry representative
 - 1 Nimbin Chamber of Commerce representative
 - 1 Southern Cross University representative across innovation, entrepreneurship and education fields
 - CBD Activation Officer, Lismore City Council Economic Development Team
 - Lismore City Council General Manager or delegate.

- 5.2 As the Project Manager of the Business Activation Plan and part of the Lismore City Council Economic Development Team, the CBD Activation Officer will coordinate meetings, and ensure key reporting including:
- Quarterly updates including (but not limited to) outcomes, expenditure and variations, learnings and opportunities, presented for the Working Group to provide expert insights and feedback
 - Six-monthly snapshots shared with business and community stakeholders
 - Alignment with the Economic Development Strategy and Council's Integrated Planning and Reporting Framework, with annual reports to Council
 - Timely updates about relevant news and opportunities through the Economic Development Team's monthly Business E-newsletter and Council's Local Matters publication.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/61:EF19/25-4

Notice of Motion

Councillor Big Rob has given notice of intention to move:

Council prepare Terms of Reference to establish an 'Asset, Infrastructure & Finance Committee' to commence in July 2022, with key roles to identify and consider solutions to better maintain and improve existing assets, to identify and consider suitable State and Federal grant funding opportunities, and to regularly review how Council is progressing.

Councillor Comment

Outcome Sought

Since one of Council's biggest issues involves the inability to adequately maintain and improve existing assets, it is crucially important that Councillors become more engaged to increase their understanding of just how big the issue is, and to determine how they can better contribute to fixing the issue.

Cost of Implementing

Nil

Funding Source

Nil

Staff Consulted

Nil

Staff Comment

Acting Director Infrastructure Services

In relation to the proposed Notice of Motion, the stated key roles of the proposed committee are already delivered in other ways. For example, the regular review of how Council is progressing on all of its activities and projects is delivered through the quarterly progress report on the Operational Plan and the quarterly budget review statements.

The vehicle to have input to Council's strategies and programs for improving the maintenance and renewal of infrastructure are the Asset Management Policy, Asset Management Strategy and Asset Management Plans for the relevant asset classes. Council adopted a revised policy in mid 2021 and revision of the strategy and individual asset management plans is currently in progress. These are due to be adopted by Council prior to 30 June 2022, with the exception of the water and wastewater AMPs which will be ready in the second half of 2022. The content of these plans will be subject of input from Councillors via a briefing or workshop prior to finalisation and report to Council for adoption, and implementation at an operational level by Council staff.

Grant funding programs are regularly reviewed by staff for funding opportunities with a focus on nominating projects that, if successful, will assist in reducing Council's infrastructure backlog. Specific examples of this include the Fixing Country Bridges Program where Council has secured just over \$9 million of grant funding to supplement approx. \$1.5 million of Council funding and replace 10 old timber bridges with new concrete and/or steel structures. Council has been very successful in recent years securing significant funds for road related and other projects and continues to explore these opportunities. It needs to be understood that grant programs usually have criteria that need to be addressed from a technical perspective, and that intervention by a committee in the process for annual or recurring grant programs may result in unintended outcomes.

Notice of Motion

Should Council determine to proceed with the proposed committee, there will be a cost involved with servicing the committee in the form of staff time to prepare agendas, reports and minutes and to attend and service the committee, and those costs are not able to be funded in the current adopted budget without impacting the delivery of current projects by the staff that would need to be involved.

Manager Finance

Council is subject to a number reporting requirements that are set out in the legislation or prescribed by the Office of Local Government.

The requirements around reporting have the objective to inform Councillors and the public as to the progress of Council both financially and operationally as measured against the strategic objectives set by Council in the Delivery Program or Operational Plan.

Required	Objective	Delivery	Guided By
Quarterly Budget Review Statement	Financial Performance	3 Months	IP&R framework
Delivery Program Progress report	Operational Performance	3 Months	IP&R framework
Finance Report	Financial Performance and Operational Risk	Monthly	Management Reporting
Investment Report	Financial Performance	Monthly	Legislation
Audit Risk and Improvement Committee	Risk management framework and internal audit function to help improve overall organisation performance and operations. 2 Councillors sit on Committee		
			Charter
Financial Reports	Financial Performance	12 Months	IP&R framework
Annual Report	Operational Performance	12 Months	Legislation
Councillor Briefing	Inform Councillors on particular matters as required		Councillors
Long Term Financial Plan	Financial Performance	12 Months	IP&R framework
Asset Management Plan	Outlines Councils Asset Strategy	12 Months	IP&R framework
Workforce Resource Strategy	Outlines Councils Workforce Strategy	12 Months	IP&R framework

Cost to Council and return on investment

Given that Council is already heavily regulated in relation to its operations and its reporting requirements, Council would need to assess the cost benefit of imposing additional reporting requirements on staff when the information is already provided to Councillors in various forms.

In addition the proposed Committee would involve additional costs to Council depending:

- on when the Committee is to meet, if after hours then it would require additional staff time
- the scope of reporting required, additional time required to collate and submit reports.

General Manager

This is not supported due to the legislative requirements and ARIC which are already in place overseeing these issues. It is an operational matter to seek out funding opportunities.

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/62:EF19/25-4

Questions with Notice



Questions with Notice

Councillor Big Rob has put the following question with notice:

Can the General Manager please explain why responses to Councillor requests for access to information relating to the establishment and purpose of the Special Business Rate Variation Levy (SBRVL) are either being ignored or only a summary, as opposed to access to documents, is being provided, seemingly in conflict with section 335(f) of the *Local Government Act 1993*, which requires 'that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their functions'?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/57:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Can the General Manager please provide Council with the original estimated cost of the recent South Lismore Sewage Treatment Plant (STP) upgrade, details relating to how the upgrade was funded, a summary outlining any problems identified since the upgrade, the estimated cost of rectifying any problems identified since the upgrade, details relating to how any rectification work has been or will be funded, and an indication of when the South Lismore STP will be complete and fully operational?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/58:EF19/25-4

Questions with Notice

Councillor Big Rob has put the following question with notice:

Can the General Manager please explain why responses to councillor requests for cost breakdowns relating to Council expenditure are not being provided in detail sufficient to identify each line item included in any higher level cost figure totals, considering the widespread use of computers, accounting software, and accounting record requirements, as provided for in section 412 of the *Local Government Act 1993*, which requires Council to keep such accounting records as are necessary to correctly record and explain its financial transactions and its financial position?

Attachment/s

There are no attachments for this report.

TRIM Record No: BP22/59:EF19/25-4

Matters Arising



Matters Arising

Subject	Social Justice and Crime Prevention Committee
TRIM Record No	BP22/37:EF13/463-4
Prepared by	Governance & Customer Service Manager
Reason	
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

At Council's meeting of 11 January 2022 it was recommended that the Social Justice and Crime Prevention Committee be discontinued. At that time Council requested more information on the committee this report provides that information.

Recommendation

That the Social Justice and Crime Prevention Committee be discontinued.

Background

Council resolved at its ordinary meeting of 11 January 2022 that:

5. *a decision on the discontinuation of the Social Justice and Crime Prevention Committee is deferred to the February meeting to allow a more detailed report to be prepared for consideration including secretariat and staffing considerations; and that as part of that report feedback is sought from previous committee members as to the value of continuing the committee.*

The Social Justice and Crime Prevention Committee was established in accordance with the following resolution that Council made at its meeting on 10 April 2018.

RESOLVED that:

1. *Council bring together a group of key community stakeholders to form a Social Justice and Crime Prevention Committee aimed at identifying the needs and demand in our region for:*
 - A Drug Court
 - A further Residential Rehabilitation Centre
 - A Youth and Adult Koori Court; and
 - Justice Reinvestment Initiatives
2. *Council note the work being undertaken by Dubbo Regional Council in forming a similar committee to identify and address social problems.*
3. *That the Committee reports their findings back to Council by April 2019.*

The Committee was established, held a number of meetings and provided a report back to Council at its meeting on 11 June 2019. The following resolution was made at the same meeting.

RESOLVED that :

1. Council receive the report from the Social Justice and Crime Prevention Committee;
2. Council support the recommendations;
3. Council include Lismore Justice Precinct initiatives in its City Deals application to both State and Federal Governments;
4. Council support the continuation of the Committee under the Economic Development Portfolio of Council.

A copy of the findings and recommendations of the committee have been included as an attachment to this report.

A further meeting of the Social Justice and Crime Prevention Committee was held 21 August 2019 on the agenda of that meeting was an item regarding the future of the committee. Unfortunately due to time restraints this was moved to the next meeting. A record of any meetings beyond that date cannot be found.

Contact was made with previous committee members and feedback requested. The following feedback was received:

Response 1

It was a powerful committee with dedicated representatives that worked hard in the justice sector. Each meeting started with a talk from someone with lived experience of the justice system (we all ended up crying) but very powerful to hear first hand how the system worked or didn't work for them and suggestions for better processes. The meetings I attended focused on keeping young people and Aboriginal people out of the courts and proposed alternative sentencing mechanisms. The stakeholders in the room spoke about the work they were doing in their sector which was a great interagency opportunity and many useful links were formed.

In my view, the success of the committee was due entirely to Cllr Lloyd's networks and her drive to achieve an on ground outcome: drug court and koori court. We are still waiting for these premises to be acquired and established but this is worth lobbying for.

Response 2

In my view, this initiative of Lismore Council was not only groundbreaking but also incredibly vital. Facing these issues front on, allows stake holders to draw together resources, make contacts, and contribute to a productive and important conversation that effects families in our region, has been a pleasure to be a party to.

I highly commend Council in this initiative and think that any extension of the good work already undertaken, would be a worthwhile pursuit.

Thank you for the chance to be involved, and particularly to Councillor Lloyd for her vision and follow-through.

Response 3

My involvement only lasted for a couple of meetings before I moved on. My colleague remained involved after my transfer to Tamworth.

Response 4

The Social Justice Committee was the brain child of Councillor Lloyd with the intention of putting a report together for the ICE enquiry that was being held by the Federal Government.

It was not a part of Council's normal practice but did use Council's ability to bring people from all areas of the community and those who work in this space together, many for the first time.

That was the first thing that hit me that many of these people who's work and lives are so intertwined had never actually gotten together to see if they could work together to tackle some of these issues that effect so many in the community.

This change in attitudes from these people working collaboratively and listening to what each other did and how they went about things was amazing.

The report was accepted by the commission and many of its recommendations making their way into the final report including the setting up of "Justice Precincts" and "Koori Courts". I think Parramatta is to have the first of these set up if it hasn't already done so.

I know that the State Government have been lobbied for one to be set up in Lismore as this would bring great infrastructure investment and growth in the legal services industries in the Lismore area. This could be the most obvious effect from Council's work in this area.

The other upside is with such an area in Lismore we could see better outcomes for the community with more people being supported and less people in the court and prison system which would be less of a drain on the NSW taxpayers.

It takes less money to keep people out of prison and supported in their need to change than it does to keep them in prison with little chance of change.

It was never part of Council's core business but proved that Council is sometimes the best organisation to bring people together to create an environment that will benefit the whole community.

At the time of writing this report no other feedback had been received. If any further feedback is received it will be provided separately to councillors.

An enquiry with Dubbo Regional Council has shown that its committee has not been active since 2018.

Alternate resolution

That the Social Justice and Crime Prevention Committee be continued with a purpose of

Comments

Other staff comments

Manager Economic Development

At the time of the establishment of the Social Justice and Crime Prevention Committee, Economic Development was not made aware of requirements for the unit to provide support. Economic Development currently does not have resources available to service this Committee.

Public consultation

Not required

Conclusion

The Committee was established with a clear purpose and outcome. If Council resolve to continue or revive the Social Justice & Crime Prevention Committee it would need to establish terms of reference, purpose and membership. There would also be a cost implication with staff time and input required in re-establishing the committee, providing secretariat for the committee and hosting the meetings, these costs have not been budgeted for. Response from previous members was not overwhelming with 4 responses being received from the 12 members that were contacted. Dubbo Regional Council advised that its committee has not been active since 2018.

Attachment/s

1. [Download](#) The 2019 Lismore City Council Social Justice and Crime Prevention Committee Findings and Recommendations

Lismore City Council Social Justice and Crime Prevention Committee

Findings & Recommendations

May 2019

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The Resolution of Lismore City Council

1. On 10 April 2018, Lismore City Council resolved that Council bring together a group of key community stakeholders to form a Social Justice & Crime Prevention Committee aimed at identifying the needs and demand in our region for:
 - **A Drug Court**
 - **A further Residential Rehabilitation Centre**
 - **A Youth and Adult Koori Court**
 - **Justice Reinvestment Initiatives**
2. Council note the work being undertaken by Dubbo Regional Council in forming a similar committee to identify and address social problems;
3. That the Committee reports their findings back to Council by April 2019.

The Committee Members

Councillor Eddie Lloyd, Chair
Councillor Darlene Cook
Councillor Vanessa Ekins
Councillor Adam Guise
Councillor Neil Marks
Mayor Isaac Smith
Office of the Director Public Prosecutions – Lismore
Department of Community Corrections – Lismore
Aboriginal Legal Service - Lismore
Legal Aid – Lismore
Lismore City Council Aboriginal Advisory Group
The Buttery Residential Rehabilitation Centre
Women Up North Housing
Namatjira Haven Ltd
Rekindling the Spirit
Jordan Keogh
3VC Tracey Kristiansen
Sophie Anderson – Barrister – Commercial Bank Chambers
Ben Cochrane – Barrister – Commercial Bank Chambers
Kylie-Anderson Clarke – Criminal Defence Lawyer

The Committee Meetings

- 13 June 2018;
- 25 July 2018;
- 26 September 2018;
- 21 November 2018;
- 11 April 2019.

Foreword

Dr Alex Wodak - President, Australian Drug Law Reform Foundation

"It is hard to find a family in Australia not touched by at least one member having serious alcohol and drug problems. Yet people who want to overcome their problems very often find that obtaining professional help is extremely difficult or even impossible. Services in rural and remote areas are even harder to find. People with problems due to illicit drugs face even more severe stigma and consequences arising from illegality of drugs. Like most other countries, for almost a century Australia has relied heavily on law enforcement to try to keep illicit drugs under control. Yet in that time, the drug market has grown considerably and also become much more dangerous. During the last half-century deaths, disease, crime, corruption and violence related to drugs or drug policy have increased considerably.

There is a growing acknowledgement that the War on Drugs approach, notwithstanding its political benefits for its advocates, has been an abject failure. Mr Tony Abbott, the (then) Prime Minister, said on 29 April 2014 that the war on drugs was not a war that could be won but is a war that could be lost. On 14 March 2019, the United Nations Chief Executive Board comprising the leaders of 31 major UN organisations voted unanimously to encourage countries to consider the decriminalisation of drugs. Several retired but also serving Police Commissioners in Australia have commented publicly that this country cannot arrest or imprison its way out of its drug problems.

The threshold question for drug policy is whether to adopt a predominantly law enforcement or a predominantly health & social response to illicit drugs. Australian governments have allocated 66% of expenditure in response to illicit drugs to law enforcement attempts to reduce drug supply with 22% to drug treatment, 9% to prevention and only 2% to harm reduction. While identifying benefits from customs, police, courts and prison is a challenge, severe collateral damage is self-evident. In contrast, treatment and harm reduction produce obvious benefits and little unintended negative consequences.

Many governments around the world have started changing their framework. Early results are encouraging. They have taken the threshold step of redefining illicit drugs as a predominantly health and social issue. Drug treatment is being expanded and improved towards the level of other health services. In a number of countries, penalties for possession of personal quantities of illicit drugs have been scrapped. Some countries have started to regulate as much of the drug market as they can with legal needle and syringe programs, drug consumption rooms, Heroin Assisted Treatment, pill testing and taxed & regulated recreational cannabis.

It is encouraging that the Lismore City Council Social Justice and Crime Prevention Committee is following in this style. Australia was once a world leader in drug policy but has become a laggard. Drug law reform in federal countries has its own

complexities. This makes grass roots local reform all the more attractive. I hope their proposals will be welcomed and funded. People with drug problems are our sons and daughters, our sisters and brothers, and our mothers and fathers. They are us. We have tried punishing them for decades with miserable results and vast expense. It is time we tried helping them to lead normal and productive lives."

Dr Alex Wodak

*President, Australian Drug Law Reform Foundation
Emeritus Consultant, Alcohol and Drug Service, St Vincent's Hospital
Visiting Fellow, Kirby Institute, UNSW
Director, Australia21*

“Not every story has a happy ending, ... but the discoveries of science, the teachings of the heart, and the revelations of the soul all assure us that no human being is ever beyond redemption. The possibility of renewal exists so long as life exists. How to support that possibility in others and in ourselves is the ultimate question.”

— Gabor Maté, *In the Realm of Hungry Ghosts: Close Encounters with Addiction*

Jordan's Story

My name is Jordan and I'm an addict. The first time I said these words I didn't really know what they meant but I knew I had a problem with alcohol and drugs and that I needed help. I was twenty-five years old and had just crashed a car in a blackout from drinking and taking drugs. One of my passengers tragically died in the backseat of my car that night. Broken as a man from what I had done, I admitted myself into a long-term rehab to try to address my issues and discover how and why my drinking progressed to a point that I lost total control over the amount I took and decided to drive in that state.

Aside from learning that I had been irresponsible, selfish and acting the fool, which I was, I also learned that I had a serious health condition and that I wasn't a bad person trying to be good, rather I was a sick person trying to get well. The initial relief I felt hearing this statement was quickly silenced by the voice in my head that said "that's just an easy excuse to justify your behaviour and is a cop out for you to find an easy way out". I was torn with the idea I had a legitimate health issue. I had to discover whether what I was hearing was the truth or just some platitudes by a group of sober drunks trying to justify their behaviour and avoid taking ownership of their actions.

I was stunned to learn I was a ticking time bomb from the time I was young to become addicted to alcohol and drugs and in the light of my experience it was so sad to revisit my past and see the progression of my addiction play out just like the science said it would. It was like watching a tragic movie except it was real life, my life that was on the reel. Today I'm very thankful to be nine years sober and know personally that substance use disorder is a deadly and tragic disease that has the potential to ruin lives just like it did with me.

I'm very passionate about trying to help improve the current model of treatment and create more and more loving places of care for people to get well and heal from this deadly health condition. I feel very grateful to be asked to contribute a few words towards this amazing report and I hope and pray that we can help someone, somewhere who is still suffering, unaware of their problem and the possible solutions.

Warmest regards
Jordan K.

Executive Summary and Recommendations

Lismore is the central hub for legal services in the Northern Rivers and North Coast of NSW. The Lismore legal precinct includes the Local and Children's court but also includes the District and Supreme Courts which service clients from the Richmond Valley, Kyogle, Byron, Ballina and Tweed Shire Local Government Areas.

Over the course of 2018, the Lismore City Council Social Justice and Crime Prevention Committee members shared their personal and professional experiences of the demands, gaps and challenges faced in the drug and alcohol, justice and housing sectors.

Our members have found that there is a need and demand in our region for further residential rehabilitation services, a Drug Court, a Youth and Adult Koori Court and Justice Reinvestment Initiatives.

In addition, the Committee has found the following needs exist:

1. There is a need for culturally and gender appropriate residential rehabilitation services for Aboriginal women and children, for women and children and for individuals with dual diagnosis;
2. There is a need for detox services for youth;
3. There is a need for the expansion of the Magistrates Early Referral into Treatment Program (the MERIT program) to adequately address the overwhelming demand and allow individuals with alcohol issues to participate;
4. There is a need for the return of the Life On Track program.

Based on our findings, the Committee would like to ask Lismore City Council to:

1. Write to relevant State and Federal Government and Ministers attaching our findings and requesting that the Government deliver the following to our region:
 - i. A Drug Court in Lismore to service the Northern Rivers and North Coast;
 - ii. Increased residential rehabilitation services in our region including residential rehabilitation centres for:
 - Aboriginal women and children;
 - Women and children;
 - Individuals with Dual Diagnosis.
 - iii. Youth detoxification facilities in Lismore;
 - iv. Establish a youth and adult Koori court;
 - v. Fund Justice Reinvestment initiatives.
2. Forward these findings to the Northern Rivers Joint Organisation;
3. Forward these findings to the Bundjalung Elders Council;
4. Forward these findings to the Aboriginal Land Councils in the region;

5. Advise relevant State and Federal Government and Ministers that Lismore City Council supports, in principle, the recommendations (listed below) of the recent NSW Upper House Inquiry on the Provision of Drug Rehabilitation Services in Regional, Rural and Remote New South Wales, particularly noting the evidence given at the Lismore sittings by stakeholders in our region and in particular support of the following recommendations from the Inquiry, additionally noting the Committee Comments at the end of this report;
6. Support the continuation of the Committee.

Background to the issues in our region

There is a large amount of criminological literature demonstrating a strong association between substance use and crime. Individuals convicted of crimes report a much higher prevalence of substance use disorder than the general population and a large proportion of these individuals attribute their criminal behaviour to their substance use disorder.¹

It is widely accepted that substance use disorder is a risk factor for recidivism and returning to gaol and as such is a significant independent predictor of self-reported criminal activity and re-incarceration of parolees.²

BOCSAR statistics reflect drug-related crime in our region is double to three times the state average. It is no surprise that the public perceive, (and the Committee agrees) that the prevalence of methamphetamine (ice) misuse has become a significant challenge in our region and such misuse is too often sadly linked to violent behaviour and criminal offending.

The Committee notes that the cost to the government and tax-payer of drug-related crime and substance use disorder does not just come as a huge economical cost to the government and taxpayer, but also comes at a social cost to our families and communities - a cost that can be difficult to quantify but easy to see.

The Committee agrees that there are many people in our region who suffer from substance use disorders and are unable to access treatment due to shortages in services and difficulty in accessing services to suit the client especially people who experience dual diagnosis such as substance use disorder *and* mental illness/conditions and/or disabilities. Substance use disorder is particularly problematic in individuals with a comorbid mental health disorder.³

¹Coghlan, S., Gannoni, A., Goldsmid, S., Patterson, E., & Willis, M. (2015). *Drug use monitoring in Australia: 2013-14 report on drug use among police detainees* (Monitoring Report No. 27). Retrieved from Australian Institute of Criminology website:

<http://www.aic.gov.au/publications/current%20series/mr/21-40/mr27.html>

² <http://www.bocsar.nsw.gov.au/Documents/CJB/Report-2016-NSW-Intensive-Drug-and-Alcohol-Treatment-Program-cjb192.pdf> (e.g. Ferguson, 2015; Kinner, 2006; MacKenzie et al., 1999).

³ <http://www.bocsar.nsw.gov.au/Documents/CJB/Report-2016-NSW-Intensive-Drug-and-Alcohol-Treatment-Program-cjb192.pdf> (Smith & Trimboli, 2010).

“punishment—shaming a person, caging them, making them unemployable—traps them in addiction. Taking that money and spending it instead on helping them to get jobs and homes and decent lives makes it possible for many of them to stop.”

— Johann Hari, *Chasing the Scream: The First and Last Days of the War on Drugs*

The War on Drugs must end – Substance Use Disorder is a Health Issue

The war on drugs approach has failed, but whilst there exists the criminalisation of drugs it is important to drive change towards a health and social response including de-stigmatising the user to achieve positive outcomes for people. It is also important to embrace opportunities within the community and within the criminal justice system that can enable individuals to access treatment services that they may not normally be able to due to a number of barriers, such as geographical location and most importantly, due to the stigma attached to having a drug and/or alcohol ‘problem.’

The stigma is a significant barrier and one that is further entrenched by inflammatory and loaded labels given to individuals experiencing the disorder, such as ‘ice addicts’ ‘drug addicts’ ‘junkies’.

The Committee wish to emphasise that substance use disorder is a health condition listed in the Diagnostic and Statistical Manual of Mental Disorders-V (DSM-V). The DSM-V is the handbook used by health care professionals in much of the world, including Australia, as the authoritative guide to the diagnosis of mental disorders.⁴

The Committee urges all politicians and members of the public to refer to the condition by its diagnostic name – substance use disorder. This will help to re-frame the condition back into the health paradigm and out of the criminal paradigm.

The Committee and particularly members with lived experience, such as Jordan, noted that substance use disorder is a cunning and baffling condition. Committee members emphasised the need for understanding that relapse is a common feature of ones recovery. Relapse rates for substance use disorder are similar to rates for other chronic medical illnesses. Treatment of chronic diseases involves changing deeply rooted behaviours, and relapse doesn’t mean treatment has failed.

“Relapse, plays a huge role in recovery from Alcohol and other Drugs, and a majority of people more often than not will relapse at least once, throughout their recovery. Having programs that are available to clients 24/7 would be a big help either by phone, Facebook, texting or a drop in centre. In the early

⁴ The DSM V recognises substance-related disorders resulting from the use of 10 separate classes of drugs: alcohol; caffeine; cannabis; hallucinogens (phencyclidine or similarly acting arylcyclohexylamines, and other hallucinogens, such as LSD); inhalants; opioids; sedatives, hypnotics, or anxiolytics; stimulants (including amphetamine-type substances, cocaine, and other stimulants); tobacco; and other or unknown substances.

stages of recovery, clients need to be nurtured, and guided into finding their pathway to recovery, accessing housing, seeking employment opportunities, and being available to clients to just talk, when require.” – Greg Telford, CEO – Rekindling the Spirit.

The Committee note that all relevant stakeholders would benefit from education about this health condition and the rate of relapse to better inform decisions that benefit the whole community.

“I am concerned at the unaddressed challenges faced by Community Corrections and Parole officers supervising parole periods and bonds in the community. If the parolee/offender has a long-standing substance use disorder and there are no beds available in local rehabilitation centres then it can be very difficult for individuals to overcome the disorder and not reoffend given their offending is often closely linked to their substance use disorder.

Reoffending can mean breaching a bond and returning to court for a harsher penalty or if their parole is revoked and they are sent back into custody with no access to rehabilitation and the cycle continues without end.

Further, there seems to be a lack of understanding among stakeholders that relapse is a common feature of substance use disorder and sometimes it takes many attempts at rehabilitation before abstinence or reducing harmful use can be attained and that there is little opportunity to rehabilitate from chronic substance use disorder if there are no beds at local rehabs.” – Councillor Eddie Lloyd, Committee Chair and Trial Advocate, Aboriginal Legal Service.

Additionally, the Committee is cognisant that not everyone has strong family support, funds or adequate mental health to do what is required to access treatment. People often return to the same issues and circumstances that may have contributed to their drug or alcohol use in the first place. Not everyone has the capacity to wait many months for a bed. Sadly, many are not able to maintain themselves on the waiting list with some dying.

“Methamphetamine (ICE) is very much impacting the lives of many Aboriginal people today and of people from all walks of life, people of all ages...but it is devastating our people. ICE not only affects the people that get addicted to it but it's affecting the families of those ICE users. It affects the parents and the children of those people in very real psychological, physical, emotional and social ways.

It destroys the family structure, takes our children, our parents, our families from us. I can personally attest to this. I am living with this everyday with my one and only adult child...ICE is the reason that I have had to take custody and care of my one and only grandchild. ICE has destroyed my daughter's life - though I try everyday to have hope of getting her into long

term rehab.

ICE is not just a threat in our society, it is very real and very destructive to not only our people but anyone that gets addicted to it and ICE is extremely addictive – Patricia King - Proud Descendant of Widjabul People Within the Bundjalung Nation and member of Lismore City Council Aboriginal Advisory Group.

Current court diversionary programs

Magistrates Early Referral Into Treatment (MERIT)

The Lismore MERIT office presented to the Committee on 25 July 2018.

Key points raised included:

- 92% (127,227) of the NSW criminal matters are finalised in the Local Court;
- Eligible individuals are able to have their matter adjourned for up to twelve weeks to allow them to focus on treating their substance use disorder and associated social issues;
- MERIT in Lismore is only available for persons with a drug issue, not alcohol;
- MERIT is under-resourced and not always available.

The Committee agree that our region would benefit from an expansion of MERIT services to meet the current demand and enable individuals with alcohol issues to participate.

“Many of our clients come to court with a long standing alcohol abuse background from growing up around it to now experiencing it themselves. MERIT has had great success in assisting people with drug problems to achieve abstinence and therefore reducing their criminogenic behaviours. Precluding people from the program because they don’t have a drug issue, means that they miss out on the extremely beneficial and successful program which not only benefits them, but in the long term this benefits the community in social and economic ways and ultimately results in a reduction in crime” – Binnie O’Dwyer, Solicitor, Aboriginal Legal Service

“MERIT is a program available in most Local Courts in New South Wales that provides the opportunity for adult defendants with substance abuse problems to work, on a voluntary basis, towards rehabilitation as part of the bail process.

At selected courts, the MERIT Program is available to defendants with a primary alcohol issue (whereas at the majority of courts, entry is restricted to those whose primary concern is illicit drugs). Lismore is not one of these

Courts despite the fact that alcohol consumption at levels posing lifetime risk to health is 34% of the population in our region.

The Buttery believes an increase in MERIT beds would be necessary if the Lismore Court extended the MERIT program to include alcohol related issues. Traditionally, the Buttery had four (4) beds and is now down to only two (2)." – Leone Crayden, CEO, The Buttery

"People's lives are very much affected by alcohol in very similar ways to people experiencing drug issues...their lives are debilitating and are being destroyed by alcoholism too and so are their families" – Patricia King - Proud Descendant of Widjabul People Within the Bundjalung Nation and member of Lismore City Council Aboriginal Advisory Group.

"The MERIT office in our region is often closing its books due to a lack of resources to service the demand in our region. MERIT is only available for individuals with substance issues other than alcohol. Many of our Aboriginal clients have grown up in communities where alcohol use disorder and violence sadly go hand in hand. Our clients are not given the opportunity to do the MERIT program because their substance use disorder involves alcohol. This is a great shame given MERIT can assist them not only to rehabilitate but to engage in courses to address violent behaviours and forge a new path in life. The gap in this service means many reoffend and end up in custody and the cycle continues." Councillor Eddie Lloyd, Committee Chair and Trial Advocate, Aboriginal Legal Service.

Extra Offender Management Service (EOMS)

Sarah Sherlock from Mission Australia presented to the Committee on 26 September 2018.

Key points raised included:

- Life On Track (LOT) is no longer, despite positive outcomes for many individuals;
- EOMS (Extra Offender Management Service) is the new service but it does not provide the same services as LOT.

The legal members of the Committee were particularly vocal about their disappointment about the closure of Life On Track, noting the significant and life-changing assistance it provided to those at risk of becoming stuck in a cycle of recidivism due to social, legal and health issues such as housing, substance use disorder, criminal matters and family issues including family violence and custody issues.

The legal members paid tribute to the local Life on Track and EOMS employees who take a holistic approach to their work and go above and beyond for each client, assisting them with getting their lives back on track.

“Life on Track was a fantastic program which many of my clients benefited greatly from. From dealing with their housing needs or getting their teeth fixed or taking them to appointments due to not having a car or licence or both, the case workers were dedicated and assisted our clients to sort out the issues which were causing them to offend. They provided comprehensive reports and the magistrates would give people the time to participate in the program knowing that it would be beneficial not only for them but ultimately the community as well.

I saw people’s lives change dramatically for the better and importantly not re-offend. Then with little consultation, the service was ended and replaced with a smaller version, less staff and it only targets medium risk individuals. EOMS has been a much-reduced program and as such has not had the same impact on our clients. It has still been of assistance but much less so unfortunately and we are seeing clients who require this early intervention not getting them the help and intervention they need to address the risk of reoffending. How can this possibly be good for our community?” – Binnie O’Dwyer, Solicitor, Aboriginal Legal Service

“We want Life On Track back in our region. It worked and then it was reshaped and shrunk to EOMS. There is no longer a service that provides early intervention to our clients which is exactly where intervention is needed to reduce the risk of individuals becoming stuck in the drug/crime cycle.” – Councillor Eddie Lloyd, Committee Chair and Trial Advocate, Aboriginal Legal Service.

Why we need a Drug Court in our region

The experience in courts of therapeutic jurisprudence in the United States, the United Kingdom and Canada strongly influenced the establishment of a Drug Court in Parramatta in 1999. The Drug Court now sits in the Sydney CBD and the Hunter Region. The Drug Court was evaluated in 2002 and 2008 by the Bureau of Crime Statistics and its success has ensured it continues today.

The 2008 re-evaluation of the NSW Drug Court revealed it to be more cost-effective than prison in reducing the rate of re-offending among offenders whose crime is drug/alcohol related. Individuals who progress through the NSW Drug Court are significantly less likely to be reconvicted than offenders given conventional sanctions (mostly imprisonment).⁵

⁵ Stephen Goodall, Richard Norman & Marion Haas, The costs of NSW Drug court, (September 2008) Centre for Health Economics Research and Evaluation, <http://www.bocsar.nsw.gov.au/Documents/CJB/cjb122.pdf> - The economic analysis conducted by CHERE showed that the total cost of the Drug Court program is \$16.376 million per annum. The largest drivers of this final cost are the cost of final imprisonment (for those who do not complete the program successfully) and the cost of staffing and running the court.

The current findings estimate that the Drug Court program provides a net saving of \$1.758 million per year when compared with conventional sanctions. The long-term savings are even greater because of the reduction in recidivism of offenders who complete the program. In other words it is cheaper and produces better outcomes than the alternative custodial sanction.⁶

This conclusion means that the NSW Drug Court is likely to be a cost-effective approach.⁷ There is no Drug Court for our region despite the obvious need borne out from the recent and long term BOCSAR statistics and the experiences of our Committee members.

"I worked for the Aboriginal Legal Services in Redfern & Blacktown in Sydney from 2001 - 2003; and during that time, had many clients involved in the Drug Court system, which, at that time, was a new and innovative scheme to assist in diverting offenders from the system, whilst assisting them to deal with their addiction issues.

The ingenious nature of the Drug Court, apart from it's now many documented successes, was the way it was run right from its inception. That is, for a client to be chosen to get into the Court, you had to win a lottery. For many of my clients, who had often never won anything in their lives, to be chosen from the lottery to go to Drug Court, was in their eyes, nothing short of a miracle. A chance. An opportunity to change, and a sign that things were directed towards their rehabilitation.

Not only were they appreciative of the opportunity, but they felt like they had finally had some luck come their way. Clients would cry when they were chosen, rejoice and sometimes boast to other inmates.

Naturally, clients flocked for the opportunity to be part of this new scheme and took the program seriously when they were in it; trying sometimes against the odds to succeed. For those clients, it was often their "last chance" not only for the broader community, but also for any vestige of hope they had left in themselves. The successes of clients within the program are now well known.

Whilst I didn't work in the Court regularly, I was familiar with its workings, and did the odd Court appearance there. It had an air about it that was different to other Courts. Still with the all the imprimatur of a Court, but imbued with the hope of those participants, the encouragement to change

⁶ Stephen Goodall, Richard Norman & Marion Haas, The costs of NSW Drug court, (September 2008) Centre for Health Economics Research and Evaluation, <http://www.bocsar.nsw.gov.au/Documents/CJB/cjb122.pdf> - The economic analysis conducted by CHERE showed that the total cost of the Drug Court program is \$16.376 million per annum. The largest drivers of this final cost are the cost of final imprisonment (for those who do not complete the program successfully) and the cost of staffing and running the court.

⁷http://www.bocsar.nsw.gov.au/Pages/bocsar_media_releases/2008/bocsar_mr_cjb121.aspx

despite the odds of succeeding, and the drive to amend past wrongs and start a new life, acknowledging the path substance use disorder had taken them on, and actively deciding to leave that life behind.

Lismore has a unique opportunity to operate a similar Court given our unique community and location. To embrace the challenges that our community faces due to substance use disorder, and rather than turning our back on people in their deepest time of need, engaging with them on a community & health level, supporting their change so they can overcome the issues leading to their addiction. It is essential we change the "song book" and be a community that is progressive and drives change through a Court program which has been proven for its efficiency and success."

Sophie Anderson, Barrister, Criminal Law – Commercial Bank Chambers - Lismore

Current rehabilitation services in our region

Riverlands Drug and Alcohol Centre

Riverlands is a 16-bed detoxification unit, pharmacotherapy clinic (methadone & buprenorphine), clinical liaison and outpatient services and an educational and training facility.⁸

Riverlands, as a detoxification unit is not a drug and alcohol rehabilitation unit. Riverlands allows people to safely detox under medical supervision as a first phase in the drug/alcohol rehabilitation process.

This service is not available for people under 18 years of age. There is no easy transition from the detox straight to a residential rehabilitation centre given the lack of beds and long waiting lists.

Often there is only a narrow window of opportunity where an individual (after detoxing) accepts that they need help. Unless rehabilitation assistance can be provided whilst the person is within this moment, the opportunity is often lost.

The Buttery Therapeutic Community

The Buttery is a residential rehabilitation centre in Binna Burra about half an hour from Lismore and has 34 beds. The Buttery is a therapeutic community (a 'TC') and is a long-term residential rehabilitation program for adults addicted to drugs, alcohol or both.⁹

⁸ NSW Health website <http://nswlhd.health.nsw.gov.au/about/drug-alcohol-services/riverlands-drug-alcohol-centre/>, accessed 25 March 2018

⁹ "In the Therapeutic Community model of treatment, the community itself, through self-help and mutual support, is the principal means for promoting personal change. In a therapeutic community residents and staff participate in the management and operation of the community, contributing to a

The program is evidence-based and best-practice and informed by the latest research into addiction treatment.

Most people undertake The Buttery's residential rehabilitation program at no direct cost to themselves and contribute 80% of their Centrelink benefits (e.g. pension or sickness benefits) to cover food and accommodation.

'The current waiting list is 5-6 months for males & 4 months for females. The discrepancy is due to there being more men seeking rehab and the need to achieve gender balance in the therapeutic community as this is more effective for treatment. We currently have 34 beds on site, however, this is split over two programs. The Therapeutic community runs 24 residential rehab beds and 2 MERIT beds, while the Methadone to Abstinence (MTA) Program operates with 7 beds.

The following is more anecdotal than tested and is based on observation and feedback from participants and staff. We have found that around the 30 participant mark is a maximum for a cohesive community. When we have operated with more people on site there is a sense that individuals can get lost in the groups and overall visibility and accountability can fluctuate. As these are core elements to the TC framework the impacts of participant numbers has been a consideration with overall management of throughout.' – Leone Crayden, CEO, The Buttery.

The Buttery Private

The Buttery Private is The Buttery's new social enterprise. Surplus funds from the program are applied to The Buttery's charitable works. It is a new residential rehabilitation initiative whose focus is on a 'Wellbeing Program' designed to complement medical in-patient (28 day) programs for people who are (prior to entry) physically detoxed and psychologically stabilised.

The service is designed for people who may need to take time-out to address the issues underlying their conditions. This is undertaken in a small, confidential residential setting.

The Buttery Private is an evidence-based program for people experiencing:

- Workplace burnout
- Exhaustion
- Stress
- Anxiety

psychologically and physically safe learning environment where change can occur. In a therapeutic community there is a focus on social, psychological and behavioural dimensions of substance use, with the use of the community to heal individuals emotionally, and support the development of behaviours, attitudes and values of healthy living." (Definition provided by Australasian Therapeutic Communities Association.)

- Depression
- Trauma
- Substance abuse¹⁰

There are no waiting lists. Fees for treatment are not covered by private health insurance. The cost is less than but comparable to other private facilities. The cost is a barrier for many in participating in this program.

Byron Private

The Byron Private is a privately-funded 12-bed residential facility that provides a 6-week treatment program for drug addiction, alcoholism, eating disorders, PTSD, anxiety and depression.

Entrance into Byron Private costs around \$40,000 for the six-week program. The facility qualifies as a Private Health Facility under the Private Health Facilities Act 2007, therefore the cost of treatment at Byron Private is prohibitive to the overwhelming majority of individuals with substance abuse disorders in our region.¹¹

Why we need further residential rehabilitation centres

The term 'Therapeutic Community' (TC) is generally used to describe small, cohesive communities where patients (sometimes referred to as 'residents') have a significant involvement in decision-making and the practicalities of running the community.

Key principles include collective responsibility, citizenship and empowerment, and TCs are structured in a way that deliberately encourages personal responsibility and discourages unhelpful dependency on professionals.¹² It is a broad term that encompasses many different models of care. It is acknowledged that there is a need for residential rehabilitation service models to be tailored to different groups in our community. For example, healing centres such as Namatjira Haven is a more appropriate model of treatment for our Aboriginal community.

Individuals with substance use disorders are often self-medicating a past trauma. A therapeutic, healing model of community is a safe space which enables participants to let their guard down and share these experiences which leads to gaining insight into how recourse to substances is often a coping mechanism to deal with the pain that may ordinarily feel unbearable. The sharing of ones experiences in this setting leads others to feel comfortable sharing their own pain. It is obvious why the goal setting prevents rehabilitation in that it is the last place in the world it is safe to let

¹⁰ Buttery Private website, <https://www.butteryprivate.org.au/for-referrers/>, accessed 25 March 2018.

¹¹ Bryon Private submission to the Inquiry into the Provision of Drug Rehabilitation Services in Regional, Rural and Remote NSW, December 2017, p2

¹² Julian Stern, Core Psychiatry (Third Edition), 2012
<https://www.sciencedirect.com/topics/nursing-and-health-professions/therapeutic-community>

your guard down to discuss past traumas. Additionally, the availability of drugs can be too great a temptation for many in a gaol setting where there exists no real support to assist in rehabilitating.

A significant reason attributed to the success of residential rehabilitation in reducing relapse events is that the setting allows individuals to work solely on themselves without the disturbance and interference of life stressors such as family, financial and legal issues, which are usually the triggers for relapse. Residential rehabilitation centres allow individuals to practice relapse prevention strategies when triggers arise and without access to substances that they would normally turn to in such times.

“Getting people to rehab who are in custody is not possible anymore given the recent change to policy that no longer allows clients to use the gaol phone to be assessed by a rehab. This is because lawyers are no longer permitted to apply for Drug and Alcohol Assessment Orders through the court. Then there is the issue of there not being enough beds for any type of rehab.

We need more dual diagnosis facilities for people who have complex mental health issues as well as substance abuse issues. We need more women’s and children’s facilities. We need more specialised facilities to be able to deal with higher risk offenders who may have criminal histories which prevent them from being eligible for some rehab facilities.

There are just so many barriers for our clients who are putting up their hand for help – our clients who want to address their substance misuse issues but there is not enough support out there for them and if they are in custody on remand they have no access to rehabilitation whatsoever.

In my opinion this stems from the mentality of needing to punish people as opposed to helping them to heal and rehabilitate and reduce recidivism. Incarcerating people costs the taxpayer an extraordinary amount of money and does nothing to help people to stop using drugs. Rehabilitating people is a cost effective way of helping them to become functional, law abiding members of the community and will actually address the disproportionate number of Aboriginal people in custody” – Binnie O’Dwyer – Solicitor – Aboriginal Legal Service

“The Battered saved my life. It gave me back my family and gave me a purpose to live. I was lucky to have family to support me through the long waiting list period. Sadly, this is not everyone’s experience. I have lost many friends and clients who have relapsed and some who have died waiting on waiting lists. It is frustrating to see people with substance use disorder be criminalised and demonised in the way they are by politicians and some in the community when this is a health issue and these people are putting up their hand for help and ending up on long waiting lists because there is no

help for them when they ask for it.” Councillor Eddie Lloyd, Buttery Graduate, Committee Chair and Trial Advocate, Aboriginal Legal Service.

Current Aboriginal-Specific Rehabilitation Services

Our region has more than double the number of Aboriginal people than the national and state average.¹³ A 2017 crime report by BOCSAR indicates there has been a State average increase of 25% in Indigenous imprisonment since 2013. It was reported that in our region there has been a 50% increase in the number of Indigenous people imprisoned since 2013.¹⁴ This in itself is good evidence of the shortage of treatment opportunities and need in our region for rehabilitation opportunities for the Aboriginal community.

Sadly, there is a high rate of methamphetamine and alcohol related violent offending among the Aboriginal communities in our region. Domestic violence is sadly too prevalent and it is this offending that often results in incarceration.

Aboriginal lawyer and academic Noel Pearson has argued that substance use disorder is a far more important cause of Aboriginal incarceration than economic and social disadvantage.¹⁵ The Committee agrees.

Balund-a Program

On 21 November 2018, Lisa O’Brien, Manager of Balund-a presented to the Committee.

Key points raised:

1. Balund-a is **not** a drug and alcohol residential rehabilitation service;
2. The Balund-a Program is located at Tabulam and is a residential diversionary program established in 2015 operated by Corrective Services NSW, for male offenders over 18 years of age and its aim is to reduce re-offending and enhance skills within a cultural and supportive community environment..¹⁶

¹³2016 Census QuickStats, Lismore (NSW)

http://www.censusdata.abs.gov.au/census_services/getproduct/census/2016/quickstat/SSC12344

¹⁴ <https://www.northernstar.com.au/news/solution-to-reduce-indigenous-prisoners-in-jails/3199773/>

¹⁵ Don Weatherburn, Disadvantage, Drugs & Gaol: Re-thinking Indigenous Over-representation in Prison - Keynote address, Conference of the Australasian Society on Alcohol and other Drugs, Cairns Convention Centre, 5th-8th November, 2006.

¹⁶ The impetus for the establishment of Balund-a was the Royal Commission into Aboriginal Deaths In Custody, 1987. The property is situated on 534 hectares and also operates as a farming and beef cattle property giving the residents the opportunity to develop agricultural skills. The length of stay at the program varies according to individual needs however a minimum period of 6 months is required. Programs address specific areas of risk to assist on improving life skills and reintegration into the community, for example, cognitive based programs, drug and alcohol, anger management, education and employability, domestic violence, parenting skills and living skills.

3. Cultural activities include excursions to sacred sites, music, dance and art. Elders employed by the program provide support and assist resident to recognise, restore and value cultural links with their land and history.

The Committee note that this service is a diversionary program and is not a residential rehabilitation service and as such should not be counted as such a service in our region.

Rekindling the Spirit

Greg Telford, CEO of Rekindling the Spirit presented to the Committee of his personal and professional experiences of the specific challenges facing the Aboriginal communities in our region.

The vision of Rekindling the Spirit is for a world where Aboriginal Communities are free from social injustice, substance misuse, family violence and child abuse.

Rekindling the Spirit offers services directly to Aboriginal men, women and families that relieve poverty, distress, sickness, destitution, trans-generation trauma and other misfortunes. They offer counselling, assistance, education and supplementary services that focus on reducing the occurrence of domestic and family violence and child abuse and on promoting healing and wellbeing within families and the community.

Namatjira Haven

Namatjira Haven is an Aboriginal community controlled organisation providing residential healing programs for Aboriginal adult men requiring assistance in dealing with problematic substance use and underlying and associated issues. The centre currently has 14 beds and is located on NSW North Coast 3.5kms from Alstonville, 25 minutes or so from Lismore. Namatjira Haven is a modified therapeutic community to allow for total cultural safety and significance in the use of cultural ways of healing.

Namatjira Haven is a member of NARHDAN (NSW Aboriginal Residential Healing and Drug and Alcohol Network) and operates under a Model of Care developed by all our NSW Aboriginal residential services.

“Our model is healing through culture and country. Aboriginal Residential Healing/Rehabilitation Centres recognise that healing is not just related to the wellbeing of the individual, but also the wellbeing of the broader community, thus acknowledging the interconnectedness between social, cultural, spiritual and environmental influences of health. These elements are embodied in the red centre of the circle because they are applied across all the other five core treatment components (see fig 2).” – Dian Edwards, Manager, Namatjira Haven Ltd.



Why we need culturally appropriate residential rehabilitation services for Aboriginal women and for women and children

The Committee noted the gap in the sector in our region for residential rehabilitation centres for women and children for both Aboriginal and non-Aboriginal women. The Committee noted the challenges facing women with substance use disorders who are not able to access much needed residential rehabilitation services because they have children who they cannot leave.

The Committee note there are women only services located in NSW but they are too far away for our community to access. The Committee further notes that many of these rehabilitation centres prioritise local residents over out of town ones and notably, they are not Aboriginal services.

The Committee notes there has been a recent announcement that the Central Coast has been granted funds for an Aboriginal women's service but no children are permitted. The Committee notes that Kempsey recently lost its Aboriginal service.

"We need rehabs that can meet the needs of young Aboriginal men and women between the age of 16 and 21 years, that haven't been caught up in the Juvenile Justice or Community Corrections system, where they can reflect on alcohol and other drugs and how they implicate people's ability to move forward, where childhood trauma can be addressed, and the seeds of change can be planted for a constructive future, through education and employment initiatives.

Along with this we also need rehabs where adult men and women, who have been caught in the Justice and Community Corrections systems, can start addressing their trauma background, the recidivism cycle, and learn new ways of interacting with the world and what it has to offer. We need to start thinking about how we can do this differently, incorporating culture, adult responsibility to self, children, family and community, along with

looking at our social and emotional maturity” – Greg Telford, CEO,
Rekindling The Spirit

“We do need residential rehab centres that are culturally appropriate and culturally aware but most importantly we need rehab centres that have a range of specialists services for an absolute wrap around holistic approach to provide better treatment to make positive long term sustained changes in these users lives.

We need rehab centres for the women and children so that their bonds can be rebuilt if broken, so that the mothers have a sense of maternal worth and so the children have a sense of how much they mean to their mothers...it would definitely strengthen the mother’s will to want to continue and succeed with the rehab processes. It would give them a reason to hope and to want to continue with rehab.” – Patricia King - Proud
Descendant of Widjabul People Within the Bundjalung Nation and member of Lismore City Council Aboriginal Advisory Group.

Why we need Dual Diagnosis residential rehabilitation services

Regional statistics pertaining to mental health indicators (such as psychological distress, intentional self-harm and suicide) reveal that Northern NSW has a greater burden of mental health concerns compared to much of NSW.¹⁷

Aboriginal populations have greater socioeconomic disadvantage, suffer more emotional and social distress, have less access to culturally appropriate services, and have a higher incidence of comorbidity with decreased access to primary health care services.¹⁸

The Committee notes the gap in the sector for residential rehabilitation services that cater to the many individuals with a dual diagnosis in our region – that is a mental health diagnosis and a substance use disorder diagnosis.

Individuals who experience dual diagnosis are affected in different ways and therefore have individual needs. Dual diagnosis adds complexity to assessment, diagnosis, treatment and recovery, and can be associated with increased incidences of relapse. For many individuals with dual diagnosis, standard residential rehabilitation services offer a structured and therapeutic live-in environment, emphasising self-help and peer work to support reintegration into community living.

However, some individuals experiencing multiple complexities related to dual diagnosis are not well accommodated in standard services – these clients may

¹⁷ HealthStats NSW (website), Accessed 30 May 2015, <http://www.healthstats.nsw.gov.au> in Northern NSW Mental Health Integration Plan 2015-2018.

¹⁸ Northern NSW Mental Health Integration Plan 2015-2018.

require a higher level of clinical support and targeted intervention to meet their treatment needs.¹⁹

To address this treatment gap, funding for current rehabilitation centres to cater for specialist dual diagnosis residential rehabilitation services and further centres catering to this high need is required.

“The Buttery has been delivering services in the Alcohol and Other Drugs (AOD) sector in the Northern Rivers since 1973. Comorbidity has always been a feature of people seeking AOD treatment. Estimates suggest that 75% of entrants to AOD treatment have a co-occurring mental health condition.²⁰ The same estimates suggest that approximately 50% of people with a psychotic disorder have a Substance Use Disorder (SUD).²¹ The Buttery has been working with people with co-occurring mental health and AOD problems since its beginnings.

Due to the complex nature of co-existing condition such as SUD and Mental Health issues and the needs of the client group we often find ourselves in situations where clients do not meet eligibility criteria. We are not funded to provide on-site medical staff who can monitor and dispense psychotropic and other medications.

Some people are referred who also have complex medical conditions due to the nature of antipsychotic medication side effects and the burden of disease often experienced by people who have co-existing conditions, such as diabetes, Hepatitis C and HIV, Obesity.

These client populations often come with their own specific set of needs that also create issues and difficulties when trying to mix populations with differing pathology and psychopathology.

The discussion needs to be not just about adding more residential rehab beds, but looking specifically at the types of service requirements to meet the needs of specialised client populations. These should include more severe mental health (co-morbid services), indigenous women specific, women’s, women & children and family services should all be considered as Programs in their own right as each carries their own set of considerations and needs that do not always just fit within a general population service.” – Leone Crayden, CEO, The Buttery.

¹⁹ www2.health.vic.gov.au/alcohol-and-drugs/aod-treatment-services/aod-residential-treatment

²⁰ Slade, et al (2009) The mental health of Australians

²¹ Report on the 2007 National Survey of Mental Health and Wellbeing. Department of Health and Ageing, Canberra.2. ibid

Why we need a Youth and Adult Koori court

The Committee agree there is a need for a specialised Koori court in our region.

There are now two Koori courts in NSW. The Koori court operating one day a week in Parramatta that has just completed the first 12-month trial and the new Koori court recently launched in Surry Hills. The Committee notes that more than 60 young Aboriginal people have taken part in the Paramatta Youth Koori Court since 2015, when it began operating one day a week at Parramatta Children's Court. NSW Justice note that the Youth Koori Court increases Aboriginal involvement in the delivery of justice, ensuring outcomes are culturally relevant and have more impact on the offender.^{22 23}

The involvement of elders, who sit alongside the Magistrate and the individual is far less intimidating than the regular westernised courts and is based on principles of therapeutic justice – focusing on the criminogenic needs of the participant.

Participants are linked with support agencies and are case managed with plans to ensure compliance.

“Youth and Adult Koori Courts, may assist Magistrates and the community to start aligning community services with clients to start addressing offending behaviour, break the Recidivism cycle and steer the individuals towards programs that assist them to address their under lying issues, that have them caught in the justice system.

In all programs addressing anti-social behaviour, there needs to be a component of Social and Emotional Well Being, assisting individuals to understand the impact their behaviour has on those close to them, along with the wider community, especially children who witness the antisocial impacts. The current punitive system isn't working.

This could save the courts time and money in the long term, along with breaking the cycle of over representation of Koori's in the correctional centres, and the Koori community knowing that there is something being done about trying to break this ongoing dilemma” – Greg Telford, CEO, Rekindling the Spirit

“There is a real need for both an Adult and Youth Koori Court that has Aboriginal people of both ages involved because they have a better

²² [http://www.justice.nsw.gov.au/Pages/media-news/media-releases/2017/\\$220000-funding-boost-for-Youth-Koori-Court.aspx](http://www.justice.nsw.gov.au/Pages/media-news/media-releases/2017/$220000-funding-boost-for-Youth-Koori-Court.aspx)

²³ <https://crimlawcommittee.wordpress.com/2017/03/05/trial-of-the-new-nsw-youth-koori-court-success/> There has not yet been a formal evaluation carried out on the youth Koori court but initial reports suggest its success in reducing recidivism rates and increasing employment and stable accommodation. In addition, the cost of the Youth Koori court has led to a net saving to NSW of \$36,540.

understanding of how to relate to their own people in a way that would look at their situations more realistically and positively encourage them to 'want to make better choices and change their lives for the better'. Rather than just being dealt with in the general legal system." – Patricia King - Proud Descendant of Widjabul People Within the Bundjalung Nation and member of Lismore City Council Aboriginal Advisory Group.

"There are certainly enough adult and young Aboriginal persons before the courts in this region to support a Koori court that operates one day a week. For example, Casino court operates on Wednesday and despite the Aboriginal population in Casino being about 7%, our clients make up about 70% of the court list on most Wednesdays, and that's just the Casino court experience.

The devastating Aboriginal incarceration statistics for our region suggest a need for a Koori court for both young and adult individuals. It's been 28 years since the Royal Commission into Aboriginal Deaths in Custody. Do we really need a business case? We have the devastating statistics, we know the Koori courts work, we know they save money. Why can't we just get one happening?" – Councillor Eddie Lloyd, Committee Chair, Trial Advocate, Aboriginal Legal Service.

"Having a Koori and drug court would assist defendants to be able to deal with the underlying issues behind their offending behaviour. This would ultimately lead to the reduction of the over incarceration of Indigenous people and help people to become the functional members of the community that they want to be" – Binnie O'Dwyer – Solicitor – Aboriginal Legal Service

"The Northern Rivers and Coast community is in a unique position regarding it's diverse Aboriginal community, but sadly, there is an over representation of Aboriginal and Torres Strait Islander people in our Court system. This fact has been evident for years, and notwithstanding attempts by lawmakers, Courts and Parliament to look at the reasons for this over-representation, the statistics are still shockingly high. Unless we take a proactive approach to this issue, these numbers will continue to exist, and potentially rise, and as a community this is an unacceptable inevitability.

The operation of a Koori Court in this region would enable the issues faced by Aboriginal offenders to be dealt with by community; in an appropriate and measured way. The current system of law does not appear to be adequately or appropriately dealing with indigenous offenders. The pilot Koori Courts in Sydney appear to have had a multi-disciplinary and whole of community approach, with resounding successes. Our community is a vibrant, innovative and well-meaning community, in which such a Court would fit with the ethos of the community, whilst meeting the law and order expectations of the community. It would demonstrate a community

that is willing to stand up and take responsibility for the issues it faces, whilst having our clients in the system also taking that opportunity within their community structures” - Sophie Anderson, Barrister, Criminal Law – Commercial Bank Chambers – Lismore

Why we need Justice Reinvestment Initiatives

Justice Reinvestment or ‘JR’ is the concept of diverting funding away from prisons and into community so that citizens can connect with their community, and break the cycle of incarceration. JR is data driven, place-based, community led and economically sustainable.

It’s about investing locally where crime is occurring to address the particular problems facing individuals and communities. Justice reinvestment reduces imprisonment rates while making communities safer.

Evidence shows strategic community-driven investment in localised early intervention, prevention and diversionary solutions can reduce crime, build local capacity and strengthen local communities.

If there’s less crime, there’s less imprisonment.

There are a number of factors, unique to Australia, which have led the way to justice reinvestment:

- Indigenous Australians are underrepresented in diversions by courts to drug and alcohol treatment facilities.
- Indigenous people only make up 2.5% of Australia’s population but figures now show 26% of adult males in prison are Indigenous, 31% of adult females in prison are Indigenous and 49% of young people in juvenile detention are Indigenous.
- A recent study by Deloitte Access Economics found that \$111,000 can be saved per year per offender by diverting non-violent Indigenous offenders with substance use problems into treatment instead of prison. A further \$92,000 per offender in the long term could be saved due to lower mortality and better health related quality of life outcomes.
- Each year there are over 30 000 new prison receptions and over 150,000 movements among prisoners in New South Wales.
- Despite anecdotal evidence that injecting drug use occurs in prisons, not one Australian prison has a needle and syringe program operating
- Australia’s prison population has increased 30% in the last decade
- Recidivism rates exceed 50 per cent.
- Indigenous women are the fastest growing group within Australian prisons.

The Committee support community led initiatives to address substance abuse and crime in our region.

On 25 July 2018, Tracey Kristiansen from 3V Consulting presented to the Committee about Justice Reinvestment and presented a case study of the Maranguka Justice Reinvestment project in Bourke.

The Maranguka Justice Reinvestment project emerged as Bourke was concerned about the number of Aboriginal families experiencing high levels of social disadvantage and rising crime.

Alistair, a member of the Bourke community noted the following:

"Kids were being taken away. Too many of my community were being locked up. Families were being shattered, again and again," says Alistair Ferguson, locally born and bred and now overseeing the justice reinvestment project in Bourke. "And this was happening despite the huge amount of money government was channelling through a large number of service organisations in this town."

"So we started talking together. We decided that a new way of thinking and doing things needed to be developed that helped our children. We decided it was time for our community to move beyond the existing service delivery model, a model which had clearly failed."

"We developed the Maranguka proposal with a clear focus on creating better coordinated support to vulnerable families and children in Bourke through community-led teams working in partnership with existing service providers, so that together we could look at what's happening in our town and why Aboriginal disadvantage was not improving, and together we could build a new accountability framework which wouldn't let our kids slip through."

"And then we heard about justice reinvestment and it was like all the stars suddenly aligned,"

On 27 November 2018, KPMG conducted an Impact Assessment of the Maranguka Justice Reinvestment Project.

Key findings of the report included improvements in:

- **Family strength:** 23% reduction in police recorded incidence of domestic violence and comparable drops in rates of re-offending
- **Youth development:** 31% increase in year 12 student retention rates and a 38% reduction in charges across the top five juvenile offence categories
- **Adult empowerment:** 14% reduction in bail breaches and a 42% reduction in days spent in custody.

As a result of these achievements, and achievements in other areas, KPMG estimated an economic impact of **\$3.1 million** in 2017 – and if just half of the results achieved in 2017 continued, an additional impact of **\$7 million**.

Of this, approximately two thirds relate to impact to the justice system and one third is broader economic impact to the region.

In March 2019, the Commonwealth and New South Wales Governments announced \$1.8 million in funding to support the continuation of the Maranguka Justice Reinvestment project in Bourke.

Following her presentation, Tracey spoke of how JR can result in real outcomes for our community and provided us with the statistics below which suggest our region has the business case and need for such initiatives.

What the statistics show is a devastating proportion of our incarcerated people are from the Aboriginal community. In the Richmond Valley, which includes Casino, 32 of the 48 individuals incarcerated are Aboriginal.

The statistics of our region

The cost of incarcerating members of our region in custody is **\$70,065.90** per day.

Lismore LGA

(includes Nimbin, The Channon)

The population of the Lismore LGA is 43,816. The below statistics represent the incarceration rates of the Lismore LGA for adults and juveniles:

- 79 adults incarcerated (44 non-indigenous, 35 indigenous)
- \$17,652.90 incarceration cost per day
 - \$13,651.20 cost of adults in custody per day
 - \$4,001.70 total cost of youths in detention per day

Richmond Valley LGA

(includes Casino)

The population of the Richmond Valley is 23,195. The below statistics represent the incarceration rates of the Richmond Valley LGA for adults and juveniles.

- 48 adults incarcerated and 1 juvenile (16 non-indigenous, 32 indigenous)
- \$9,628.30 incarceration cost per day – which is made up of the following:
 - \$8,294.40 cost of adults in custody per day

- \$1,333.90 cost of youths in detention per day

Ballina LGA

(includes Wardell, Alstonville, Lennox Head and Ballina)

The population of Ballina is 43,064. The below statistics represent the incarceration rates of Ballina for adults and juveniles.

- 35 adults incarcerated (18 non-indigenous, 17 indigenous)
- \$8,715.80 incarceration cost per day – which is made up of the following:
 - \$6,048 cost of adults in custody per day
 - \$2,667.80 total cost of youth in detention per day

Kyogle LGA

(which includes Wiangaree, Grevillia, Woodenbong, Muli Muli, Old Bonalbo, Bonalbo, Tabulam, Mallanganee and Mummulgum)

The population of the Kyogle shire is 8,927. The below statistics represent the incarceration rates of the Kyogle shire for adults and juveniles.

- 33 adults incarcerated (13 non-indigenous, 20 indigenous)
- \$5,702.40 incarceration cost per day
 - \$5,702.40 cost of adults in custody per day

Byron Bay LGA

(includes Suffolk Park, Byron Bay, Mullumbimby and Ocean Shores)

The population of the Byron Bay area is 33,339. The below statistics represent the incarceration rates of the Byron Bay area for adults and juveniles.

- 38 adults incarcerated and 0 juveniles (26 non-indigenous, 8 indigenous)
- \$6,566.40 incarceration cost per day
 - \$6,566.40 costs of adults in custody per day

Tweed LGA

(includes Pottsville, Hastings Point, Kingscliff, Murwillumbah, Tyalgum and Uki)

The population of the Tweed is 94,547. The below statistics represent the incarceration rates of the Tweed for adults and juveniles.

- 103 adults incarcerated and 3 juveniles (71 non-indigenous, 35 indigenous)
- \$21,800.10 incarceration cost per day – which is made up of the following:
 - \$17,798.40 cost of adults in custody per day
 - \$4,001.70 cost of youths in detention per day

The source of this data is: <http://www.justreinvest.org.au>

“The data within our region provides a foundation for the need to try a new approach. The strong leadership within the region will help in the commencement of community engagement. The stakeholder members of Lismore City Council’s Social Justice and Crime Prevention Committee bring so much expertise and on the ground experience about local needs to the table. They are passionate, motivated and ready to put in the hard yards to address the challenges faced. If the Committee were given the opportunity to continue, I believe they will be successful in establishing a Justice Reinvestment project that will make a real difference to the community and will show other Council’s what is possible when you engage community members on community issues.” Tracey Kristiansen, 3V Consulting.

“The success of the Justice Reinvestment program in Bourke, especially when it comes to the reduction of crime, is testament to the power of the community when it comes together to address issues in a holistic as opposed to a crime and punishment way. The Northern Rivers is crying out for this type of program. Clearly the current focus of criminalising people is not helping anybody and we need to look to innovative and creative ways to keep indigenous people out of jail such as justice reinvestment projects” – Binnie O’Dwyer, Solicitor, Aboriginal Legal Service

“Lismore has a great deal of empathy for the cohort of individuals caught in the cycle of AOD Abuse, Domestic and Family Violence, and frequenting the Justice System by their offending behaviour. If the area had the opportunity to look at Justice Reinvestment, I am sure that we could come up with a program that could meet numerous needs, and satisfy the Government that we are using their funds productively.

I am sure that Lismore like any other rural community could use the Justice Reinvestment Initiative to its benefit by having the opportunity to work collaboratively with the Justice System, Community programs, that could work together to assist the participants to meet the needs of Justice system, address their offending behaviour, and their own issues that keep them involved with either using Alcohol and other Drugs, and being involved with the Justice System or FACs” – Greg Telford, CEO – Rekindling the Spirit.

“There has been limited cost benefit analysis completed recently outside the Just Reinvest NSW analysis. The figures provided by Just Reinvest show costs per day for 79 adults is \$18,616.35 total cost incarceration per day for

Lismore alone. This equates to \$235 per day per person. In comparison The Buttery costs for residential rehabilitation per bed is \$63 per day. It is nearly 4 times more costly to incarcerate a person than to offer them residential rehabilitation and treatment.

The cost to imprison an Aboriginal and Torres Strait Islander person is even greater with the cost per person of 12 months in prison is \$114, 832, with the derived expenditure.

This is equivalent to a cost per prisoner per day of \$315 for an Aboriginal person.

The facts according to Foundations Recovery Network are as follows:

Initial drug treatment is less expensive than incarceration.

- *Costs related to incarceration are cut because people who are in recovery are less likely to commit expensive crimes or be arrested again.*
- *Because long-term health of each individual will be improved, the cost of healthcare for uninsured patients will be drastically reduced.*
- *Costs of law enforcement and court costs will be cut when crime rates drop and fewer arrests occur*

No matter how expensive treatment is, it's nothing compared to the costs that add up over years of drug addiction, including:

- *Medical care and health costs for overdose, accidental injury under the influence, and chronic illness caused by drug use*
- *Bail, court costs, lawyer fees, and other legal fees caused by drug-related arrest*
- *Lost productivity due to active addiction, including a lowered ability to work and bring in money*
- *Cost of supporting someone who is unable to support themselves*
- *Cost of supporting any children born to the addicted person*
- *Cost of long-term health complications due to substance use, that often appear later in life if a person manages to avoid overdose or immediate illness" – Leone Crayden, CEO, The Buttery.*

Recommendations from the Upper House Inquiry on the Provision of Drug Rehabilitation Services in Regional, Rural and Remote New South Wales that the Committee supports

The Committee supports the following recommendations made at the NSW Upper House Inquiry on the Provision of Drug Rehabilitation Services in Regional, Rural and Remote New South Wales.

Recommendation 1

That the NSW Ministry of Health implement, as a matter of urgency, a population-based planning tool, such as the Drug and Alcohol Service Planning model, to ascertain what rehabilitation services and how many beds are required throughout New South Wales, and in which regions.

Recommendation 2

That the NSW Government significantly increase funding to drug and alcohol-related health services, and use the data gathered through the population-based planning tool as outlined in recommendation 1, to:

- tender for the establishment of more residential rehabilitation services throughout regional New South Wales, including facilities for women and children, Aboriginal people, and young people including those aged 13 to 16
- tender for the establishment of more detoxification services throughout regional New South Wales, including facilities for Aboriginal people and young people
- investigate the benefits of establishing multi-purpose facilities in regional areas that provide detoxification, residential rehabilitation and outpatient services

Committee Comment

“There is nowhere for people under 18 to detox in our region. Sadly, so many of our youth clients and community members are experiencing alcohol and substance use disorder, particularly methamphetamine.” –
Councillor Eddie Lloyd, Committee Chair and Trial Advocate, Aboriginal Legal Service

Committee Comment

“The current challenge with transition from detox to residential rehab is bound in the inequity of available beds and the clear disparity between lengths of stay required for each. It is not that there is a shortage of detox beds, but rather the locations of said beds and the ability to align detox stays with an entry date for a long-term residential rehab. Currently, if a potential participant is located outside of the area they are required to attend a detox facility closer to where they reside before making their way to the residential rehab. This does pose risks for potential clients as they are sometimes required to take an additional day or two to travel in order to take up their rehab bed.

As an example, we have the detox facility here in Riverlands. The next closest dedicated detox beds in NSW are located in Newcastle. The accessibility of adequate detox services is a major problem for regional and rural areas. There is very little supervised in-home detoxification occurring in the area.” - Leone Crayden, CEO, The Buttery.

“Detox facilities is the primary step towards rehabilitation for many people. However, a week-long pharmacological detoxification is only going to rid the individuals system of the substance. To ensure the risk of relapse is minimized, individuals then need to undertake rehabilitation where they can learn new behaviours through cognitive behavioural therapies. It is in detox that many individuals begin to get some clarity and insight and begin to become motivated to get clean. It is vital that this small window of opportunity can be capitalised.

Unfortunately, the utility of our only detox facility is compromised unless there are beds available in residential rehabilitation centres immediately following detox so that the window of clarity of an individual can be capitalized and treatment facilitated.

I recently had a client who undertook a 7-day detox only to be discharged into the community with no supports and of no surprise to me, the individual relapsed and re-offended. That felt like a waste of detox resources and I felt the gap in services let this individual and the community down. Following the relapse and reoffending, the client was bail refused and now has no access to rehabilitation until his eventual release from custody. This could have been avoided if there was a bed available in a rehab.” Councillor Eddie Lloyd, Committee Chair and Trial Advocate, Aboriginal Legal Service.

- fund local social services and Aboriginal Medical Services in regional, rural and remote New South Wales to assist in transporting patients to and from drug and alcohol treatments
- provide incentives for qualified drug and alcohol professionals to relocate to regional areas and to up-skill workers based in regional areas
- work with universities, in collaboration with the Royal Australasian College of Physicians and the Royal Australian and New Zealand College of Psychiatrists, on initiatives to develop more specialists in the drug and alcohol field including specialist from the Aboriginal community

Committee Comment

The committee **does not support** the following recommendation from the Inquiry. The reasons are articulated by the CEO of the Buttery below.

- investigate the efficacy of subsidising beds in regionally-based private, for-profit residential rehabilitation facilities to ensure more people from regional areas can access rehabilitation.

“Private rehabilitation may be a good option especially for those who can afford it and those who can utilise health funds.

However, there is no regulation over the operators who do not use private health funds. No accreditation processes, no quality controls and no evidence that suggest they deliver successful outcomes. Private wellness and retreat type programs are increasing as a choice for many people who want time out.

The programs to work with people with AOD issues should be evidenced based, clinically governed with excellent partnerships with the Primary Health Networks, the NSW Local Health and Districts and industry bodies.

Subsidy for private clinics poses risk of unscrupulous operators entering the market and taking advantage of vulnerable people” – Leone Crayden, CEO, The Buttery

“There is a need for a watchdog to protect vulnerable families from being financially ruined. They need to know what they are buying” – Dian Edwards, Manager, Namatjira Haven Ltd.

Recommendation 3

That the NSW Ministry of Health, as a matter of urgency, establish a central register for New South Wales of all available beds and facilities for drug and alcohol rehabilitation, which:

- includes real-time data concerning wait lists and wait times;
- encompasses private health and medical services;
- is publicly available as a resource for service providers, legal professionals and the community.

Recommendation 4

That the NSW Government conduct a review of the Drug Court and the Magistrates Early Referral Into Treatment program, including the feasibility of establishing them in additional regional areas.

Recommendation 6

That the NSW Government:

- commit to providing funding grants to non-government drug and alcohol-related service providers that run for a minimum of three years, with the option for a two year extension;
- advocate through the Council of Australian Governments for the Australian Government to commit to the same practice.

Committee Comment

The members of our committee agreed that funding for 10 years should be secured. All members vocalised the need for all politicians to play their part in de-politicising this health issue by committing to 10 year long term funding and not funding dependent on who is in power.

“Funding of programs for the Lismore community is an ongoing issue, I have watched over the past twenty years how programs have to change tact to secure funding for another couple of years, then change tact again to secure funds for a further few years. Whilst this is occurring it is difficult for the organisation, to measure its own success of effectiveness on clients, let alone developing the evidence to say it is working well.

With security funding of up to 10 years, services would be able to plan and monitor their programs more effectively, evaluate the evidence that what they are doing works, prepare and align programs with more community participation, and try and get answers coming from the inside out, not the outside in. Not be going cap in hand every few years to another funder, seeking funds for the next few years” – Greg Telford, CEO, Rekindling the Spirit

“Organisational needs

Currently funding for Alcohol and other Drugs residential rehabilitation, community outreach programs are funded from a number of sources including the:

- *Commonwealth with funds through the Primary Health Networks (PHN's) or directly from the Department of Health*
- *State funds primarily through the NSW Ministry of Health*

In most instances there is a competitive tendering process which gives approximately 2-3 week turnaround time to make an application or tender. Funding is often for three years however some funds are for lesser periods such as twelve to sixteen months. In some instances historical funding greater than ten years is only funded on a year-by-year basis.

Another complication is that funded programs may be extended but often organisations are not notified about the extension until as little as a month or two before the end of the program.

This creates further issues in the following areas:

- *Retention of staff*
- *Burden of recruitment and training costs*
- *Staffing and security of tenure, good staff often move on*
- *Unnecessary burden of contracting and renewing contracts for staff*
- *Difficulty in budgeting, cash flow forecasts, Workcover wages estimates.*

Client Needs

Sustainability in service provision is crucial in developing a care plan with regards to continuum of care. Short funding cycles invariably result in service provision changes which are quite often politically motivated and not performance based. These changes then impact on the ability of clients to receive adequate ongoing treatment as the services being offered are consistently changing, creating ever opening gaps that clients fall through.

A stable long term contract in all service areas better supports integration of services and relationship building to develop the pathways of care for clients that provide continuity and stability, which in of themselves are crucial elements in supporting ongoing recovery efforts of clients.

The obvious advantages are also in sustainability and security of workforce which in turn has a positive effect on client's outcomes as a solid stable workforce is much more productive and impacting on client wellbeing than the constant state of uncertainty of 12 month roll over or even 3 year rotating contracts." - Leone Crayden, CEO, The Buttery.

Recommendation 7

That the NSW Government establish a standards framework for the private, for-profit residential rehabilitation industry.

Recommendation 8

That the NSW Government ensure that public housing tenants who undertake residential drug rehabilitation or detoxification, not exceeding 12 months, do not lose their housing while undergoing treatment.

Committee Comment

“There is most definitely a genuine need for reforms within the various housing service providers, policies, procedures and guidelines when they have tenants that have been or are in long-term residential rehab and they still have their housing to return to afterwards. However, no tenant that has undergone residential rehabilitation should have to return to the house where they had been previously experiencing substance use disorder. They deserve a fresh start to their lives and the housing system should ensure they are housed in appropriate housing, in appropriate locations to promote the continued rehabilitation of individuals who need to be surrounded by positive peers and influences.” – Patricia King - Proud
Descendant of Widjabul People Within the Bundjalung Nation and member of Lismore City Council Aboriginal Advisory Group.

Recommendation 9

That the NSW Government

- acknowledge the health, social and economic benefits of prevention of drug and alcohol abuse;
- investigate the efficacy of implementing a state-wide school nurse program which includes targeting young people with preventative action and support.

Recommendation 10

That the NSW Ministry of Health report to the NSW Parliament annually on the progress of the implementation and outcomes of the Good Health – Great Jobs: Aboriginal Workforce Strategic Framework 2016-2020 in regards to the drug and alcohol rehabilitation sector.

Recommendation 11

That the NSW Government investigate the efficacy of establishing a scheme to establish a full time local Aboriginal trainee position alongside every skilled position recruited in areas with a significant Aboriginal population.

Committee Comment

“If the NSW Government could initiate a Traineeship where every service requiring a skilled qualified worker to operate any machinery, service systems or program, took on an Aboriginal Trainee. I am sure that with time we would definitely overcome some of our long-term unemployment problems, besides building self-esteem, and a sense of belonging into a minority group, that have been sitting on the outer since colonisation” –
Greg Telford, CEO – Rekindling the Spirit.

Recommendation 12

That the NSW Government trial adult and youth Koori Courts in various regional New South Wales locations for a period of twelve months and conduct a comprehensive review to determine the appropriateness and need for further Koori Courts in other locations in regional New South Wales.

List of Organisations and Individuals to send our report to

The Committee would like Lismore City Council to write to the following people noting our findings and recommendation for a business case:

- 1. Northern Rivers Joint Organisation;**
- 2. Bundjalung Elders Council;**
- 3. Local Aboriginal Land Councils - Baryulgil, Birrigan Gargle, Bogal, Casino Boolangle, Grafton-Ngerrie, Gugin-Gudduba, Jali, Jana-Ngalee, Jubullum, Muli Muli, Ngulingah, Tweed-Byron, Yaegl.**
- 4. NSW State Local Member for Lismore – Janelle Saffin;**
- 5. NSW Premier Gladys Berejiklian;**
- 6. NSW Attorney General Mark Speakman (also Minister for the Prevention of Domestic Violence;**
- 7. NSW Minister for Corrections David Elliot;**
- 8. NSW Minister for Mental Health, Regional Youth and Women – Bronnie Taylor;**
- 9. NSW Special Minister of State, Minister for the Public Service and Employee Relations, Aboriginal Affairs, and the Arts – Don Harwin;**
- 10. NSW Minister for Local Government – Shelley Hancock;**
- 11. NSW Leader of the Opposition;**
- 12. NSW Shadow Attorney General – Paul Lynch;**
- 13. NSW Shadow Minister for North Coast, Health and Mental Health – Walt Secord;**
- 14. NSW Shadow Minister for Local Government – Peter Primrose;**
- 15. NSW Shadow Minister for Aboriginal Affairs – David Harris;**
- 16. NSW Shadow Minister for the Prevention Prevention of Domestic Violence and Sexual Assault;**
- 17. Federal Member of Parliament for the Page Electorate;**
- 18. The Prime Minister of Australia;**
- 19. Federal Opposition Leader;**
- 20. Relevant Federal Shadow and Sitting Attorney-General Ministers for Health, Indigenous Health, Mental Health, Regional Development, Aboriginal Affairs, Women, Preventing family Violence, Rural and Regional Australia.**

Reports of the General Manager



Report

Subject	Transfer Part of Crown Road to Council - Crown Road adjoining Waterford Park - Eastern Estate, Goonellabah
TRIM Record No	BP21/914:CDR21/1876
Prepared by	Property Officer
Reason	Seeking consent to transfer part of Crown road to Lismore City Council.
Strategic Theme	Our built environment
Strategy	Our land-use planning caters for all sectors of the community.
Action	Contribute to state and federal government planning and related policy and legislation reviews.

Executive Summary

This report seeks a resolution from Council to submit an application to NSW Department of Industry for Ministerial consent to transfer to Lismore City Council part of a Crown road, as described in this report (shaded red in Image 2), to facilitate the development relating to Development Application DA21/392.

Recommendation

That:

1. Council submit an application to NSW Department of Industry requesting part of the Crown road off Taylor Road, Chilcotts Grass, as described in this report, be transferred to Lismore City Council.
2. To meet the criteria of NSW the Department of Industry, the General Manager submit a letter with the application giving consent to the transfer of Crown road as described in this report.
3. Council staff coordinate the timing of the Crown road transfer with a Subdivision Works Certificate for the proposed access road.

Background

Development Application DA21/392 is currently being assessed by Council staff, which seeks consent for use of three land parcels, being:

- 33 Acacia Avenue, Goonellabah (Lot 38, DP 1259703)
- 123 Taylor Road, Chilcotts Grass (Lot 2 DP 1185561), and
- 145 Taylor Road, Chilcotts Grass (Lot 29 DP 704335);

to undertake a staged subdivision creating 117 residential lots, a residual open space lot and associated new roads. Refer to Image 1 below for an aerial locality plan of this development known as Waterford Park, Eastern Estate.

Part of the subdivision's road network (Road 4) is proposed to be located on approximately 6,816m² of Crown road reserve currently zoned RU1 Primary Production. To facilitate this part of the proposed road network, the applicant seeks a section of the Crown road reserve to be transferred to Lismore City Council. Image 2 (below) shows the area of the Crown road proposed to be transferred to Council and Image 3 (below) provides an overall lot and road layout plan of the proposed subdivision.

Image 1 – Aerial locality plan of Development Application (DA21/392) – Waterford Park, Eastern Estate

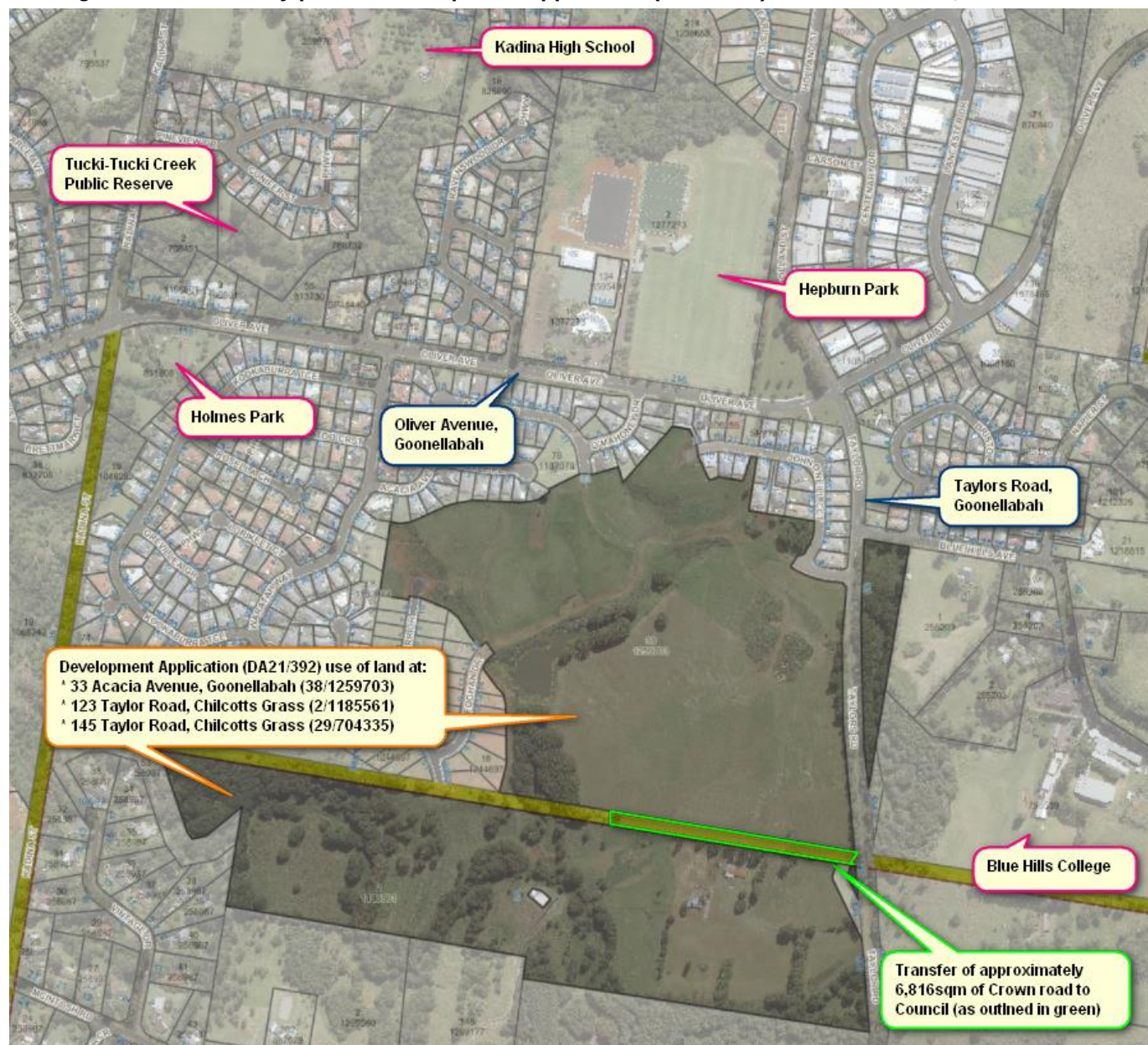


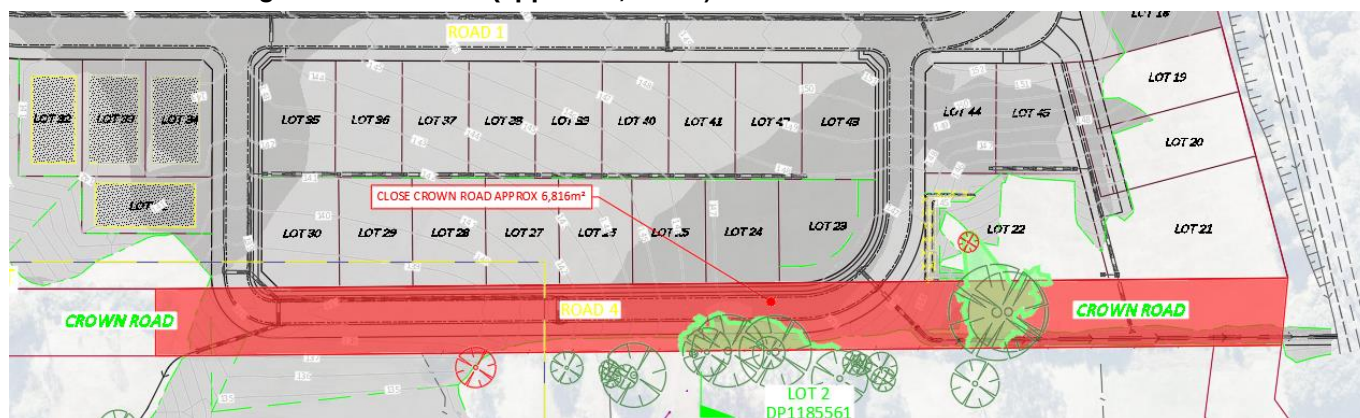
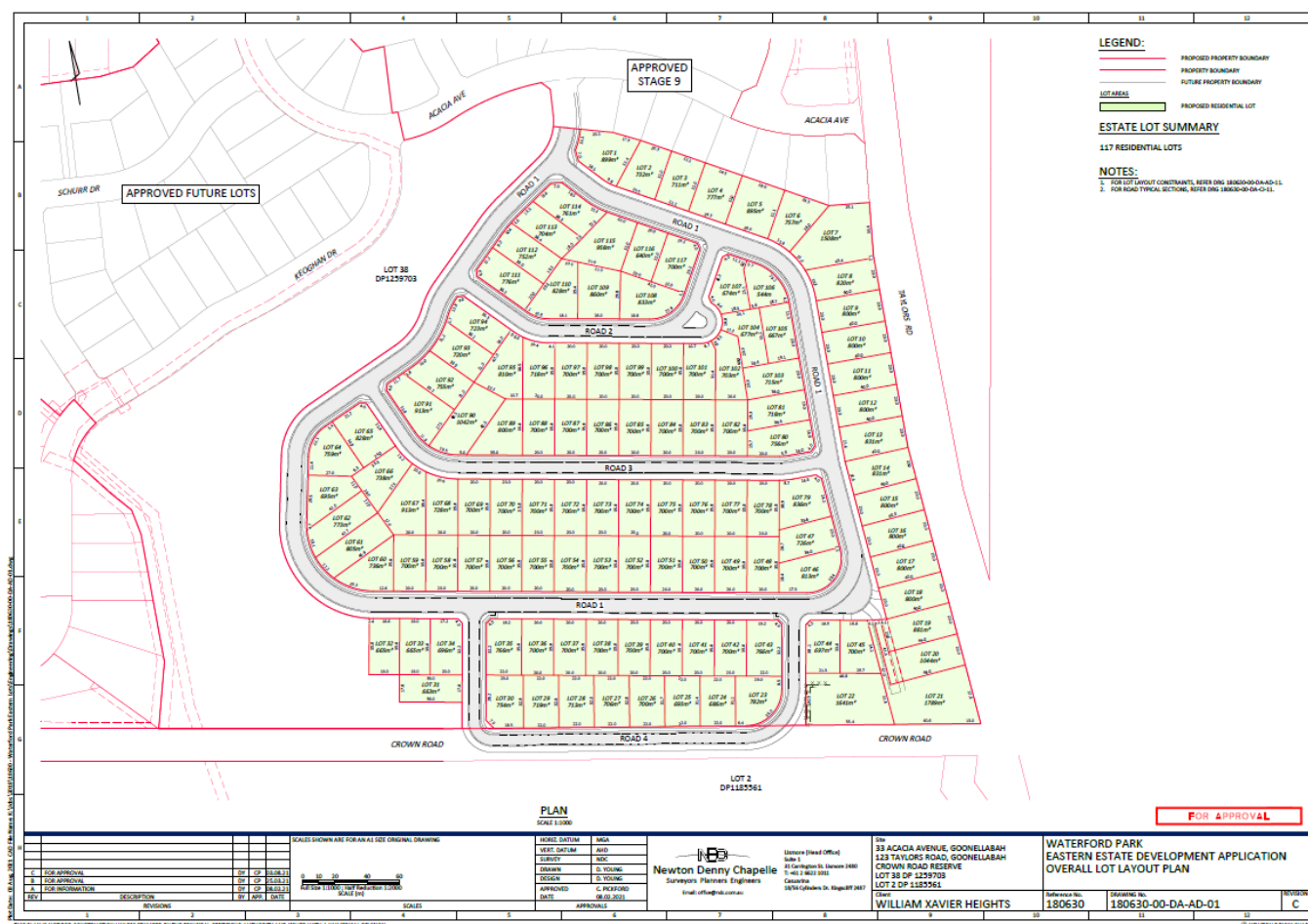
Image 2 - Crown road (approx. 6,816m²) as marked 'Road 4' and shaded red

Image 3 – Proposed subdivision plan showing overall lot layout of Waterford Park, Eastern Estate



The Crown road transfer meets the third listed criteria of Crown land in the attached and web linked [Criteria for transferring Crown roads to council - Crown land in New South Wales \(nsw.gov.au\)](https://www.nsw.gov.au/crown-land/crown-land-transfer-criteria) as roadworks will be required on the Crown road for development consent under the *Environmental Planning & Assessment Act*, 1979. The road transfer will allow Council to regulate the standard to which the road should be established and issue a Construction Certificate as the relevant roads authority under the *Roads Act*, 1993.

Whilst this report recommends Council become the roads authority for the relevant section of road, timing of the transfer will be coordinated and conditional upon the developer obtaining a Subdivision Works Certificate for the proposed development and road construction. This will ensure Council is satisfied with the design and construction plans prior to accepting control and avoid Council unnecessarily taking control in the event the development does not proceed.

Under the *Local Government Act*, 1993 the making of an application to the Minister cannot be delegated. As such, this report seeks a resolution from Council to submit an application to NSW Department of Industry for Ministerial consent to transfer the relevant section of road to Council.

There are no fees payable by Council to lodge a road transfer application. Once Ministerial consent is given to transfer the road, the NSW Department of Industry at its own cost will administer the transfer and publish a notice of the road transfer to Council in the *NSW Government Gazette*. Once the gazette has been published, the road transfer will be formalised to become a Council road/ asset.

Should Council not consent to the Crown road being transferred to Council there is a risk that the subdivision process will be delayed. It should be noted that a Crown road can be transferred to Council without consent. However, it is the practice of the NSW Department of Industry to consult with the affected Council before processing a Crown road transfer in this manner.

Comments

Finance

The recommendation as printed is supported.

Conclusion

For the development and planning reasons noted in this report, Council approval is sought to submit an application to NSW Department of Industry requesting approximately 6,816m² of the eastern end of Crown road adjoining Lot 38, DP 1259703 and as shaded red in image 2 above, to be transferred to Council to facilitate the development relating to Development Application DA21/392.

Attachment/s

1. [Download](#) Criteria for transferring Crown roads to Councils - Crown land in New South Wales

NSW Department of Planning, Industry and Environment (<https://www.dpie.nsw.gov.au/>)



Crown land in New South Wales

Criteria for transferring Crown roads to council

Crown roads are considered suitable for transfer to council or another roads authority (for example Roads & Maritime Services) if they meet one or more of the following criteria:

Criteria	Explanation
A roads authority requests transfer of a Crown road, including for the purpose of Section 44 of the <i>Roads Act 1993</i> (Roads Act).	To initiate the road transfer process, the request by council must be in writing and be accompanied by diagram showing the extent of the road subject to the transfer.
The Crown road provides formed road access to urban/rural areas or provides formed road access within country towns, villages, local communities and public areas.	These roads generally service public traffic. Council may have traditionally maintained or repaired the road and/or named the road for addressing purposes. Transfer of the road allows for administrative arrangements to formally rest with the appropriate roads authority for management as part of their road network.
Road works on a Crown road are proposed by someone, other than the department, who requires development consent under the <i>Environmental Planning & Assessment Act 1979</i> (EP&A Act).	Transfer allows council to regulate the standard to which road access should be established and issue a construction certificate as the relevant roads authority under the Roads Act.
Development consent has been granted by a council that requires a Crown road to service a development that increases traffic on the road.	A key issue influencing the use of affected Crown roads is incremental traffic-increasing developments and local council's role in development consent, planning and public road management. The responsibility for managing these roads rests with council as the relevant roads authority.
A Crown road requires maintenance to a specified standard as per a condition of development consent.	Transfer places the onus on council, as the consent authority, to manage the road in accordance with the requirements of the development approval. If standards were not specified by council as a condition of consent, transfer may still apply on the basis that the Crown road already conformed to council's access standards to service the development.
A Crown road was constructed or is being maintained by a council to facilitate access as part of its local road network, including drainage structures such as bridges or culverts.	Transfer places council in a position to formally manage the road in accordance with pre-existing access and traffic conditions. This includes road standards requirements and administration of compliance against these requirements.

Criteria	Explanation
Construction or upgrade of a Crown road is required to meet council standards.	Transfer delivers outcomes that are consistent with council's role in managing public roads for residential and rural needs.
A council objects to the closure of a Crown road on the grounds that the road is required for public access.	Transfer preserves the road for current and future access needs.
The department will not support council's objections to a Crown road transfer where the reason for objection is that the road is not generally used by the public.	
For department-initiated road transfers, the following claims are also not considered as valid reasons for objection:	
- road condition — where council objects to the transfer on the basis that the road is in a state of disrepair or does not conform to council minimum standards - financial implications — where council objects to the transfer based on (potential) costs incurred. Local councils have the ability to levy funds through development contributions, rates and grants for road repair and maintenance.	

For more information councils should refer to the [Administration of Crown roads policy](https://www.industry.nsw.gov.au/data/assets/pdf_file/0004/164497/IND-O-250-Administration-of-Crown-roads-policy.pdf) (https://www.industry.nsw.gov.au/data/assets/pdf_file/0004/164497/IND-O-250-Administration-of-Crown-roads-policy.pdf) and [guideline](https://www.industry.nsw.gov.au/data/assets/pdf_file/0017/164033/Administration-of-Crown-roads-guideline.pdf). (https://www.industry.nsw.gov.au/data/assets/pdf_file/0017/164033/Administration-of-Crown-roads-guideline.pdf).

If you have a Crown road transfer enquiry email cl.enquiries@crowland.nsw.gov.au (<mailto:cl.enquiries@crowland.nsw.gov.au>).

Page link: <https://www.industry.nsw.gov.au/lands/access/roads/transfer-to-council-criteria>

Report

Subject	Classification of Drainage Reserve to be vested in Council as Operational Land - Alternative Way, Nimbin
TRIM Record No	BP21/945:CDR21/1909
Prepared by	Property Officer
Reason	To obtain a resolution to classify public land following its dedication to Council.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure well-managed buildings, land and property assets.

Executive Summary

The purpose of this report is to classify land to be vested in Council as Operational land.

Recommendation

That in accordance with Section 31 of the *Local Government Act*, 1993 the land described as Lot 91 in the stamped approved subdivision plan for DA12/153 as annexed to this report and marked with the statement 'Drainage Reserve' be classified Operational land.

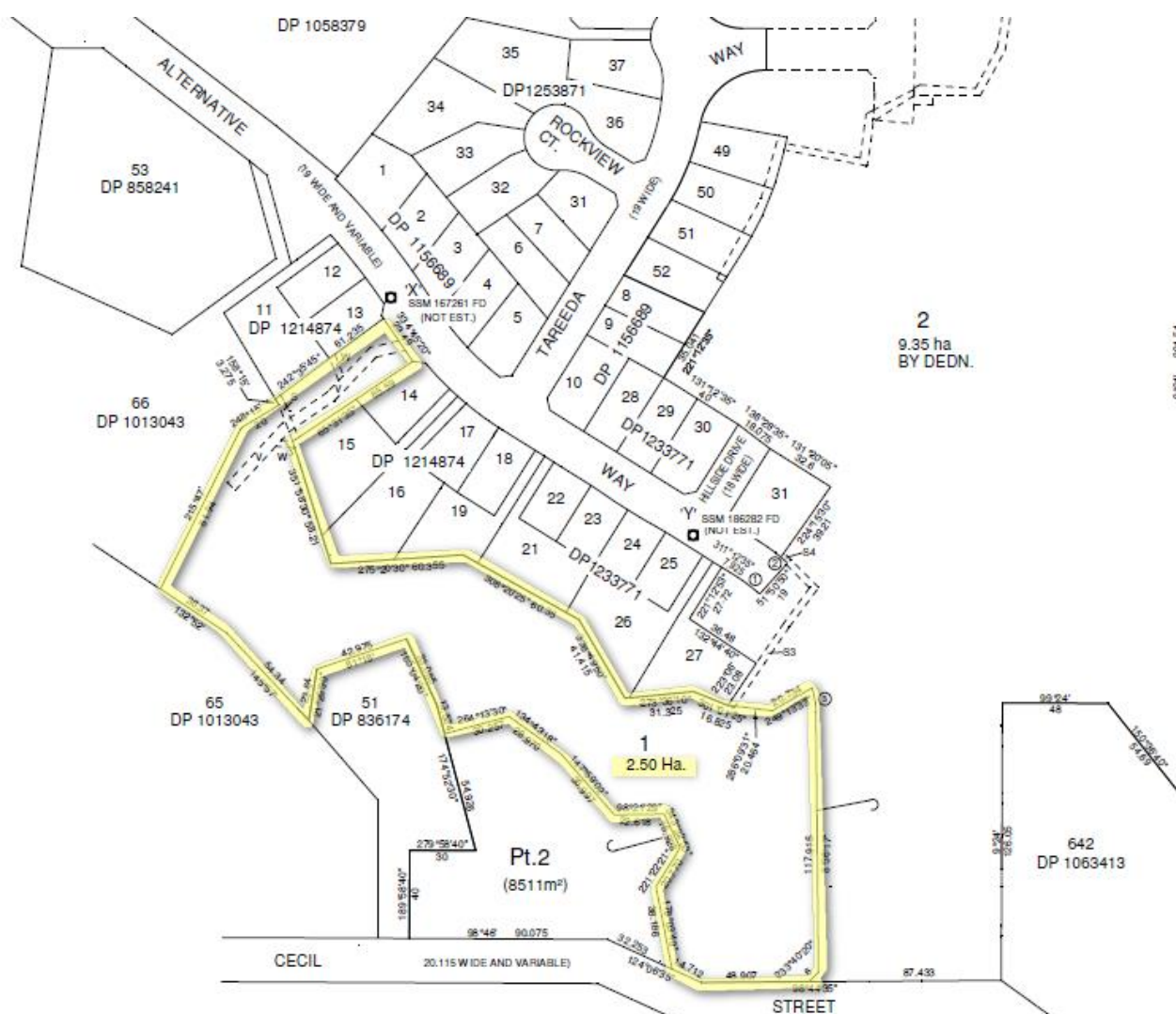
Background

In accordance with Section 49(3) of the *Local Government Act*, 1993 (LG Act), under Development Consent 5.2012.153.5 (DA12/153) Lot 91 will become vested in Council as a Drainage Reserve when the plan is registered.

Image 1 – Stamped approved plan showing Lot 91 marked as 'Drainage Reserve'



Image 2 – Draft linen plan providing a more accurate area of Lot 91 (note: described as Lot 1)



Classification of Public Land

The LG Act defines public land as any land vested in or under Council control and is managed under the LG Act based on its classification. Classification of public land may occur either by an amendment to the Lismore Local Environment Plan (LEP) or by resolution of Council when first acquired. Councils are encouraged to classify land by Council resolution where suitable.

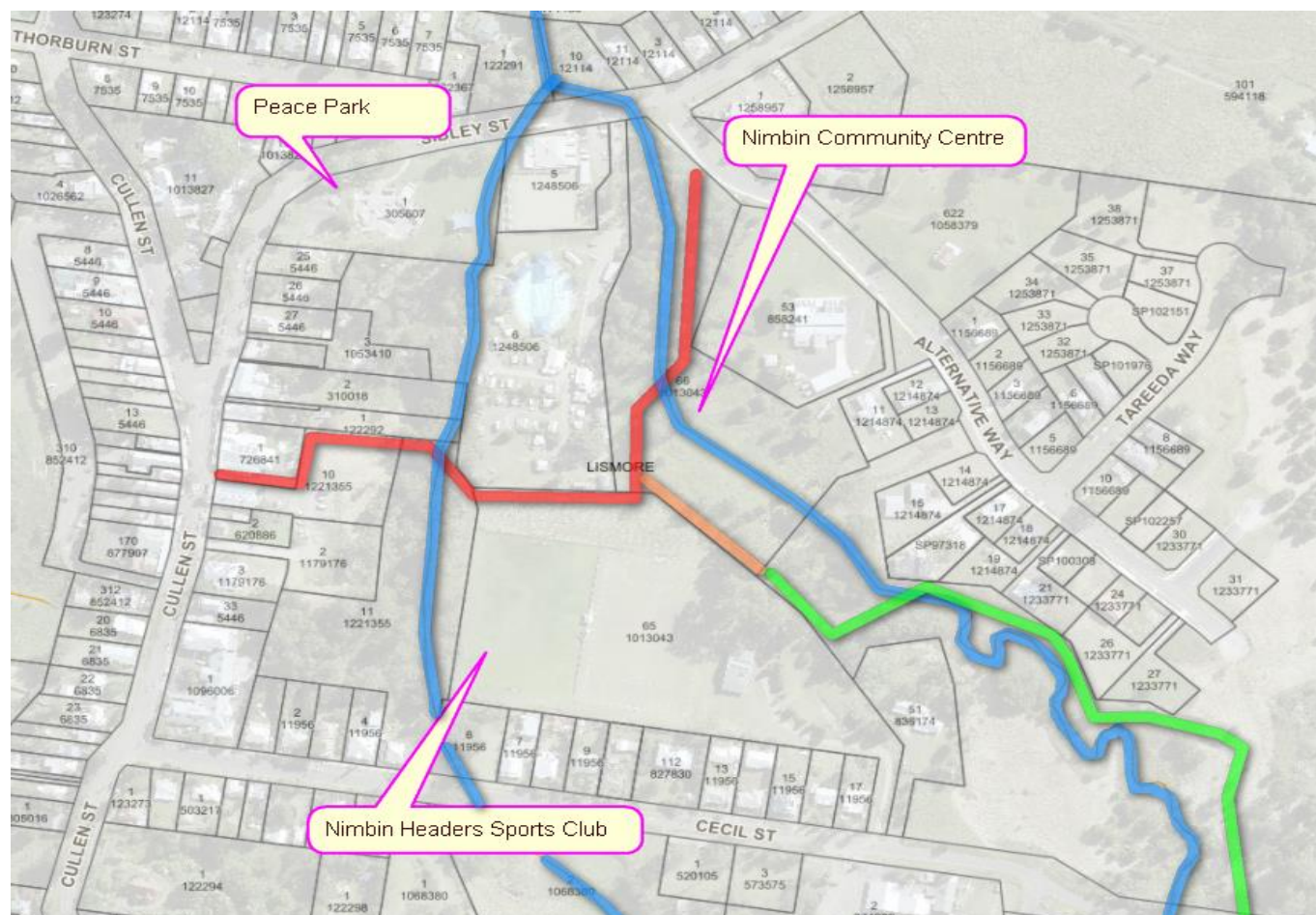
The purpose of classification is to identify clearly that land which is made available for use by the public (Community) and that land which need not (Operational). How public land is classified determines the ease or difficulty a Council can have in dealing with the public land. It also provides for transparency in Council's strategic asset management.

Section 31 of the LG Act stipulates any land acquired by Council that is not classified before it is acquired or within three months after it is acquired, will default to Community land. Any future reclassification would then require an amendment to the LEP. As such, this report requests Council to classify Lot 91 now as Operational, at a time before it is acquired. Following the attached and web link to [Registrar General's Guidelines for drainage reserves](#), the Operational land classification is suggested as appropriate because it is consistent with the use of the land for drainage purposes.

Nimbin Rainbow Road Walking Track

Image 3 below identifies where land within Lot 91 (as outlined in green) is proposed to form part of the footway route for the Nimbin Rainbow Road Walking Track.

Image 3 – Aerial locality image with concept plan of Nimbin Rainbow Walking Track



- Water course
- ROW from Nimbin School of Arts through to Alternative Way
- Cecil Street to connection with ROW
- Proposed walking track route through Lot 91, being 'Drainage Reserve' to be vested in Council

With respect to the proposed footway walking track through Lot 91, Council is advised that Section 51 of the LG Act provides:

Land held by council for drainage purposes may be used for any other purpose that is not inconsistent with its use for drainage purposes, subject to the [Environmental Planning and Assessment Act 1979](#) and any environmental planning instrument applying to the land.

Therefore, provided the footway does not impede with the drainage infrastructure, there is no impediment for LG Act purposes of having the footway on the drainage reserve. However, as noted in this section, Council will still need to consider planning aspects including legislation and instruments which apply to the land to ensure the footway use is permissible, or whether a DA is required etc.

Comments

Finance

The recommendation as printed is supported.

Other Staff Comments

Strategic Planning Coordinator

Support is given with respect to land classification as Operational. Apart from Lot 91 being noted as a drainage reserve, which suggests the Operational classification is more appropriate, this classification provides greater flexibility if, for example, there needs to be subsequent boundary adjustments in connection with the proposed Rainbow Road Walking Track. If in the future there was a desire for the land to be reclassified to Community, it then simply requires a Council resolution under Section 33 of the LG Act, rather than a lengthy LEP amendment process.

Public Consultation

Council gave public notice of its intention to classify the land as Operational, pursuant to Sections 31 and 34 of the LG Act. The proposal was advertised in *Local Matters* on 8 December 2021, and no submissions of objection were received.

Conclusion

Classification of the land as Operational is the appropriate classification under the LG Act as it is consistent with the use of the land for drainage purposes. It is recommended Council classify the land described as Lot 91 in this report as Operational land.

Attachment/s

1. [↓](#) Registrar General's Guidelines Drainage Reserves

rg-guidelines.nswlrs.com.au/deposited_plans/reserves_public_drainage/drainage_reserves



Registrar General's Guidelines

[Deposited plans](#) | [Strata schemes](#) | [Community schemes](#) | [Water dealings](#) | [Deeds](#) | [Land dealings](#) | [e-Dealings](#)

On 11 October 2021, the Real Property Amendment (Certificates of Title) Act 2021 commenced, which abolished the Certificates of Title (CTs) and the control of the right to deal (CoRD) framework. All existing CTs have been cancelled and CTs will no longer be issued. Existing CTs will not need to be produced, and CoRD holder consent will not be required, for a dealing or plan to be registered. All existing Guidelines subject to this change are currently being reviewed and will be updated to reflect these changes. For further information regarding the abolition of CTs, please see <https://www.registrar-general.nsw.gov.au/property-and-conveyancing/eConveyancing/abolition-of-certificates-of-title>

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Drainage reserves

Section 49(3) *Local Government Act 1993* provides that on registration of a plan on which land is marked with the statement 'Drainage Reserve' the land vests in Council in fee simple for drainage purposes. As a consequence, a folio of the Register is automatically created in the name of the Council when the plan is registered. **The drainage reserve comprises 'Operational Land' and may be dealt with in the same manner as other operational land standing in the name of the Council.** Section 49(3) replaced Section 398 *Local Government Act 1919* which had served a similar function since 15 June 1964.

Between 24 November 1922 and 15 June 1964 a drainage reserve was not automatically vested in the Council on registration of the plan. The Council may either direct that the reserve be transferred or conveyed to it or, alternatively, the Council may publish a notice in the Government Gazette notifying that the land is vested in it pursuant to ss.50(3) and (4) *Local Government Act 1993*. Subsequent to the gazettal the Council must lodge a [Request form 118](#) (PDF 131 KB) to be registered as proprietor of the drainage reserve.

Prior to 24 November 1922 any dealing relating to a drainage reserve shown in a plan of subdivision will not normally be registered. See Baalman & Wells Para. 310-200.

New deposited plans intending to create a drainage reserve must:

- › have the Statement 'Drainage Reserve' shown within the appropriate lot, and
- › bear a statement of intention to create Lot as a Drainage Reserve in the Statements Panel of the Administration Sheet
- › be signed by the persons specified in s.195D *Conveyancing Act 1919*
- › bear a completed subdivision certificate if the drainage reserve creates new boundaries.

Note 1 The certificate of title for the new drainage reserve is created in the name of the council. A 'DOR' notification is entered in the second schedule:

LAND IS DEDICATED AS A DRAINAGE RESERVE

Note 2 Except when the land being subdivided already stands in the name of the council all encumbrances including mortgages, lease, caveats etc recorded on the subdivided title will not be carried forward onto the new certificate of title for the Drainage Reserve. In all instances any affecting interests including easements will be recorded on the new title.

Notification in the Government Gazette

A council may dedicate an existing parcel of land as a drainage reserve by preparing an appropriate notification in the Government Gazette pursuant to s.46C *Real Property Act 1900*. If the parcel is Torrens Title land a [Transfer for Public Reserve or Drainage Reserve form 01TD](#) (PDF 107 KB) (if the parcel stands in the name of the Council) or an [Application form 04RP](#) (PDF 672 KB) must then be lodged to update the certificate of title.

Report

Subject	Partial Land Acquisitions - Fixing Country Bridges and Bridge Renewal Program Grant funded Projects
TRIM Record No	BP21/955:AF21/4106
Prepared by	Property Officer
Reason	To obtain a resolution of Council to acquire land required for reconstruction of bridges and road purposes.
Strategic Theme	Our built environment
Strategy	Our city and village services are well managed and maintained.
Action	Provide a road network that is safe and serviceable.

Executive Summary

The following bridge projects are funded through the NSW Fixing Country Bridges Program and the federally funded Bridge Renewal Program:

- Greens Bridge on Stony Chute Road, Nimbin
- Pearces Creek Bridge on Eltham Road, Pearces Creek
- Ridgewood Bridge on Mackie Road, Rosebank
- Walsh Bridge on Rosehill Road, Tullera.

The projects are funded for the 2021/22 financial year and requires Council to acquire land for road widening purposes to facilitate the reconstruction of the bridges and associated road realignment works.

This report recommends Council endorse the land acquisitions so that the projects can proceed as scheduled.

Recommendation

That:

1. Council endorse the partial land acquisitions for road widening purposes associated with bridge reconstruction projects, in accordance with the concept plans attached to the report for:
 - a) Part Lot 24, DP 702911; known as 55 Stony Chute Road, Nimbin
 - b) Part Lot 1, DP 250120; known as 1078 Eltham Road, Pearces Creek
 - c) Part Lot 300, DP 863374; known as 203 Mackie Road, Rosebank
 - d) Part Lot 301, DP 863374 known as 2 Hull Road, Rosebank
 - e) Part Lot 8, DP 755747; known as 54 Rosehill Road, Tuncester
 - f) Part Lot 1, DP 828423; known as 329 Kyogle Road, Tuncester
2. The landowners' costs associated with the land acquisitions be borne by Council including but not limited to survey, Council fees, landowners' reasonable legal and valuation fees, and plan registration fees.
3. The General Manager be delegated authority to negotiate the compensation payable to the landowners and sign all documents necessary to acquire the lands necessary for road purposes.

Background

Council has received funding for various bridge reconstruction and associated road realignment projects. These projects are jointly funded through the Fixing Country Bridges Program (a NSW Government initiative that aims to create a new legacy for our local road network, enabling councils to replace hundreds of timber bridges in poor condition and better connect regional and rural communities), and the federally funded Bridge Renewal Program.

Initial site surveys have revealed that road widening is required to facilitate the reconstruction of:

- Greens Bridge on Stony Chute Road, Nimbin - impacting one property (acquisition of approx.. 320m²)
- Pearces Creek Bridge on Eltham Road, Pearces Creek - impacting two separate properties (one (land acquisition of approx.. 2,003m² in Lismore LGA, and one in Ballina LGA)
- Ridgewood Bridge on Mackie Road, Rosebank – impacting two separate properties (acquisition of approx.. 294m² and 606m²)
- Walsh Bridge on Rosehill Road, Tullera – impacting two separate properties (acquisition of approx.. 762m² and 25m²).

The proposal is to acquire land for road widening purposes as shown on the attached plans by deed of agreement and plan of subdivision signed by all parties. The alternative is to acquire the land by compulsory process or to abandon/ redesign the projects (if possible).

Staff have been in discussions with the relevant landowners, who are in agreement in principle with the process to negotiate on the proposed acquisitions. A resolution of Council is required to progress to formal negotiations and finalise an agreement.

Legislative Framework

Council as roads authority is empowered under Section 177 of the *Roads Act*, 1993 to acquire land for any purpose of that Act. Section 377 of the *Local Government Act*, 1993 provides that a Council's power to acquire land is 'non-delegable'. This means that only the Council can decide to acquire land by an appropriate resolution. The procedure which must be followed by an authority acquiring any land other than land offered for public sale is set out in the *Land Acquisition (Just Terms Compensation) Act*, 1991.

Funding

These projects are jointly funded through Fixing Country Bridges Program and the federally funded Bridge Renewal Program. The costs associated with acquiring the required land will be funded by the grant programs.

Comments

Finance

The recommendation as printed is supported.

Other staff comments

Not applicable.

Public consultation

Public consultation beyond negotiations with the landholders is not required. Staff will make all efforts to acquire the land by agreement. In the event agreement cannot be reached, a report will be brought back to Council to consider its options.

Conclusion

A Council resolution endorsing the land acquisition for road purposes is required to progress the Bridge reconstruction/ road related projects as shown in the attached plans.

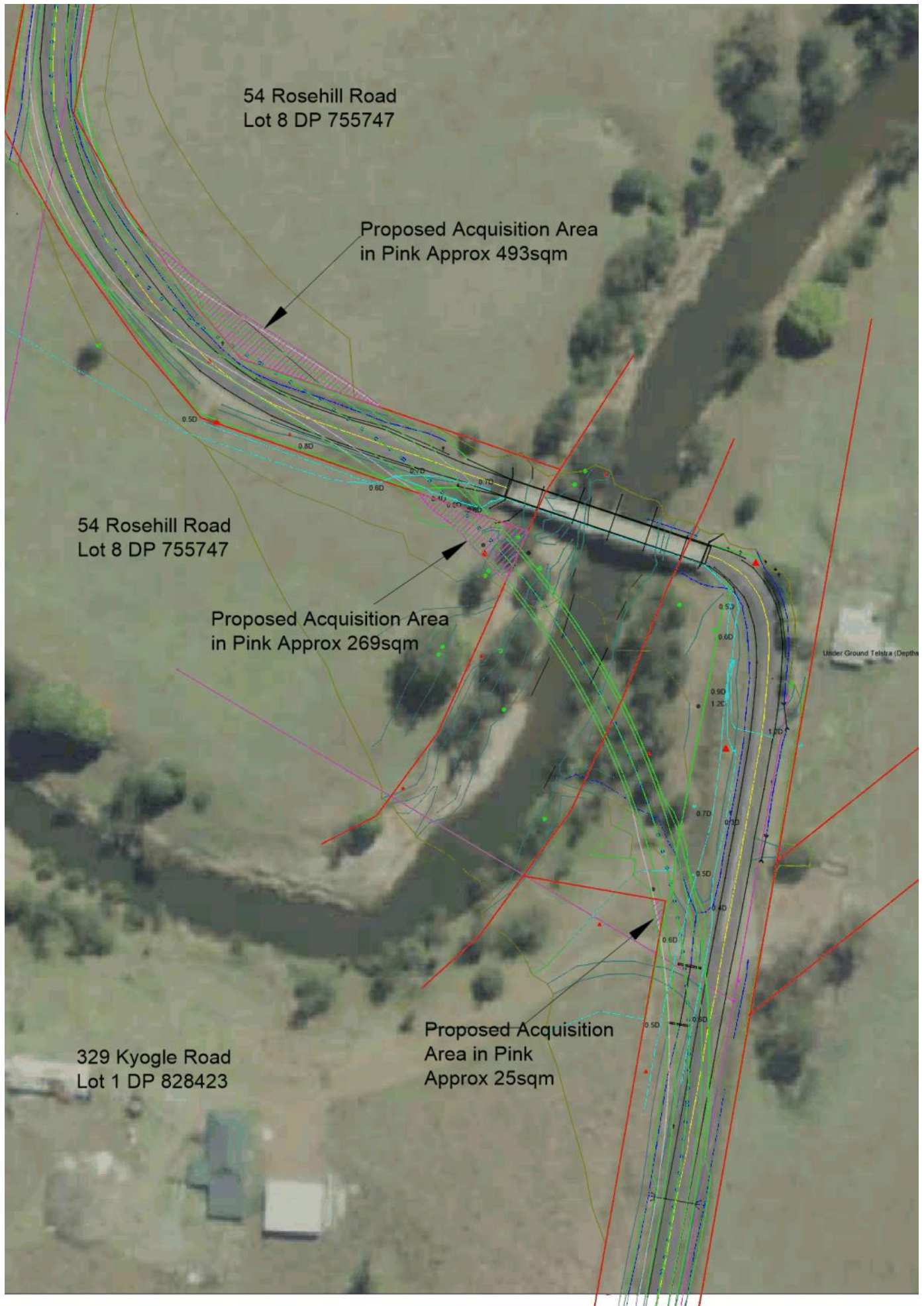
Attachment/s

1. [↓](#) Greens Bridge Acquisition Plan
2. [↓](#) Pearces Creek Acquisition Plan
3. [↓](#) Ridgewood Bridge Acquisition Plan
4. [↓](#) Walsh Bridge Acquisition Plan









Report

Subject	Delivery Program - Progress Report - Quarter 2 - October to December 2021
TRIM Record No	BP21/968:EF18/696
Prepared by	Acting Corporate Planning & Engagement Coordinator
Reason	In accordance with the Local Government Act 1993, the General Manager is required to provide Council with a report on Delivery Program implementation at least every six months.
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The attached Progress Report provides a summary of progress against each of the activities in Council's combined Delivery Program 2017–2021 and Operational Plan 2021-22 between October and December 2021. The ongoing impact of COVID-19 is the leading cause of actions being reported as off track or deferred. Council staff are actively taking steps to mitigate these impacts within available resources and communicate any material services delivery impacts with key stakeholders.

Recommendation

That Council receive and endorse the attached Delivery Program Progress Report for the period October to December 2021.

Background

The Integrated Planning and Reporting (IP&R) Framework is the set of tools that Council uses to design and deliver a portfolio of services and projects that work towards the community's vision and goals for the Lismore local government area. In accordance with this framework, we currently have in place a Community Strategic Plan 2017-2027, prepared by Council on behalf of the community, which sets out the community's vision for Lismore by 2027; and a combined Delivery Program 2017-2021 (Council's commitment to the community) and Operational Plan 2021-22.

The *Local Government Act 1993* requires the General Manager to provide a report on the progress of implementing Council's Delivery Program at least every six months. We currently report progress quarterly, aligned with Quarterly Budget Review Statements, so that Council can consider its budget performance in conjunction with progress against the activities that this budget pays for. The attached progress report covers the period 1 October – 31 December 2021.

The report includes traffic light status updates with supporting commentary for each action in the Operational Plan 2021/22. It also includes progress for the year to date for measures against each operational activity. As measures were introduced this financial year for the first time, there are some areas of inconsistency in the report for some measures. As an organisation, we are on a continuous improvement journey with the way we report progress, and it is important to note that significant progress has been made this financial year. As we continue to uplift the role and discipline of IP&R in the organisation, we anticipate these areas of inconsistency will significantly decrease.

In terms of operational performance, of the 169 actions, 129 (76%) are reported as on track (green). We are actively taking steps to recover 28 actions reported as amber, and a further 6 actions have been deferred or cancelled (blue). At this time, there are no actions reported as needing critical attention (red).

The ongoing impact of COVID-19 on resourcing or delivering services is the leading cause of actions being deferred or off track. It is anticipated that rolling staff shortages and supply chain disruptions will continue to impact some services and projects for the remainder of the financial year. These impacts will be managed as best as possible within available resources, and Council staff will continue to communicate with Council and the community regarding any material changes to service levels.

Comments

Finance

Not required

Other staff comments

Not required

Public consultation

The report will be placed on Council's website as well as the Your Say Lismore Engagement portal for community access.

Conclusion

This Progress Report details progress against the operational activities and projects as set out in the Imagine Lismore Delivery Program 2017-2021/Operational Plan 2021-22 for the period October to December 2021.

Attachment/s

1. [🔗](#) Delivery Program Progress Report Q2 - October to December 2021 (Over 7 pages)

Report

Subject	Tender T2020-11 - Lismore City Regional Sports Hub - 140 Seat Covered Grandstand
TRIM Record No	BP22/13:T20/11
Prepared by	Coordinator - Property Maintenance
Reason	To inform Council of submissions received and provide recommendation for adoption.
Strategic Theme	An inclusive and healthy community
Strategy	Our sporting facilities and recreational spaces encourage active and passive community participation.
Action	Provide high-quality sporting facilities to meet the diverse needs of the Community.

Executive Summary

Lismore City Council received grant funding to undertake a major upgrade of the Lismore Regional Sports Hub Oakes Oval and Crozier Field precinct, which will provide new facilities to meet the specific needs of teams, coaches, players, media and spectators as a regional and state sporting destination.

This major sports precinct will deliver the vision, strategies and objectives of the Office of Sport's Strategic Plan 2016-2020, the North Coast Sport and Active Recreation Plan 2017 and the North Coast Regional Plan 2036 by enhancing the role of Lismore as a Regional Sports Hub. The project has been developed and designed in accordance with the Office of Sport's Regional Sports Hub Model, facility plans of associations and community feedback on the future of the ovals.

The purpose of this tender is to select a suitably qualified company with the capability and experience for the design and construction of a 140 seat covered grandstand for the Lismore City Regional Sports Hub located at the Oakes/Crozier precinct, and to provide the best value for money for Lismore City Council.

The attached confidential tender evaluation report details the evaluation process undertaken for the three tenders received and provides a recommendation to Council to determine the tender.

Recommendation

That:

1. In accordance with Clause 178(1)(a) of the *Local Government (General) Regulation 2005*, Council accept the tender from Steel Post and Rail Pty Ltd for Tender T2020-11 Lismore City Regional Sports Hub – 140 Seat Covered Grandstand, for the sum of \$382,045, excluding GST.
2. Council authorise the General Manager to finalise and execute the contract and any other documentation required to give effect to this resolution.

Background

The total cost of the Lismore Regional Sports Hub Oakes and Crozier Field precinct upgrades is \$12.801 million, comprising the following budgets:

• Building Better Regions Fund BBRF73408	\$ 5.999 million
• Regional Sports Infrastructure Fund	\$ 4.5 million
• Stronger Country Community Fund SCCF2-0925 & 0962	\$ 0.402 million
• Lismore City Council contribution	<u>\$ 1.9 million</u>
	\$12.801 million

The project involves building new facilities to meet the specific needs of teams, coaches, players, media and spectators as a regional and state sporting destination. It is the next stage of development of the facility following the major upgrade to the Oakes Oval playing surface and associated works in 2017-18.

The purpose of this tender is to select a suitably qualified company with the capability and experience for the design and construction of a 140 seat covered grandstand. The grandstand will be similar to the one constructed to the north of the main grandstand as part of the works completed in 2017-18.

The attached confidential tender evaluation report provides details of the assessment of submissions and scoring of each criteria.

Comments

Finance

The recommendation within the tender evaluation report, as printed, is supported.

Other staff comments

Not required.

Public consultation

Not required.

Conclusion

The tender evaluation panel recommends the contract for T2020-11 - Lismore City Regional Sports Hub – 140 Seat Covered Grandstand, be awarded in line with the recommendations provided in the confidential tender evaluation report.

Attachment/s

1. Tender Evaluation Report - T2020-11 - 140 Seat Covered Grandstand - *This matter is considered to be confidential under Section 10A(2) (d i) of the Local Government Act, as it deals with commercial information of a confidential nature that would, if disclosed prejudice the commercial position of the person who supplied it*

Report

Subject	Tender T2021-27 - Pedestrian Spine Construction - Lismore City Hall to Wilsons River
TRIM Record No	BP22/17:T21/27
Prepared by	Project Officer
Reason	To award T2021-27 to the preferred tenderer for the construction of a pedestrian pathway connecting the Lismore City Hall to Riverside Park through Heritage Park.
Strategic Theme	An inclusive and healthy community
Strategy	Our sporting facilities and recreational spaces encourage active and passive community participation.
Action	Provide high-quality open spaces, parks and reserves.

Executive Summary

The 'Lismore City Hall to Wilsons River Pedestrian Spine' project is fully grant funded as part of the \$1.5M "Revitalisation of the Lismore CBD Project" by the NSW Government (Department of Planning, Industry and Environment). The project involves the creation of a pedestrian spine pathway connecting Lismore City Hall on Molesworth Street to the Wilsons River through Heritage Park.

Tender T2021-27 – Pedestrian Spine Construction Lismore City Hall to Wilsons River (Revised) was undertaken to select a suitable contractor to undertake construction works on the pedestrian spine, including the construction of a concrete footpath, raised boardwalk and decking and lighting.

The attached confidential tender evaluation report details the evaluation process followed for the tenders received for T2021-27 and provides a recommendation to Council to determine the tender.

Recommendation

That:

1. In accordance with Clause 178(1)(a) of the *Local Government (General) Regulation 2005*, Council accept the tender from Desire Constructors Pty Ltd for Tender T2021-27 Pedestrian Spine Construction – Lismore City Hall to Wilsons River, for the sum of \$292,282.66, excluding GST.
2. Council authorise the General Manager to finalise and execute the contract and any other documentation required to give effect to this resolution.

Background

Council received \$390,000 in grant funding from NSW Government for the design and construction of a “pedestrian spine” pathway connecting Lismore City Hall to the Wilsons River as part of the \$1.5M CBD Revitalisation Project.

Optional Additional Items

As part of the Request for Tender, tenderers were asked to provide prices on a number of Optional Additional Items in a separate schedule. These costs did not form part of the main tender assessment above.

Tender Assessment

The attached confidential tender evaluation report provides details of the assessment of submissions and scoring against each criteria.

Comments

Finance

The recommendation within the tender evaluation report, as printed, is supported.

Other staff comments

Procurement

Tendering process has been followed and considerations in this report are supported.

Public consultation

Not applicable.

Conclusion

The tender evaluation panel recommends the contract for T2021-27 – Pedestrian Spine Construction – Lismore City Hall to Wilsons River, be awarded in line with the recommendations provided in the confidential tender evaluation report.

Attachment/s

1. Confidential Tender Evaluation Report T2021-27 - *This matter is considered to be confidential under Section 10A(2) (d i) of the Local Government Act, as it deals with commercial information of a confidential nature that would, if disclosed prejudice the commercial position of the person who supplied it*

Report

Subject	Investments - November 2021, December 2021 and January 2022
TRIM Record No	BP22/32:EF21/92
Prepared by	Management Accountant
Reason	Required by Local Government Act 1993, Local Government (General) Regulations 2005 and Council's Investment Policy
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

Investments as of 31 January 2022 are estimated to be \$103,012,000.

The interest rate reported for January 2022 is estimated to be 0.45% which is above the 90 Day Bank Bill Index of 0.07%. The final interest return may vary due to actual returns achieved on investments advised after month end.

Recommendation

That the report be received and noted.

Background

The *Local Government Act, 1993* (Section 625), *Local Government (General) Regulations 2005* (Clause 212) and Council's Investment Policy requires a monthly report be submitted to Council on investments. The report is to include the source and amount of funds invested, investment portfolio performance for the period and a statement of compliance in relation to the requirements of the *Local Government Act, 1993*.

Report on Investments

• Confirmation of Investments – at Market Value – 31 October 2021	\$ 97,927,000
• Confirmation of Investments – at Market Value – 30 November 2021	\$ 101,597,000
• Confirmation of Investments – at Market Value – 31 December 2021	\$ 101,712,000
• Estimated Investments – at Market Value – 31 January 2022	\$ 103,012,000

Investments increased from the time of writing the October Report to the end of October 2021 by \$1.90 million. This was due to the receipt of grant funds from Transport for NSW for works carried out during September of \$2.40 million, Business Activity Statement Refund from the Australian Taxation Office of \$642,000 along with water rates instalments due late October, less payment of creditors made towards the end of the month.

Investments increased by a further \$3.67 million during November 2021. This was due to further grant funds being received from Transport for NSW for works carried out during October of \$2.00 million, Quarter 2 Instalment of Financial Assistance Grants of \$863,000, Business Activity Statement Refund from the Australian Taxation Office of \$342,000 along with the second instalment of rates due the end of November offset by the payment of staff costs and creditors during the month.

Investments only increased by \$115,000 during December 2021. Major funds received during December were the receipt of grant funds from Transport for NSW for works carried out during November of \$2.24 million, proceeds from sale of property \$821,500, Nimbin Walking Trail grant funds \$636,600 and Lismore Employment Lands Grant milestone payment \$2.18 million offset by routine payments to creditors, loan repayments and staff costs that were required to be made during this time.

Investments increased by a further \$1.30 million during January 2022 due to the receipt of the Business Activity Statement Refund from the Australian Taxation office of \$522,100 along with the quarterly contribution of funds towards Richmond Tweed Regional Library from member councils of \$1.50 million offset by creditor and staff payments made during the month.

The current rate of return on investments for January 2022 is estimated to be 0.45% using actual returns where available, and estimates based on the previous period balances and interest rates. This is above the 90 Day Bank Bill Index of 0.07%.

The estimated interest earned for January 2022 is \$40,167. Estimated interest earned to date is \$274,910 which is more than the pro rata 2021/22 budget of \$265,883. This is a favourable variance of \$9,027. The current investing environment is still complicated with liquidity levels still high for many institutions.

Compliance with Policy Requirements

The current investment policy was adopted by Council in May 2020. This policy shows a move towards the framework suggested by TCorp to comply with their borrowing requirements into the future.

A plan to move towards the policy requirements is being followed, but as can be expected, this is taking some time, especially in the current COVID climate. As investments come due, wherever possible they are moved to comply with the current policy. No investment will be broken early to fit within the required framework.

The following is a summary of where Council's investments currently sit in relation to the adopted policy requirements:

Long Term Rating	Maximum Portfolio Limit	Current Holding	Divestment Required
AAA	100%		
AA+ to AA-	100%	48%	
A+ to A	100%	16%	
A-	40%		
BBB+	20%	16%	
BBB	10%	10%	
BBB- and below – Local ADIs	5%	4%	
BBB- and below - other	5%	6%	1%
TCorp	100%		

Fossil Free (Ethical) Investments

As part of the current policy framework and within the limits of prevailing Legislation, Council's investments will be made in consideration of the principals of ethical investment management.

To meet the adopted Investment Policy requirements, the holdings in some institutions that are fossil fuel free have been divested as they do not meet the rating criteria. Investments in institutions that are not fossil fuel free but provide green term deposits and bonds are continually being investigated and will be considered within the investment framework as they become available and fit within the policy criteria.

Council currently holds \$4 million in Commonwealth Bank Green Term Deposits.

Following is a summary of the movement:

Type of Investment	As reported for October 2021		As reported for January 2022	
	Value of Investments	% of Portfolio	Value of Investments	% of Portfolio
No Investment in Fossil Fuel Industry	\$41,000,000	43%	\$37,000,000	36%
Investment in Fossil Fuel Industry	\$55,027,000	57%	\$66,012,000	64%

The amount held in investments in the Fossil Fuel Industry has increased over the past few months mainly due to the availability of institutions that have been taking funds that fit Council's policy requirements being institutions that invest in the fossil fuel industry. Another factor that has influenced the increase of funds in investments in the Fossil Fuel Industry is in relation to Commonwealth Bank not currently having the capacity to reinvest funds into their Green Term Deposit products. These investments have transferred to standard term deposits that do not fit the fossil free (ethical) criteria. There has also been a redemption of some investments that were held with institutions that do not invest in the Fossil Fuel Industry with a move to further compliance with the investment policy.

The information for the assessment has been sourced from the website www.marketforces.org.au which is an affiliate project of the Friends of the Earth Australia. This is still considered the best information available to make this assessment.

Comments

Responsible Accounting Officer

All investments with various financial institutions have been made in accordance with the *Local Government Act, 1993* and *Local Government (General) Regulations 2005*. A new investment policy was adopted in May 2020 moving towards the framework suggested by TCorp to comply with their borrowing requirements. A move towards the policy is being made, however this is taking longer than originally planned due to the current COVID climate and the high liquidity within financial markets.

Conclusion

A report on investments is required to be submitted to Council monthly. As of 31 January 2022, investments total \$103,012,000 and the annualised rate of return is estimated at 0.45%.

Attachment/s

1. [Capital Value Movements](#) including name of institution, purchase date and maturity
2. [Estimated interest](#) showing interest rate and estimated interest earned for the year
3. [Total Investment Portfolio](#) held by month and Weighted Average Interest Rate graphical
4. [Investment by Type](#) - Graphical
5. [Investment by Institution](#) as a percentage of total portfolio graphical

**Capital Value Movements
Summary of Investments held as at
31 January 2022**

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Cash Based Returns					
CBA Business On Line Banking A/C	Cash Management Account	AA-	N/A	N/A	\$ 12,012,000
AMP Bank Cash Management Account	Cash Management Account	BBB	N/A	N/A	\$ 3,000,000
P & N Bank	Term Deposit	BBB	29/7/2021	25/1/2022	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	26/10/2021	25/1/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	2/9/2021	31/1/2022	\$ 2,000,000
P & N Bank	Term Deposit	BBB	5/8/2021	1/2/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	11/2/2021	11/2/2022	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	19/4/2021	19/2/2022	\$ 4,000,000
National Australia Bank	Term Deposit	AA-	26/2/2021	25/2/2022	\$ 2,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	25/2/2021	25/2/2022	\$ 1,000,000
ME Bank	Term Deposit	BBB	2/8/2021	28/2/2022	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	30/11/2021	28/2/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	8/7/2021	8/3/2022	\$ 1,000,000
Bank of Sydney Ltd	Term Deposit	Not Rated	13/9/2021	14/3/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	20/7/2021	17/3/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	25/8/2021	25/3/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	7/4/2021	7/4/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	23/6/2021	19/4/2022	\$ 2,000,000
ME Bank	Term Deposit	BBB	26/7/2021	22/4/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	28/7/2021	26/4/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	12/8/2021	9/5/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	10/5/2021	10/5/2022	\$ 1,000,000
AMP Bank	Term Deposit	BBB	17/5/2021	17/5/2022	\$ 3,000,000
ME Bank	Term Deposit	BBB	25/8/2021	23/5/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	26/5/2021	26/5/2022	\$ 2,000,000
Westpac Banking Corporation	Term Deposit	AA-	30/10/2021	30/5/2022	\$ 4,000,000
Australian Military Bank Ltd	Term Deposit	Not Rated	9/8/2021	6/6/2022	\$ 1,000,000
P & N Bank	Term Deposit	BBB	14/12/2021	14/6/2022	\$ 1,000,000
ME Bank	Term Deposit	BBB	23/6/2021	23/6/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	29/6/2021	29/6/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	2/9/2021	29/6/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	20/1/2022	19/7/2022	\$ 2,000,000
Bank of Sydney Ltd	Term Deposit	Not Rated	29/7/2021	29/7/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	29/7/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	21/9/2021	17/8/2022	\$ 3,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	20/8/2020	18/8/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	22/11/2021	19/8/2022	\$ 1,000,000
Auswide Bank Ltd	Term Deposit	BBB-	20/8/2019	23/8/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	25/8/2021	25/8/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	25/8/2021	25/8/2022	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	1/9/2021	1/9/2022	\$ 2,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	14/12/2021	12/9/2022	\$ 1,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	30/9/2021	30/9/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	16/11/2021	12/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	17/1/2022	14/10/2022	\$ 1,000,000
Bank of Queensland	Term Deposit	BBB+	20/10/2021	20/10/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	21/1/2022	21/10/2022	\$ 2,000,000
Commonwealth Bank of Australia - TD	Term Deposit	AA-	19/11/2021	18/11/2022	\$ 2,000,000
Suncorp	Term Deposit	A+	22/11/2021	22/11/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	19/1/2022	15/12/2022	\$ 1,000,000
Suncorp	Term Deposit	A+	20/12/2021	20/12/2022	\$ 4,000,000

**Capital Value Movements
Summary of Investments held as at
31 January 2022**

Name of Investment / & Counterparty	Type of Investment	Rating (Note 3)	Purchase Date	Maturity Date	Current Market Value (Note 1)
Summerland Credit Union	Term Deposit	Not Rated	17/2/2021	17/2/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	29/7/2021	31/7/2023	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	29/7/2021	31/7/2023	\$ 1,000,000
RaboBank	Term Deposit	Not Rated	30/7/2018	1/8/2023	\$ 1,000,000
RaboBank	Term Deposit	Not Rated	13/12/2018	13/12/2023	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	25/8/2021	25/8/2025	\$ 1,000,000
Investment on Hand					\$ 103,012,000

Investments Redeemed from 25/10/2021 to 24/01/2022 (Note 2)

Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	30/11/2020	26/10/2021	\$ 1,000,000
Westpac Banking Corporation	Term Deposit	AA-	30/12/2020	30/10/2021	\$ 4,000,000
Auswide Bank Ltd	Term Deposit	BBB-	16/2/2021	15/11/2021	\$ 1,000,000
Suncorp	Term Deposit	A+	20/4/2021	16/11/2021	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	20/11/2020	19/11/2021	\$ 2,000,000
Suncorp	Term Deposit	A+	25/2/2021	22/11/2021	\$ 1,000,000
Bendigo Adelaide Bank	Term Deposit	BBB+	24/5/2021	22/11/2021	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	30/11/2020	30/11/2021	\$ 2,000,000
P & N Bank	Term Deposit	BBB	17/6/2021	14/12/2021	\$ 1,000,000
Suncorp	Term Deposit	A+	22/2/2021	20/12/2021	\$ 4,000,000
Bank of Queensland	Term Deposit	BBB+	17/6/2021	17/1/2022	\$ 1,000,000
National Australia Bank	Term Deposit	AA-	29/4/2021	19/1/2022	\$ 1,000,000
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	20/1/2021	20/1/2022	\$ 2,000,000
Bank of Queensland	Term Deposit	BBB+	22/6/2021	21/1/2022	\$ 2,000,000

\$ 24,000,000

- Note 1: Market Value is the Capital Value of the Investment.
- Note 2: These investments were redeemed during the period. They are not part of the Balance of Investments Held.
- Note 3: These Counterparties & Products are authorised under the Minister's Investment Order. The rating is based on the entities long term S & P Rating.
- Note 4: "Indicative" Source of Funds based on the restricted/unrestricted fund balances as at reporting date.

"Indicative" Source of Funds (Note 4)

Externally Restricted - Water Fund	12,595,194
Externally Restricted - Wastewater Fund	38,249,678
Externally Restricted - Other	21,024,708
Externally Restricted - RTRL	3,088,332
Internally Restricted	28,054,088
Unrestricted	-
	\$ 103,012,000

Estimated Interest
on Investments
for January 2022

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Cash Based Returns						
CBA Business On Line Banking A/C	Cash Management Account	AA-	0.10%	\$ 12,012,000	\$ 1,020	0.01%
AMP Bank Cash Management Account	Cash Management Account	BBB	0.50%	\$ 3,000,000	\$ 1,274	0.01%
P & N Bank	Term Deposit	BBB	0.25%	\$ 1,000,000	\$ 212	0.00%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.21%	\$ 1,000,000	\$ 178	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.34%	\$ 2,000,000	\$ 578	0.01%
P & N Bank	Term Deposit	BBB	0.24%	\$ 1,000,000	\$ 204	0.00%
Bank of Queensland	Term Deposit	BBB+	0.45%	\$ 2,000,000	\$ 764	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.40%	\$ 4,000,000	\$ 1,359	0.02%
National Australia Bank	Term Deposit	AA-	0.25%	\$ 2,000,000	\$ 425	0.00%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.30%	\$ 1,000,000	\$ 255	0.00%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 382	0.00%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.27%	\$ 2,000,000	\$ 459	0.01%
Suncorp	Term Deposit	A+	0.32%	\$ 1,000,000	\$ 272	0.00%
Bank of Sydney Ltd	Term Deposit	Not Rated	0.55%	\$ 1,000,000	\$ 467	0.01%
Suncorp	Term Deposit	A+	0.32%	\$ 1,000,000	\$ 272	0.00%
Bank of Queensland	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 340	0.00%
National Australia Bank	Term Deposit	AA-	0.42%	\$ 2,000,000	\$ 713	0.01%
Suncorp	Term Deposit	A+	0.30%	\$ 2,000,000	\$ 510	0.01%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 382	0.00%
Suncorp	Term Deposit	A+	0.33%	\$ 2,000,000	\$ 561	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.25%	\$ 2,000,000	\$ 425	0.00%
Bank of Queensland	Term Deposit	BBB+	0.33%	\$ 1,000,000	\$ 280	0.00%
AMP Bank	Term Deposit	BBB	0.40%	\$ 3,000,000	\$ 1,019	0.01%
ME Bank	Term Deposit	BBB	0.45%	\$ 1,000,000	\$ 382	0.00%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 934	0.01%
Westpac Banking Corporation	Term Deposit	AA-	0.20%	\$ 4,000,000	\$ 679	0.01%
Australian Military Bank Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 255	0.00%
P & N Bank	Term Deposit	BBB	0.36%	\$ 1,000,000	\$ 306	0.00%
ME Bank	Term Deposit	BBB	0.30%	\$ 1,000,000	\$ 255	0.00%
National Australia Bank	Term Deposit	AA-	0.50%	\$ 3,000,000	\$ 1,274	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.25%	\$ 1,000,000	\$ 212	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.45%	\$ 2,000,000	\$ 271	0.00%
Bank of Sydney Ltd	Term Deposit	Not Rated	0.30%	\$ 1,000,000	\$ 255	0.00%
Bank of Queensland	Term Deposit	BBB+	0.45%	\$ 1,000,000	\$ 382	0.00%
Suncorp	Term Deposit	A+	0.35%	\$ 3,000,000	\$ 892	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 1,189	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 340	0.00%
Auswide Bank Ltd	Term Deposit	BBB-	1.80%	\$ 1,000,000	\$ 1,529	0.02%
Suncorp	Term Deposit	A+	0.35%	\$ 1,000,000	\$ 297	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 696	0.01%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.41%	\$ 2,000,000	\$ 696	0.01%
Bendigo Adelaide Bank	Term Deposit	BBB+	0.40%	\$ 1,000,000	\$ 340	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.36%	\$ 2,000,000	\$ 612	0.01%
Suncorp	Term Deposit	A+	0.48%	\$ 1,000,000	\$ 408	0.00%
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 1,000,000	\$ 326	0.00%
Bank of Queensland	Term Deposit	BBB+	0.43%	\$ 2,000,000	\$ 730	0.01%

**Estimated Interest
on Investments
for January 2022**

Name of Investment / & Counterparty	Type of Investment	Rating	Annualised Coupon / Interest Rate	Current market Value	Estimated Interest for Period	Weighted Interest for Period
Bank of Queensland	Term Deposit	BBB+	0.70%	\$ 2,000,000	\$ 384	0.00%
Commonwealth Bank of Australia - TD	Term Deposit	AA-	0.53%	\$ 2,000,000	\$ 900	0.01%
Suncorp	Term Deposit	A+	0.52%	\$ 1,000,000	\$ 442	0.00%
National Australia Bank	Term Deposit	AA-	0.64%	\$ 1,000,000	\$ 210	0.00%
Suncorp	Term Deposit	A+	0.62%	\$ 4,000,000	\$ 2,106	0.02%
Summerland Credit Union	Term Deposit	Not Rated	0.60%	\$ 1,000,000	\$ 510	0.01%
National Australia Bank	Term Deposit	AA-	0.55%	\$ 2,000,000	\$ 934	0.01%
Bank of Queensland	Term Deposit	BBB+	0.60%	\$ 1,000,000	\$ 510	0.01%
RaboBank	Term Deposit	Not Rated	3.45%	\$ 1,000,000	\$ 2,930	0.03%
RaboBank	Term Deposit	Not Rated	3.35%	\$ 1,000,000	\$ 2,845	0.03%
National Australia Bank	Term Deposit	AA-	0.95%	\$ 1,000,000	\$ 807	0.01%
Investment on Hand				\$ 103,012,000	\$ 38,188	0.43%

Note 1

Interest on Investments Redeemed during month to reporting date (24/01/2022)

Bank of Queensland	Term Deposit	BBB+	0.26%	\$ 1,000,000	\$ 221	0.00%
National Australia Bank	Term Deposit	AA-	0.33%	\$ 1,000,000	\$ 280	0.00%
Commonwealth Bank of Australia - Green TD	Term Deposit	AA-	0.45%	\$ 2,000,000	\$ 764	0.01%
Bank of Queensland	Term Deposit	BBB+	0.42%	\$ 2,000,000	\$ 713	0.01%

0.45%

\$ 40,167

Investment Income Earned vs. Budget Year to Date

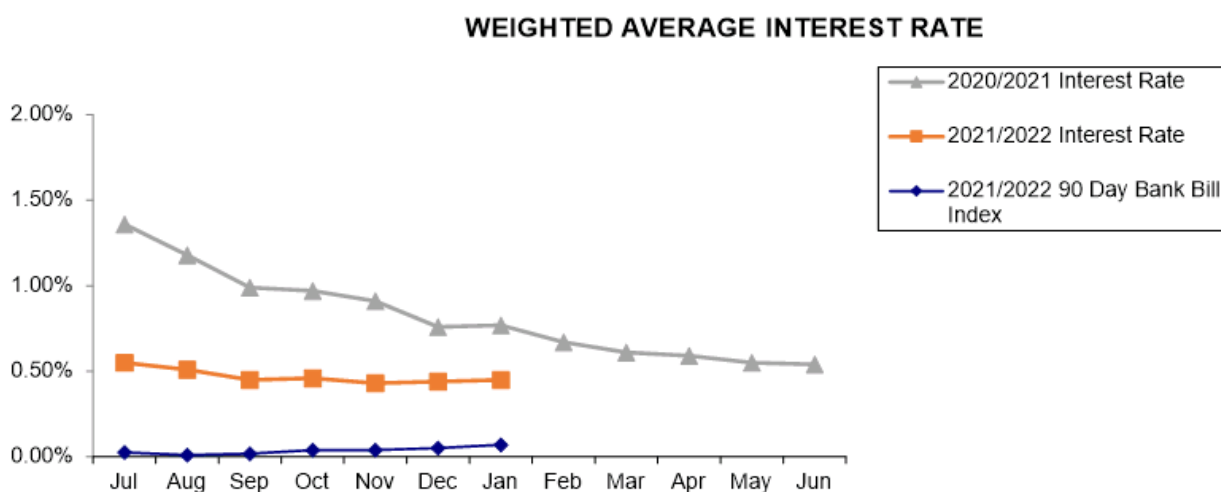
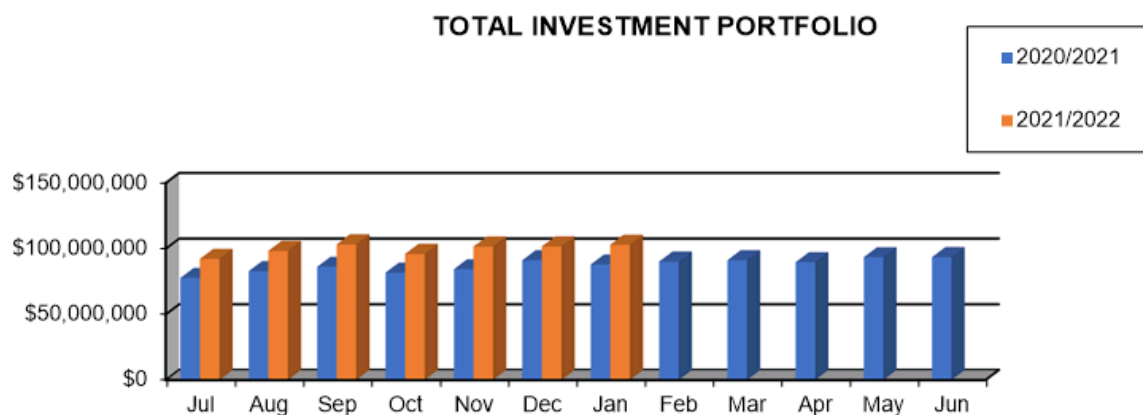
Estimated interest earned to date \$ 274,910
Pro Rata annual budget \$ 265,883

Note 1: Estimated Interest for Period is calculated by multiplying the annualised rate by the purchase price and reflects both interest accrued and received.

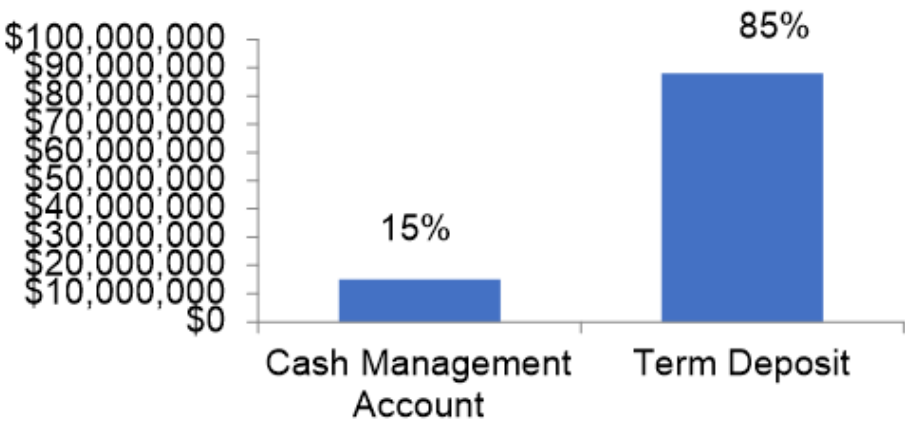
Note 2: "Indicative" Interest Earned based on the restricted/unrestricted fund balances as at reporting date.

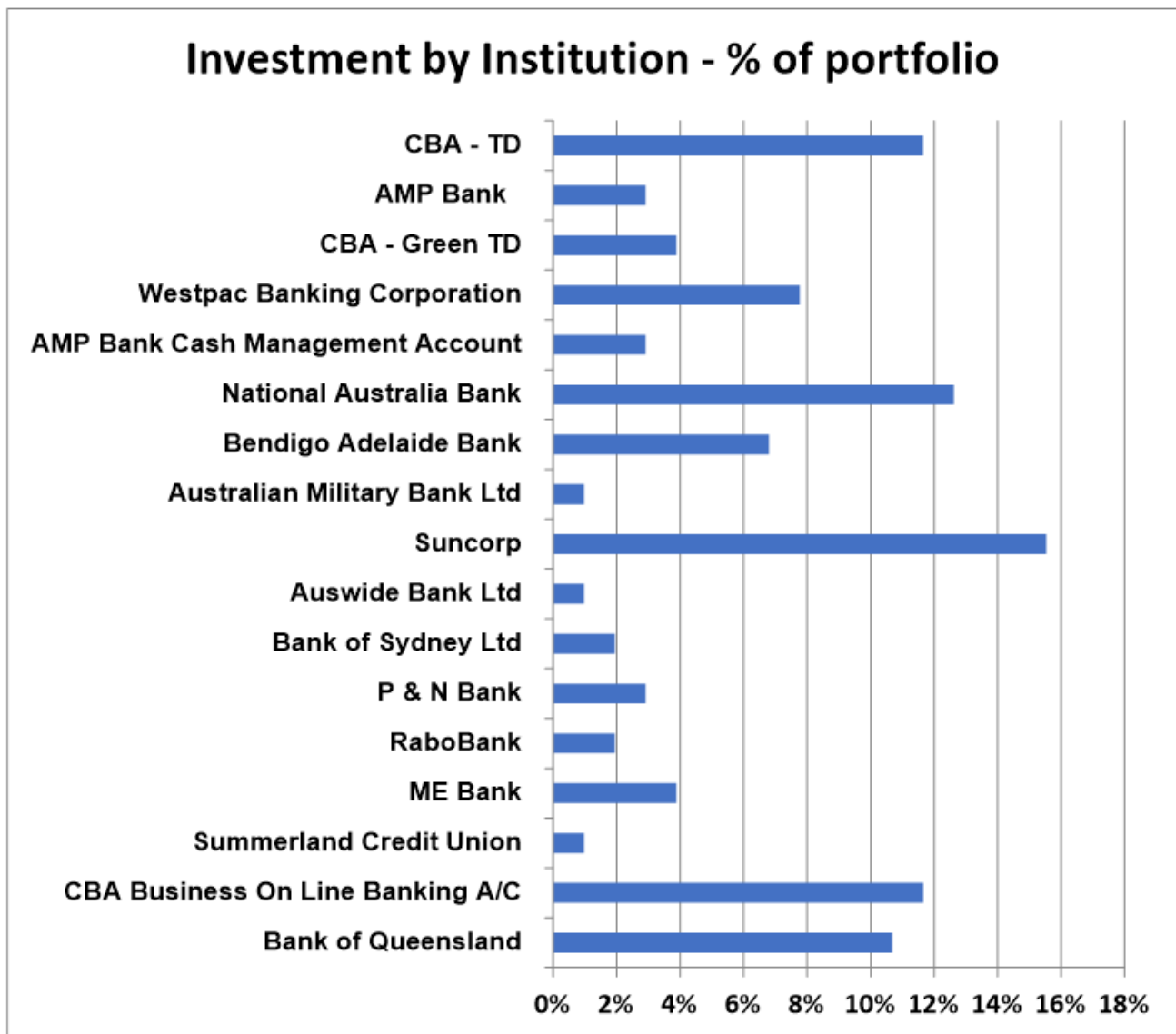
"Indicative" Interest Earned (Note 2)

Externally Restricted - Water Fund	\$ 4,911
Externally Restricted - Wastewater Fund	\$ 14,915
Externally Restricted - Other	\$ 8,198
Externally Restricted - RTRL	\$ 1,204
Internally Restricted	\$ 10,939
Unrestricted	\$ -
	\$ 40,167



INVESTMENT BY TYPE





Report

Subject	December 2021 Quarterly Budget Review Statement
TRIM Record No	BP22/40:ED09/580
Prepared by	Principal Accountant
Reason	In accordance with Clause 203, Local Government (General) Regulations, Council approval is required to amend the 2020/21 Budget to reflect the actual or anticipated result
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure the efficient and effective operation of Council.

Executive Summary

The forecast consolidated financial results and cash position reported in the QBRs are:

• Net Operating Result for the Year – Surplus	\$20,365,500
• Net Operating Result for the Year before Capital Grants & Contributions – Deficit	(\$19,877,700)
• Funding Sources (Consolidated) & Cash Position – Surplus	\$98,200

Major Movements on the Operating Result:

Unfunded Adjustments

The main movements are summarised as follows:

Movement	Amount
Additional revenue received from sale of properties.	\$290,000
Waste Disposal - See report for more detail on the reduction in revenue due to lower than forecast volumes offset by reduction in operating expenses.	(\$141,700)
General Rates - additional general rates revenues	\$62,400
Recognise change in loan repayment schedule. Capital works reserve funded instead of new loans. (includes interest charge and principal repayments).	\$94,000
Total unfunded movements (not all listed above)	\$339,200

- The \$2 million in proceeds was included in the original budget being expected revenue from the sale of land. Council realised a better than forecast return of \$290,000 (after costs) due to an increase in demand. Sale of assets is a “one-off” receipt of revenue, it is not indicative of recurring income streams.
- There has been a significant change in the operational revenue from the Waste Disposal facility due to lower than forecast volumes. Operational expenses (variable) have also been impacted as a result of the lower volumes. This is discussed in more detail in this report. The net cash impact is calculated as (\$141,700).
- General Fund - additional rates received above budget \$62,400. This is due to a re-calculation in properties that occurs each year and cannot be quantified at the time of setting the annual budget.
- There was a reduction in loan repayments and interest as a result of the decision to reserve-fund certain capital works. The reserves are internally restricted and were identified in the June 2021 Reserve Report to Council. This has resulted in a reduction in principal and interest repayments of \$94,000.

The total unfunded amounts improve the budget from a deficit of (\$241,000) to a surplus of \$98,200.

Funded Adjustments

Funded adjustments do not impact council's general cash, they are funded through reserves, reduced expenses, grants and unexpended loans. More detail is included in the December QBRs attachment.

The main movements are as follows:

- Waste Disposal Facility – as previously identified in reports to Council as a risk, there has been a significant decline in revenues at the Waste Disposal facility due to lower than forecast volumes. This is discussed in further detail at the bottom of this report. The reduction in revenues is predominately funded by cost-control measures in areas including staff costs and materials & contracts. Of the \$5,085,500 reduction in revenue, \$141,700 is unfunded and the remainder has been offset by cost-control measures.

- Goonellabah Sports & Aquatic Centre (GSAC) – Ongoing COVID-19 lockdowns and restrictions have caused extended closures of GSAC. For the half-year to 31 December 2021 revenues are down by \$590,000 and this is being entirely funded through cost-control and efficiency measures implemented to reduce the impact on Council.

Cost-control expense reduction:

- Employee benefits and on-costs – Council as part of the financial recovery strategy has placed an increased focus on cost-control in 2021/22. \$5,104,300 surplus salary and wages budgets have been identified and removed from the budget. Of the amounts identified \$1,768,200 is a conversion of salary and wages to casual labour to cover periods of staff vacancy and difficulty recruiting. A further \$2,870,500 is a reduction in salary and wages at the Waste Disposal facility as a result in lower waste volumes. The saving are due positions being unfilled during the period to 31 December 2021 and decreased in volumes or operations at some facilities.

Not all the savings will be recurring and therefore they will impact the 2021/22 year only.

- Materials and contracts – The savings identified include \$2,337,100 in cost savings from the Waste Disposal facility and \$113,800 from GSAC. Negative movements (increased expense) in the materials and contract are identified in more detail on the attached report. These include the (\$1,768,200) moved from salaries and wages above, as well as grant funded projects and some smaller increases in costs. Overall Materials and Contracts have reduced by \$1,621,900.

Not all the savings will be recurring and therefore they will impact the 2021/22 year only.

Major Movements – Capital:

Capital Movement	Amount
Waste Disposal facility – compliance works transferred to reserve, unexpended grants or unexpended loans for completion in the 2022/23 financial year.	\$3,361,900
Grant funded Roads projects – new grant funding.	(\$6,791,700)
Water Supply projects – capital projects transferred to reserve for completion in the 2022/23 financial year.	\$1,790,500

Commentary on all recommended changes is included in the December 2021 Quarterly Budget Review Statement.

Key Performance Indicators (KPI)

Of the seven KPIs included in the December quarterly report, four are unfavourable compared to benchmarks.

Operating Performance Ratio – The unfavourable variance for the current year is due mainly to the increase in depreciation expense as a result of the revaluation of roads assets in the 2019/20 financial year. Council's forecast operating result has improved from the previous quarter however, the Operating Performance Ratio has declined as the proportion of capital grants and contributions has increased compared to other income sources.

Own Source Operating Ratio –The ratio is estimated to be 58.6% which is below the benchmark of 60%. Council's financial flexibility improves the higher the level of its own source of revenue.

The ratio has dropped under the benchmark in the December 2021 quarter. This is due to an increase in operation grants which have been brought out of the unexpended grants reserve from 2021.

Unrestricted current ratio - Council has undertaken considerable work during the 2021 Financial reports and during the December Quarter to increase its short term-liquid assets (internally restricted cash) which will improve this ratio to a more satisfactory level.

Building & Infrastructure Renewals Ratio – more work is required to address this issue.

Long Term Financial Plan – Remediation

While Council's financial position as at 30 June 2022 is anticipated to be satisfactory, having regards to the adopted 2021/22 Operational Plan, there are indicators that require immediate attention to ensure long-term financial sustainability.

The Net Operating Result for the Year before Capital Grants & Contributions – Deficit of (\$19,877,700), together with the unfavourable Building & Infrastructure Renewals Ratio and Asset Maintenance ratio indicates that Council is not adequately addressing its assets. This is considered not financially sustainable, and Council will need to take steps to address these issues when developing its 2022/23 Operational Plan and its Long-Term Financial Plan.

Movements of categories within the existing budget for improved data analytics and reporting

As part of Council's ongoing improvement of processes and reporting, certain reporting categories in the General Ledger have been reviewed. It was determined that some of the categories being utilised were too broad to provide adequate data for reporting and analytics. Where additional reporting capability was required the broader categories were broken down into more specific accounts. This to enable better operational management by staff.

This will not have an overall impact on the quarterly or annual reports of Council. It does not represent a change to budget, strategy or Operational Plan however there will be some movement between categories as the project is completed.

Major Re-categorization	Amount
Employee Benefits & On- Costs	(\$1,768,200)
Materials & Contracts	\$1,768,200

Recommendation

That Council adopt the attached December 2021 Quarterly Budget Review Statement.

Background

The *Local Government (General) Regulation 2005* requires the annual budget to be monitored on an ongoing basis and a quarterly budget review statement prepared and reported to Council. The content is mandated by the NSW Office of Local Government.

The December 2021 Quarterly Budget Review Statement (QBRs) includes the recommended changes to the budget for the year-ended 30 June 2022. To meet financial reporting purposes, the QBRs has been prepared on a consolidated basis with internal transactions eliminated.

Only variations that can be reliably quantified or where there is substantial risk in meeting budget expectations have been reported.

For clarity, where an amount is 'favourable' to Council's financial result for the year or financial position as at 30 June, it will be shown as un-bracketed. Where an amount is 'unfavourable' to Council's financial result for the year or financial position as at 30 June, it will be shown as (bracketed).

December 2021 QBRs – Consolidated Summary

Financial Results

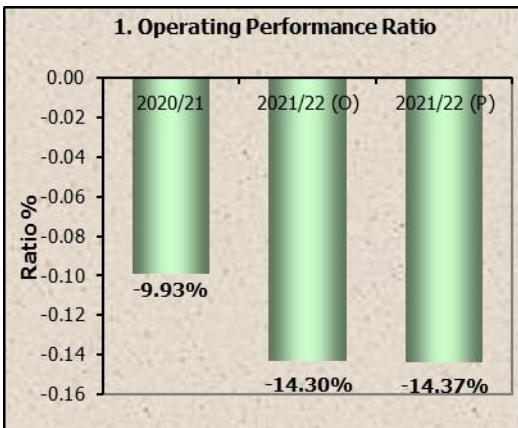
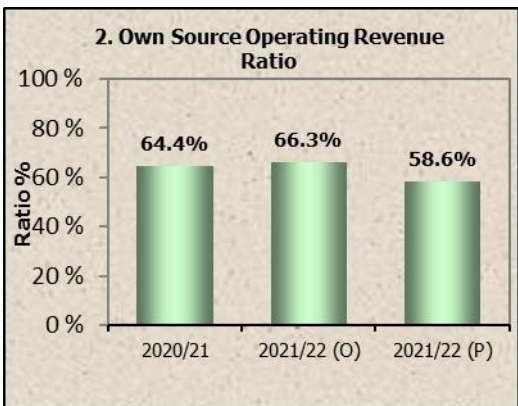
Item	Adopted 2021/22 Budget	Approved Variations	<u>Recommended Changes</u> <u>December 2021</u> <u>QBRs</u>	Revised 2021/22 Budget
Net Operating Result for the Year	\$16,502,000	(\$410,600)	<u>\$4,273,100</u>	\$20,365,500
Net Operating Result for the Year before Capital Grants & Contributions	(\$19,428,000)	(\$710,600)	<u>\$260,900</u>	(\$19,877,700)
Funding Sources (Consolidated) & Cash Position – Surplus	(\$417,000)	\$177,000	<u>\$339,200</u>	\$98,200

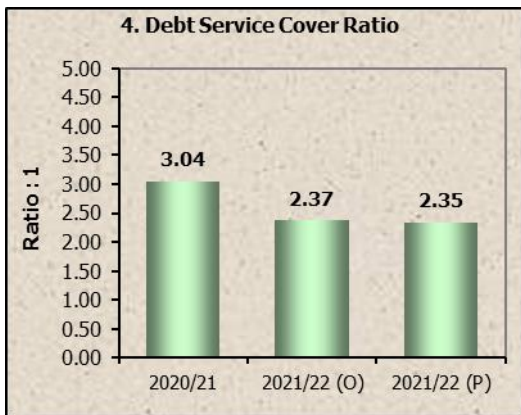
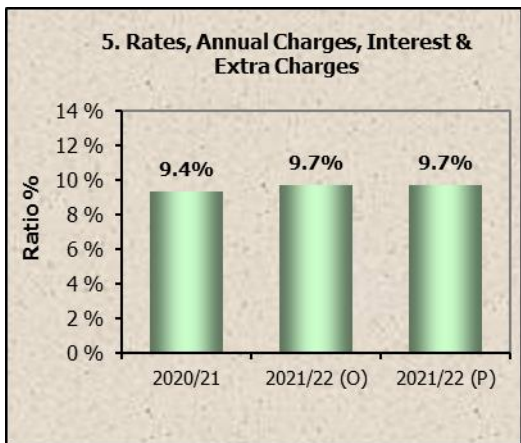
The Net Operating Result for the Year before Capital Grants & Contributions is considered the more appropriate result as it excludes income received for capital purposes and therefore not matched by a related expense.

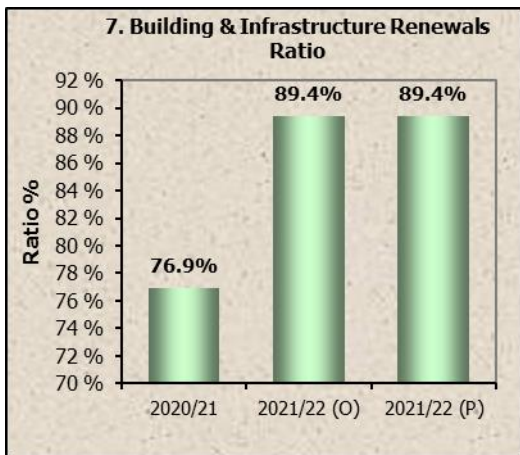
For the above results, a deficit means Council is using more resources (including depreciation) than it is generating in income, and a surplus means Council is generating more income than resources used. An ongoing deficit result is not financially sustainable.

The cash position forecast has moved from a deficit position to surplus however the main driver behind this movement is the sale of properties which is considered a "one-off" revenue item and does not indicate long-term sustainability. The operating result has improved however it is countered by a reduction in the operating result *before capital grants & contributions* which indicates an increased reliance on grant funding for operational activities.

Key Performance indicators

Ratio	Commentary								
1. Operating Performance Ratio  <table border="1"> <caption>1. Operating Performance Ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>-9.93%</td> </tr> <tr> <td>2021/22 (O)</td> <td>-14.30%</td> </tr> <tr> <td>2021/22 (P)</td> <td>-14.37%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	-9.93%	2021/22 (O)	-14.30%	2021/22 (P)	-14.37%	This ratio measures the achievement of containing operating expenses within operating revenue. Net operating result from continuing operations (excluding capital items) as a percentage of operating revenue (excluding capital items). Consolidated: Benchmark is greater than (0) December 2021 – Unfavourable. This ratio has declined due to a higher proportion of revenue coming from capital grants and contributions.
Period	Ratio %								
2020/21	-9.93%								
2021/22 (O)	-14.30%								
2021/22 (P)	-14.37%								
2. Own Source Operating Revenue Ratio  <table border="1"> <caption>2. Own Source Operating Revenue Ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>64.4%</td> </tr> <tr> <td>2021/22 (O)</td> <td>66.3%</td> </tr> <tr> <td>2021/22 (P)</td> <td>58.6%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	64.4%	2021/22 (O)	66.3%	2021/22 (P)	58.6%	This ratio measures Council's fiscal flexibility by reporting Council's reliance on external funding sources such as operating grants and contributions. Council's financial flexibility improves the higher the level of its own source of revenue. Consolidated: Benchmark is greater than 60% December 2021 – Unfavourable The ratio has dropped under the benchmark in the December 2021 quarter. This is due to an increase in operational grants which have been brought out of the unexpended grants reserve from 2020/21.
Period	Ratio %								
2020/21	64.4%								
2021/22 (O)	66.3%								
2021/22 (P)	58.6%								
3. Unrestricted current ratio  <table border="1"> <caption>3. Unrestricted current ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio : 1</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>1.84</td> </tr> <tr> <td>2021/22 (O)</td> <td>1.45</td> </tr> <tr> <td>2021/22 (P)</td> <td>1.45</td> </tr> </tbody> </table>	Period	Ratio : 1	2020/21	1.84	2021/22 (O)	1.45	2021/22 (P)	1.45	The 'unrestricted current ratio' represents a council's ability to meet short-term obligations as they fall due. Restrictions placed on various funding sources (e.g., Section 7.11 developer contributions) exclude these funds from being used in day-to-day operations. Consolidated: Benchmark is greater than 1.5x December 2021 – Unfavourable The ratio is below the required benchmark however this is expected to improve during the 2021/22 year. Council has undertaken considerable work during the 2021 financial year and the 2021/22 year to increase its short-term liquid assets (internally restricted cash) which will improve this ratio to a more satisfactory level.
Period	Ratio : 1								
2020/21	1.84								
2021/22 (O)	1.45								
2021/22 (P)	1.45								

Ratio	Commentary								
4. Debt Service Cover Ratio  <table border="1"> <caption>4. Debt Service Cover Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>3.04</td> </tr> <tr> <td>2021/22 (O)</td> <td>2.37</td> </tr> <tr> <td>2021/22 (P)</td> <td>2.35</td> </tr> </tbody> </table>	Period	Ratio	2020/21	3.04	2021/22 (O)	2.37	2021/22 (P)	2.35	This ratio measures the availability of operating cash to service debt including interest, principal and lease payments. Consolidated: Benchmark is greater than 2. December 2021 – Favourable.
Period	Ratio								
2020/21	3.04								
2021/22 (O)	2.37								
2021/22 (P)	2.35								
5. Rates, Annual Charges, Interest & Extra Charges Outstanding Percentage  <table border="1"> <caption>5. Rates, Annual Charges, Interest & Extra Charges Data</caption> <thead> <tr> <th>Period</th> <th>Percentage</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>9.4%</td> </tr> <tr> <td>2021/22 (O)</td> <td>9.7%</td> </tr> <tr> <td>2021/22 (P)</td> <td>9.7%</td> </tr> </tbody> </table>	Period	Percentage	2020/21	9.4%	2021/22 (O)	9.7%	2021/22 (P)	9.7%	This indicator assesses the impact of uncollected rates and annual charges on liquidity and the adequacy of recovery efforts. This percentage is based on the amount outstanding as a percentage of the amount to be collected for rates and annual charges for the current year and outstanding from previous years. The percentage will decline as the financial year proceeds and rates instalments are due and paid. Consolidated: Benchmark is less than 10%. December 2021 – Favourable
Period	Percentage								
2020/21	9.4%								
2021/22 (O)	9.7%								
2021/22 (P)	9.7%								
6. Cash Expense Cover Ratio  <table border="1"> <caption>6. Cash Expense Ratio Data</caption> <thead> <tr> <th>Period</th> <th>Ratio</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>12.0</td> </tr> <tr> <td>2021/22 (O)</td> <td>5.6</td> </tr> <tr> <td>2021/22 (P)</td> <td>5.6</td> </tr> </tbody> </table>	Period	Ratio	2020/21	12.0	2021/22 (O)	5.6	2021/22 (P)	5.6	The liquidity ratio indicates the number of months a council can continue paying for its immediate expenses without additional cash inflow. Consolidated: Benchmark is greater than 3x December 2021 – Favourable
Period	Ratio								
2020/21	12.0								
2021/22 (O)	5.6								
2021/22 (P)	5.6								

Ratio	Commentary								
7. Building & Infrastructure Renewals Ratio  <table border="1"> <caption>7. Building & Infrastructure Renewals Ratio</caption> <thead> <tr> <th>Period</th> <th>Ratio %</th> </tr> </thead> <tbody> <tr> <td>2020/21</td> <td>76.9%</td> </tr> <tr> <td>2021/22 (O)</td> <td>89.4%</td> </tr> <tr> <td>2021/22 (P)</td> <td>89.4%</td> </tr> </tbody> </table>	Period	Ratio %	2020/21	76.9%	2021/22 (O)	89.4%	2021/22 (P)	89.4%	This ratio is to assess the rate at which assets are being renewed against the rate at which they are depreciated. Consolidated: Benchmark is greater than 100%. December 2021 – Unfavourable The ratio is a snapshot of what is expected to be spent on renewals for the 2021/22 year only. The final ratio may be impacted due to timing the completion of budgeted works as a result of weather or realignment of priorities as a result of additional grant funding from Transport for NSW.
Period	Ratio %								
2020/21	76.9%								
2021/22 (O)	89.4%								
2021/22 (P)	89.4%								

Other

Lismore Recycling and Recovery Centre – significant waste revenue decline

Council introduced uniform waste disposal charges at the Lismore Recycling and Recovery Centre from 1 July 2021. This change removed the historical discount provided to major commercial customers. There have been lower than anticipated volumes received in the first six (6) months of the year which has impacted the revenue.

The lower volumes have also resulted in lower than forecast operational costs, this together with the increased focus on cost control has meant that the net impact to Council from a net cash position has been minimised.

While this is an unfavourable financial outcome, it does prolong the life of the cell and reduce the risk of reaching capacity prior to works being completed on a new cell. Although it may represent an unfavourable cash impact to Council in 2022 year, it will result in a favourable impact to Council in the Long-Term Financial Plan.

Waste disposal revenues will continue to be monitored monthly and opportunities to reduce expenses or generate additional revenues to offset this will be explored.

Capital

Council has an extensive capital works program listed for 2021/22. The delivery scheduled is being reviewed considering available resourcing and the priorities of Council.

The Waste facility has revised its capital works program for 2021/22 and has deferred some projects until 2022/23. These projects are required to be undertaken in 2022/23 due to compliance requirements and are funded from restricted reserve, internal reserves, grants and general fund.

There is no impact of the net cash position of Council in 2021/22 as the funding has also been reserved.

It is anticipated that there will be other adjustments made to the works program with works being rescheduled to 2022/23. Adjustments will be reported to Council in future QBRs as information is quantified.

Unexpended Grants

Council has unexpended grant funds carried forward from 2021/22. During the 2021/22 budget process estimates were made as to what portion of project funding was available from unexpended grants and what portion related to new grants to be received in 2021/22. \$3,718,000 of the unexpended grants have been identified and allocated against projects in the December QBRS with a further \$3,176,000 to be identified in the March QBRS. There is no change to the project delivery but there will be a change to the Income Statement of Council (Consolidated) & Funding Sources (Consolidated).

Potential Risks

COVID still poses a risk to Council's operations and delivery of service as outlined in the adopted 2021/22 Operational Plan. There is a risk associated with Council's forecast revenue especially if events or operations are impacted by Government requirements.

The full impact is not known at this stage however the situation is being monitored and costs, where possible, reduced to offset any potential revenue impact.

Cash flow will be monitored however, at this stage Council has sufficient cash reserves to offset any short - term impacts.

Public consultation

Not required

Attachment/s

1. [↗](#) December 2021 Quarterly Budget Review Statement (Over 7 pages)

Report

Subject	Authorisation to General Manager to approve projects from existing panel arrangements
TRIM Record No	BP22/51:EF18/642-03
Prepared by	Procurement and Contracts Manager
Reason	To ensure projects can progress the most efficient way possible
Strategic Theme	Leadership and participation
Strategy	We provide effective management and responsible governance.
Action	Ensure well-managed procurement, tendering and contracting services.

Executive Summary

Council at the meeting of 11 January 2022 considered a report on delegations to the General Manager. A standard process to ensure there is no confusion or uncertainty when managing delegations is to first revoke all previous delegations and then state the new or revised delegations that are to apply.

There are numerous current panel contracts and projects for which the General Manager had previously been provided delegation to manage, with authorization to approve purchases from these contracts and for these projects without any upper limit of expenditure.

The decision of 11 January 2022 has revoked all of these delegations. This report proposes to reinstate those delegations to ensure the efficient turnaround of decisions such that projects are delivered in a timely manner and for grant funded projects, relevant milestones can be met.

Recommendation

That the General Manager:

1. be given delegated authority to approve tenders and purchases from existing panel arrangements with Council and/or Prescribed Entities without a fixed upper limit of expenditure from an approved budget or from specific grant projects/programs.
2. report to councillors via City Notes the details of any purchases above \$250,000 (incl. GST).

Background

There are numerous current panel contracts and projects for which the General Manager had previously been provided delegation to manage, with authorization to approve purchases from these contracts and for these projects without any upper limit of expenditure.

These contracts have followed an open tendering process either through Lismore City Council or through a prescribed entity. They work as a pre-selection of suppliers with which we enter into a deed of standing offer.

This allows Council to then engage a contractor directly or to conduct a selective tendering process with all or limited panel members for specific works and therefore to reduce the procurement process timeframe, which can be critical when works impact directly the community and/or the funding grant is dependent on a set completion date.

A **panel arrangement** is a way to procure goods or services regularly acquired by entities. In a panel arrangement, suppliers have been appointed via an open tender process to supply goods or services for a set period of time under agreed terms and conditions, including agreed pricing.

Local Government Procurement (LGP) has been prescribed under s55 of the Local Government Act 1993 (NSW), allowing councils to utilise supply arrangements coordinated by LGP without the need to go to tender in their own right. LGP therefore has the same status as NSW Procurement in having this legislative requirement.

What is the authority of Local Government Procurement to tender on behalf of councils?

LGP has been 'prescribed' by the NSW State Parliament to carry out group tenders on behalf of NSW local government. 'Prescribed' means LGP is named in the Local Government (General) Regulation 2005 (NSW) and as such a council does not need to go to tender if that council buys from a contract already set up by LGP. Councils can therefore procure goods or services from LGP contracts for values greater than \$250,000 (inclusive of GST), without the need to tender themselves.

Obviously, they can also procure for amounts less than \$250,000 without restriction from LGP contracts.

Other Local Government prescribed entities are:

- NSW Procurement (ex-ProcurePoint, now BuyNSW), and
- Procurement Australasia
- NSW Public Works Advisory

Council is currently regularly using the following panels from these three entities:

T2019-6	Facilities Cleaning Services - Contract 8061001-09
T2019-16	Prescribed Person Contract - Internal Audit Services - LGP 218
T2019-21	Supply of Electricity and Green Power - LGP ELO519
T2020-23	Library Materials and Shelf Ready Services - LGP507-4
LGP213-2	Bitumen, Emulsions and Asphalt Materials and Services
LGP320	Legal Services

Lismore City Council has currently multiple own panel arrangements in place that all have followed an open tender process. Here is the list of those existing contracts:

T2019-1	Project Delivery
T2019-14	Environmental Sampling and Analytical Services Panel
T2020-1	Unsealed Gravel Road Maintenance Services
T2020-2	Supply of Quarry Products
T2020-3	Expression of Interest Request Civil Works Panel of Providers
T2020-16	Traffic Control Services
T2020-17	Minor Concrete Works
T2020-18	Vacuum Excavation and Flow Control (Pump Out) Services
T2020-33	Sewer Main Renewal Panel
T2020-35	Quarry Mobile Crushing & Screening Services
T2020-36	Passenger, Truck and Earthmover Tires Fitting and Service
T2020-37	Bulk Fuels, Lubricants and Fuel Cards
T2021-3	Bush Regeneration
T2021-4	Road Safety Barrier Systems
T2021-5	Casual Plant Hire
T2021-9	Emergency Waste Transport and Disposal

T2021-17	Quarry Drill and Blast
T2021-20	Provision of Vegetation Services

All of these panel contracts have been adopted by Council resolution with the inclusion of the following clause:

“The General Manager be authorised to approve purchases without a fixed upper limit of expenditure from an approved budget source for Tender T202x-xx Title.”

Current situation

The purpose of the delegation to General Manager to authorise works from pre-selected contractors is to ensure projects can progress in the shortest possible timeframe, as the community expects, and to comply with grant timelines.

One specific example is the current CBD footpath project on Keen Street. Selective tenders from a pre-existing civil works panel (T20/3) have been called out and will close on 4 February 2022. With a delegation in place, the contract could be awarded and successful contractors moving to establish on site by 18 February 2022 (two weeks after the closing date). If the decision to award the tender is required to go to Council, the earliest the works can commence is 22 March 2022 (two weeks after the March Council meeting), which amounts to a delay of 4.5 weeks. Furthermore, there has been a concerted community engagement effort to align the start date with the expectations of the adjacent business owners, who strongly expressed a preference to commence the works as soon as possible in the new year, which is typically the quietest time for businesses - any delays may have adverse impacts.

Other projects/programs under the similar conditions are (this list is not exhaustive):

Major Grant Funded projects (delegated authority was given to the General Manager on Council meeting held 10 March 2020 – BP19/1548 attached)

- Lismore City Regional Sport Hub (Oakes & Crozier Oval)
- Lismore Flood Diversion Channel
- Albert Park Redevelopment

Lateral Package 1 – 2021/22: under existing T20/33 Sewer main Renewal Panel Contract, a Request for Quotation was uploaded to VendorPanel (VP274763) and all awarded contractors on the panel were invited to submit a quotation based on the specific scope of work provided which included 46 property lateral sewer connections. The preferred quote is valued at \$225,730.50 however a project contingency of 15% as the works include the replacement of underground assets, which place the related purchase order above the \$250,000 threshold (\$259,90.00 incl. GST).

Fixing Country Bridges Grant program uses some existing panel arrangements for piling and civil works.

Lismore Employment Land project also contains some work elements using those panel arrangements.

Comments

Finance

The recommendation is supported as printed. As these contracts have previously followed an open tendering process either through Lismore City Council or through a prescribed entity and the projects are time critical, it is considered that the recommendation should be supported to ensure the projects are not delayed and funding put at risk.

Other staff comments

Assets

The recommendation is supported as it reinstates previous delegations to the General Manager designed to ensure Council's delivery of various works and services is not unnecessarily impacted by delays in the procurement process.

Public consultation

Not required.

Conclusion

Panel arrangements allow Council to procure regularly acquired goods and services from pre-selected contractors and so gain efficiency when specific works are to be executed within tight timeframe and/or community commitment.

It is recommended that the General Manager be given delegated authority for works under existing panel arrangements without any upper limit be re-instated and that any purchase above \$250,000 (incl. GST) to be reported in detail to councillors via City Notes.

Attachment/s

1. [1](#) Major Grant Funded Projects - Procurement

Report

Report

Subject	Major Grant Funded Projects - Procurement
TRIM Record No	BP19/1548:EF18/706
Prepared by	Coordinator - Property Maintenance
Reason	Delegated authority is sought for the General Manager to award tenders for various packages of work relating to major grant funded projects to ensure project milestones are met, particularly during the caretaker period in the lead up to the September Council Elections.
Strategic Theme	Our built environment
Strategy	Our built environment is managed and enhanced to meet the needs of our growing community.
Action	Ensure new development enhances the area in which it is located.

Executive Summary

This report seeks approval for an accelerated procurement process for three major projects funded via grants. The process will help ensure compliance with the project milestones in the signed funding deed of agreements and expedite construction in line with community expectations.

The specific projects this report relates to are:

- Lismore City Regional Sports Hub (Oakes & Crozier Oval).
- Lismore Flood Diversion Channel.
- Albert Park Redevelopment - construction of storage facility, refurbishment of clubhouse and construction of central hub building.

The proposed delegation would allow Council to award the various contracts at the earliest possible convenience, reducing procurement timeframes by as much as six weeks (average time between close of tenders and tender award) per contract. Council will also enter a 'caretaker period' prior to the Local Government Elections in September which may increase procurement timeframes further.

Therefore, in accordance with Section 377(1) of the *Local Government Act, 1993*, this report seeks a resolution from Council to delegate authority to the General Manager to determine the tenders relating to the major grant funded projects mentioned above.

Recommendation

That:

1. In accordance with Section 377(1) of the *Local Government Act, 1993* delegated authority be given to the General Manager to determine the tenders for the Lismore City Regional Sports Hub Project, the Lismore Flood Diversion Channel Project and the Albert Park Redevelopment Building Project.
2. Upon acceptance of a suitable tender, the General Manager execute a contract for the specific package of work.
3. The General Manager report to Councillors via *City Notes* the details of the successful tenderers and provide progress updates throughout the delivery of the projects.

Lismore City Council
Meeting held 10 March 2020 - Major Grant Funded Projects - Procurement

1

Report

Background

Lismore City Council has recently received grant funding and contributions totalling approximately \$21 million to undertake major projects including; an upgrade of the Lismore Regional Sports Hub (Oakes Oval and Crozier Field) precinct and construction of the Lismore Flood Diversion Channel.

The Lismore Regional Sports Hub (Oakes Oval and Crozier Field) precinct project is facilitated via four funding sources:

- Two, Stronger Country Community grants (State funding), totalling \$0.4 million;
- A Regional Sports Infrastructure grant (State funding) of \$4.5 million;
- A Building Better Regions grant (Federal) of \$6 million; and
- A Council contribution of \$1.9 million.

The following is a summary of expected procurement activities with value in excess of \$250,000 (the tender threshold):

- | | |
|----------------------------|---|
| • Concrete works | Schedule of Rates contract for works throughout |
| • 140 seat grandstand | ~\$450,000 |
| • Three toilet blocks | ~\$900,000 |
| • Gordon Pavilion upgrades | ~\$1,700,000 |
| • Tidal Building (Crozier) | ~\$4,000,000 |

The Lismore Flood Diversion Channel Project is facilitated via an \$8.2 million grant from the State government. The bulk earthworks contract has already been awarded via a previous delegation with the following procurement activities remaining:

- | | |
|--|--------------|
| • Construction of a 'capping layer' at the 97 Caniaba Street fill site | ~\$1,000,000 |
| • Removal and disposal of unsuitable material | ~\$1,200,000 |
| • Implementation and maintenance of biodiversity offset work | ~\$300,000 |

The Albert Park Redevelopment project is well advanced with major works already completed. The next stage of delivery includes construction of a storage facility, refurbishment of the clubhouse and construction of a central hub building. These works will be subject to a tender process and have an approximate value of \$1.25 million.

Each of the deeds of agreement entered into for the various grants/ projects include strict milestones for project progress and expenditure that correspond to a subsequent release of funding. Delays in procurement activities represent a risk to the successful completion of these milestones and could cause cashflow issues for Council in funding of the works.

Section 377 of the *Local Government Act*, 1993 allows for a Council to delegate acceptance of tenders to the General Manager. Council has already delegated acceptance of tenders up to a value of \$250,000 to the General Manager. Further delegation to extend to all subsequent tenders for the Lismore City Regional Sports Hub Oakes and Crozier Oval Project, Albert Park Redevelopment and the Lismore Flood Diversion Channel Project would be beneficial to Council for numerous reasons, including:

1. Eliminate the risk of time lost between the completion of tender assessment and tender award;
2. Mitigate the risk of non-compliance with deed milestones;
3. Ensure cash is available through income from the various grant programs to fund the projects; and
4. Facilitate expedited construction to the benefit of the community and relationships with both contractors and funding agencies.

Lismore City Council
Meeting held 10 March 2020 - Major Grant Funded Projects - Procurement

2

Report

Comments**Finance**

Finance supports the recommendations of the report.

Public consultation

Not required.

Attachment/s

There are no attachments for this report.

Report

Subject	Councillors Expenses and Facilities Policy - July 2021 to December 2021 Reporting
TRIM Record No	BP21/971:EF19/668-03
Prepared by	Executive Assistant - General Manager and Mayor & Councillors
Reason	To satisfy the six monthly reporting requirement of the Councillors Expenses and Facilities Policy
Strategic Theme	Leadership and participation
Strategy	Our decisions and actions are open, transparent, effective and in the interests of all.
Action	Manage Council meetings and provide support to Councillors in fulfilling their role.

Executive Summary

The Councillors Expenses and Facilities Policy was adopted by Council in September 2017.

The policy requires a six monthly report to Council on the provision of expenses and facilities to councillors including a summary of expenses for each Councillors.

The period covered by this report is from 1 July 2021 to 31 December 2021.

The adopted report will be published on the Council's website.

Recommendation

That Council receive and note the report.

Background

Policy 1.2.23 – Councillors Expenses and Facilities was adopted by Council in September 2017. The policy sets requirements for reporting back to Council on a six monthly basis. In particular, Clause 15 Reporting states:-

15.1. Council will report on the provision of expenses and facilities to Councillors as required in the Act and Regulations.

15.2. Detailed reports on the provision of expenses and facilities to Councillors will be publicly tabled at a Council meeting every six months and published in full on Council's website. These reports will include expenditure summarised for each Councillor.

Attachment/s

1. [Councillor expenses worksheet 2020-21 July-Dec](#)

	Office Equipment and Facilities	Telephone calls	Conferences & Seminars	Training and Professional Development	Interstate Visits	Overseas Visits	Expenses for spouse	Child care
Bird	-	120.00	-	-	-	-	-	-
Casson	-	-	-	-	-	-	-	-
Cook	-	-	-	-	-	-	-	-
Ekins	-	195.00	-	-	-	-	-	-
Guise	-	120.00	-	-	-	-	-	-
Lloyd	-	-	-	-	-	-	-	1,450.00
Marks	-	240.00	-	-	-	-	-	-
Moorhouse	-	-	-	-	-	-	-	-
Non-specific	-	-	-	-	-	-	-	-
Total	-	675.00	-	-	-	-	-	1,450.00

Committee Recommendations



Committee Recommendation

Traffic Advisory Committee Minutes - Meetings of 24 November 2021 and 19 January 2022

Recommendation

That the minutes be received and adopted and the recommendations contained therein be adopted.

Attachment/s

1. [↓](#) Traffic Advisory Committee Minutes - Meeting of 24 November 2021
2. [↓](#) Traffic Advisory Committee Minutes - Meeting of 19 January 2022

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE MEETING HELD IN THE COUNCIL CHAMBERS, CORPORATE CENTRE, 43 OLIVER AVENUE, GOONELLABAH ON WEDNESDAY, 24 NOVEMBER 2021 AT 10.00AM.

Please note: These minutes are subject to confirmation at the next Council meeting.

Present

Councillor Bill Moorhouse (Chairperson), Caleisse Dunston, Greg Aitken (Transport for NSW), Peter Ellem (on behalf of Janelle Saffin, MP) and Sgt Clint Williams (Lismore Police).

In Attendance

Barry Goodwin (Design Services Engineer) and Vicki Lollback (minutes).

Apologies

An apology for non-attendance were received on behalf of Janelle Saffin, MP (Member for Lismore).

Confirmation of Minutes

TAC96/21 The Committee was advised that the Traffic Advisory Committee minutes of 20 October 2021 were received and adopted by Council at its ordinary meeting of 9 November 2021.

Disclosure of Interest

Nil.

Part 'A' – Committee Recommendations

4.1 Request for 2P Parking - 55 McKenzie Street, Lismore

Request received from business owner of 55 McKenzie Street for consideration of introducing a 2P parking restricted zone adjacent to her hairdressing business due to long term onstreet parking of vehicles and the impact on available parking for clients.

The writer claims that parking spaces are being used for long term parking by hospital staff avoiding the Lismore Base Hospital Parking Precinct, thereby reducing onstreet parking spaces for her clients. The site is located south of the Lismore Base Hospital and outside the Lismore Base Hospital Parking Precinct.

McKenzie Street is a two way undivided local street under Council's road hierarchy with a nominal sealed width of 7m. The road reserve is 30.175m wide which allows for onstreet angle parking on the northern side within the 10P Parking Zone.

There is an existing sealed parking area adjacent to the hairdressing business, which is not signposted and therefore technically vehicles are required to be parked parallel to the kerb and gutter. Parallel parking allows for approximately two car spaces; angle parking would

provide three to four spaces. A plan of the Lismore Base Hospital Regulated Parking Precinct confirms that this area is just outside of the regulated parking zone and thereby unrestricted. Site inspections indicate that vehicles are being parked on the grass verge in Hunter Street south of McKenzie Street.

2012 traffic counts indicate approximately 530 ADT (Average Daily Traffic) movements.

There is availability for two off-street parking spaces for the business owner and staff in the property's driveway access. Would need to line-mark driveway access to deter vehicles blocking access. Make submission to review of Base Hospital Parking Precinct Coordinator drawing attention to overflow of hospital staff parking in residential areas outside the parking precinct and impact on local businesses and residents.

TAC97/21 **RECOMMENDED** that:

1. A 4P zone be installed adjacent to 55 McKenzie Street, Lismore.
2. The area be designated as Angle Parking Rear to Kerb – Max 6.0m Length.
3. The impact on local businesses and residents caused by the overflow of hospital staff parking outside the parking precinct be factored into the Lismore Base Hospital Parking Precinct review.

Voting for: Councillor Bill Moorhouse, Calesse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

4.2 Changes to Parking - Bounty Street, Lismore

Request received from Council's Design Services Team for the Traffic Advisory Committee to consider proposed parking layout changes and infrastructure changes in Bounty Street.

The Traffic Advisory Committee was asked to consider various options to modify the parking layout in Bounty Street, between Molesworth Street east for the full length of the street. The intention is to maximise parking spaces within Bounty Street as part of the planned road reconstruction, with consideration to planned infrastructure and traffic changes within the adjoining streets associated with the proposed traffic signals installation at the intersection of Molesworth Street and Ballina Road (HW60).

The proposed changes will also complement the Lismore Pedestrian Spine connection between the City Hall and Heritage Park precinct and provide a community event precinct.

Council has received funding for the reconstruction of Bounty Street under the 2022-23 Fixing Local Roads Funding Program with construction planned to start in May 2022.

Bounty Street is classified as a local access road under Council's road hierarchy and provides connectivity for service vehicles to various major commercial premises in Keen Street and Molesworth Street.

The draft parking layouts have also considered suitable parking layouts to accommodate regular events at the City Hall and provide pedestrian refuges and kerb blisters to afford safer pedestrian movements across the existing wide street, which is a two-way dual lanes undivided, sealed road approximately 22m wide and runs east-west through the intersection to a cul-de-sac at the eastern end.

Traffic data recorded in 2012 indicates that approximately 900 ADT (Average Daily Traffic) movements, including 6% heavy vehicles, use Bounty Street. The size of heavy vehicles has been considered with these options for manoeuvrability at the intersection of Bounty Street and Carrington Street.

There is currently a mixture of various parking arrangements in Bounty Street comprising 90 parking spaces, including two accessible parks near the City Hall entrance, ranging from unrestricted timed parking, 2P and 3P.

The draft concept plan layout provides:

- Northern Side – West of Carrington Street - Parallel parking 2P - 9 spaces
- Northern Side – East of Carrington Street - Angle parking 2P - 7 spaces
- Accessible Parking Spaces – 1 (parallel) on northern side near Blood Donor Centre
- Southern Side – West of Carrington Street - Angle parking 3P - 8 spaces
- Northern Side – East of Carrington Street - Angle parking unrestricted - 14 spaces
- Accessible Parking Spaces – 4 (parallel) on southern side near main entrance to City Hall
- Centre Parking – West of Carrington Street 2P - 24 spaces
- Centre Parking – East of Carrington Street 2P - 25 spaces
- Approximate number of parking spaces – 92.

Whilst there is minimal increase in parking, the benefits with the proposed layout allows for:

- ✓ Safer and reduced pedestrian travel times
- ✓ Inclusion of pedestrian refuges, provides safer crossing routes
- ✓ Addition of three Accessible parking spaces within the precinct

Note: Increased landscaped areas account for approximately four parking spaces.

Council staff will undertake community engagement with stakeholders to ensure business' operational needs are considered as part of the design process, starting with the Access and Inclusion Advisory Group meeting on 24 November 2021.

TAC98/21 **RECOMMENDED** that:

1. Council adopt the proposed design parking plan for Bounty Street as part of the proposed road reconstruction project.
2. 4P parking zones be implemented on both sides of Bounty Street as well as proposed centre parking.
3. Unrestricted general public parallel parking zone be installed on the eastern side of Molesworth Street between Bounty Street and Ballina Road.
4. Council's Design Services Team investigate options for a suitable parking area for RVs and vehicles towing caravans in the vicinity of the visitor information centre and submit results to a future Committee meeting for further discussion.

Voting for: Councillor Bill Moorhouse, Calesse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

4.3 Changes to Parking - Union Street, South Lismore

Request received from Council's Design Services Team for the Committee to consider proposed parking changes in Union Street, between Casino Street and Kyogle Street, as part of future road reconstruction works.

The proposed changes are dependent upon a successful grant application to reconstruct this section of Union Street, and include:

- Installation of a pedestrian refuge approximately opposite 109 Union Street to provide a secondary safer crossing location
- Conversion of parallel parking to angle parking (rear to kerb) in the area adjacent to the "Train Station" parking area.

The benefits include:

- ✓ Consistent parking on both sides (angle parking) and potential increase of five parking spaces within the precinct
- ✓ The cost of the works can be included within project costs
- ✓ Provides an additional safe crossing location for pedestrians.

Union Street is classified as an urban arterial road under Council's road hierarchy. It is a two-way dual lanes undivided, sealed road approximately 23m wide and includes travel lanes and

onstreet parking, angle parking on the north-western side and parallel parking on the eastern site.

Data (2016) indicates traffic volumes of 7,000 vehicles per day (ADT) including 7.3% heavy vehicle component.

TAC99/21 **RECOMMENDED** that:

1. Council accept in principle the draft design plans for the section of Union Street, South Lismore, between Casino Street and Kyogle Street, incorporating:
 - a) Installation of a pedestrian refuge located approximately opposite 109 Union Street to provide a secondary safer crossing location.
 - b) Conversion of the current parallel parking zone adjacent to the former railway station to angle parking (rear to kerb).
2. Future pedestrian facilities for crossing Union Street along the rail corridor to the former railway station be factored into the design plans as part of the proposed rail trail project.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

Part 'B' – Determined by Committee

4.4 Traffic Safety Issues - Hindmarsh Street, Lismore

Request received from a local resident drawing attention to traffic safety issues in Hindmarsh Street, and seeking additional signage.

The issues raised include:

- Drivers travelling the wrong way along Hindmarsh Street (one-way controlled road northbound);
- Speeding vehicles
- A request for signage to be installed to be aware of pedestrians.

Hindmarsh Street is a classified local access road under Council's road hierarchy. It is a single lane undivided, sealed road approximately 6.2m wide and runs north connecting High Street to the south and Bangalow Road HW62 to the north, with two lanes created at its intersection with Bangalow Road. There is a small access road to High Street (west) just over the crest which provides access to 10 residential dwellings including a service truck pick-up/drop off area for St Carthage's Primary School.

Historic traffic data indicates approximately 1,400 vehicles ADT, including 42% heavy vehicles, with 85% of traffic speed being 51 kph. There has been one recorded accident between 2015-2020; the result of a night time 'run off road into object' incident resulting in moderate injury.

TAC100/21 **AGREED** that:

1. Traffic signage and line-marking be upgraded on Hindmarsh Street at its intersection with Brunswick Street to deter drivers entering the one-way section.
2. Traffic counters be installed for this section of Hindmarsh Street to capture current traffic data with the results to be submitted to a future meeting for discussion.
3. The Local Area Command be asked to carry out patrols in the area and monitor driver behaviour.
4. The writer be advised of the Committee's determination.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem

Voting against: Nil.

4.5 Traffic Safety Issues - Corndale Road, Corndale (Give Way Sign)

Request received from a local resident for additional signage to be installed on the approaches to Ewing Bridge over Coopers Creek on Corndale Road, to improve driver safety.

The bridge is located approximately 300m north of James Gibson Road. The bridge is currently governed by a Give Way sign (northbound), which gives southbound traffic priority. The writer has requested additional signage to be installed.

Corndale Road is a primary collector road under Council's road hierarchy. It is a two-way dual lanes undivided, sealed road, approximately 7m wide and provides connectivity between several rural villages to the Bruxner Highway HW62. The area is a rural setting with Corndale Hall located approximately 40m south of Ewing Bridge, where regular events are held.

Traffic Data (2013) indicates Average Daily Traffic of 860 vehicles, which includes several daily school bus services and moderate heavy vehicle traffic.

A sight inspection indicated the existence of an advance warning sign to indicate a Give Way sign ahead; a One Lane Bridge and Give Way sign on the southern approach to the bridge. The line marking requires some repainting, but essentially complies with AS1742.2. There is also a Caution Uneven Surface sign on the southern approach. On the northern approach there is an advance warning sign for One Lane Bridge and a repeat sign at the bridge.

In regard to TfNSW Technical Reference and its application for this site, the greater sight distance is available from the northern approach as a result of a flatter geometric curve on approach. This complies with recommendations that the faster approaching vehicle be granted the priority within this standard. The southern approach has reduced sight distance and the geometric alignment would provide a slower approach for drivers from that direction.

There have been two recorded accidents in the period 2015-2020; both on the southern approach to the bridge. Both accidents resulted in serious and minor injury and both were 'run off road' incidents. Historical accident data (2000-2020) indicates an additional five accidents have occurred on the bridge.

Funding has been sought under the 2022-23 Safer Roads Program for the upgrade of this section of Corndale Road.

TAC101/21 **AGREED** that:

1. A submission be made to Transport for NSW for co-funding towards a refresh of Ewing Bridge on Corndale Road, to include:
 - a. Line-marking upgrade to both bridge approaches using reflective paint to alert drivers of the narrowing road width
 - b. Updating of bridge signage, reflectors and guard-rail ends.
2. The writer be advised of the Committee's determination.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

Items for Discussion

5.1 Miscellaneous Items - Site Inspections

5.1.1 Dawson Street, Lismore – Pedestrian Crossing

Reference TAC87/21 – Meeting of 18 August 2021

It was previously agreed that TfNSW be asked to conduct a site inspection with Council to discuss the design of pedestrian facilities and line marking for the potential upgrade of the formal pedestrian crossing on Dawson Street (B62), south of the Uralba Street and Woodlark Street intersection.

TAC102/21 **AGREED** that:

1. Transport for NSW (TfNSW) will investigate and provide improvements to the existing pedestrian crossing on Dawson Street (B62), south of the Uralba Street and Woodlark Street intersection.
2. TfNSW to liaise with Council's Design Services Officer for Council to develop the design plans.

5.1.2 Keen Street – Formalise Parking Issues

Reference TAC79/21 – Meeting of 18 August 2021

At the August 2021 meeting the Committee had recommended that the existing parking zones on Keen Street, between Zadoc Street and Orion Street, be reviewed and discussed at a future meeting.

TAC103/21 **AGREED** that:

1. The existing unrestricted parking zone on Keen Street be converted to 2P Angle Parking – Rear to Kerb, from the Zadoc Street intersection north to the western boundary of 19 Keen Street.

5.1.3 Kadina Street – Pedestrian Safety Issues

Reference TAC86/21 – Meeting of 18 August 2021

Transport for NSW, Traffic Committee delegates and Lismore City Council staff met with Kadina High School representatives onsite to discuss the issues.

TAC104/21 **AGREED** that Council's Design Services Team develop a cost estimate and concept plan for proposed pedestrian upgrade facilities outside Kadina High School and submit to Transport for NSW for grant funding.

5.1.4 Request for One-Way Traffic Movements – Unnamed Lane between Esmonde Street and Esyth Street, East Lismore

Reference TAC93/21 – Meeting of 20 October 2021

The Committee noted that investigations to date indicated one-way direction traffic movements be southbound due to safer access onto Esmonde Street and the Wyrallah Road roundabout. However, comments from Council's Waste Collections Team were still to be received about the proposed change.

TAC105/21 **AGREED** that this matter be deferred to a future meeting pending feedback from Council's Waste Collections Team.

5.1.5 Request for Speed Humps – Military Road, East Lismore

Reference TAC95/21 – Meeting of 20 October 2021

The Committee previously agreed that the installation of speed humps on Military Road not be supported.

TAC106/21 **AGREED** that:

1. Speeding vehicles is a matter for NSW Police to manage and undertake speed patrols of the Military Road area.
2. Council staff investigate future funding opportunities for traffic calming devices on Military Road, East Lismore.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem

Voting against: Nil.

5.2 Miscellaneous Traffic Issues - Raised by Janelle Saffin, MP

5.2.1 Speeding Issues – Koonorigan Road, Koonorigan

Representations on behalf of a local resident regarding drivers not observing the speed zones on Koonorigan Road. The speed zone was recently reduced to 60 kph (September 2021) following a speed zone review undertaken by Transport for NSW.

TAC107/21 **AGREED** that traffic counters be installed on Koonorigan Road, with results to be provided to the Committee for further consideration.

5.2.2 Speeding Issues - Ballina Road, Goonellabah – Vicinity of Invercauld Road

Representations on behalf of two Goonellabah residents in relation to heavy vehicles exceeding the speed limit on Ballina Road (B60) in the vicinity of Invercauld Road, and using compression brakes. NSW Police has been requested to install a permanent or mobile speed camera.

TAC108/21 **AGREED** that Transport for NSW representatives submit a request for the installation of a mobile speed camera on Ballina Road (B60) in the vicinity of Invercauld Road.

5.2.3 Intersection Ballina Road (B60) and Sunrise Crescent

The Committee noted an outstanding request submitted by Council to Transport for NSW (TfNSW) in relation to the Ballina Road and Sunrise Crescent intersection shape correction works on “Chicken Corner”. Council’s Design Services Team provided a survey and preliminary design to TfNSW on 18 August 2021 as agreed to and in accordance with Traffic Advisory Committee recommendation TAC84/21.

Council has not received feedback to progress the design or an indication that TfNSW will fund any works at this site. A 45kph advisory warning sign has been installed to alert drivers to reduce speed to negotiate the curve.

TAC109/21 **AGREED** that Transport for NSW representatives will follow up on the proposed design plans for the intersection of Ballina Road (B60) and Sunrise Crescent, Goonellabah.

5.2.4 Intersection Safety Issues - Intersection Bruxner Highway (B60) and Richmond Hill Road

Janelle Saffin’s office has raised the issue of traffic safety at the intersection of Bruxner Highway and Richmond Hill Road, including a request for a speed reduction to 60 kph. Traffic accident data (2015-2020) indicates three accidents have occurred at this intersection.

TAC110/21 **NOTED** that Transport for NSW proposes to undertake a road safety audit, including traffic modelling, for this section of the Bruxner Highway, which includes the Richmond Hill Road intersection; also that the audit has been delayed due to the Covid-19 pandemic and consequent impact on recording true representations of traffic movements.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

5.3 NSW Police Onstreet Parking - Molesworth Street, Lismore CBD

TAC111/21 **AGREED** that NSW Police will make submission to a future Traffic Advisory Committee meeting.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

5.4 Main Street, Clunes (B62) – Road Safety Issue south of James Gibson Road Intersection

It was reported that the Old Shed and Gardens Centre at Clunes commenced selling coffee in October 2021, situated on Main Street south of the James Gibson Road intersection and adjacent to a formal Bus zone and informal bus interchange. The property is located within the Byron Shire Council LGA but the business has road frontage to Main Street (B62) within the Lismore City Council LGA.

The sale of coffee is creating traffic disruption caused by drivers, including trades vehicles with trailers, stopping for coffee early mornings at the same time as school children are queuing for buses at the adjacent Bus zone. The ingress/ egress of vehicles also conflicts with available space for buses to enter/exit the Bus zone. Future agenda item for TAC members to inspect traffic arrangements at this location as well as other traffic related issues in the Clunes Village.

TAC112/21 **AGREED** that:

1. The road safety issue on the eastern side of Main Street, Clunes, south of the James Gibson Road intersection, caused by the change in business at the Old Shed and Gardens Centre, be included on a future meeting agenda.
2. An onsite inspection of this location as well as other sites with known traffic/ pedestrian related issues in the Clunes Village be arranged for Traffic Advisory Committee members.

Voting for: Councillor Bill Moorhouse, Caleisse Dunston, Sgt Clint Williams and Peter Ellem
Voting against: Nil.

Update from TfNSW Representatives

The Committee noted the following advice by Greg Aitken:

- Bridge Approach Sign on Union Street at Hollingworth Creek Bridge, South Lismore - Upgraded traffic merge signage to be installed shortly by TfNSW.
- Intersection of Bangalow Road and James Gibson Road, Clunes - Intersection upgrade signage to be installed.

Acknowledgement of Chairperson, Cr Bill Moorhouse

Peter Ellem expressed appreciation to Cr Bill Moorhouse on behalf of Janelle Saffin, MP, for his service to the Traffic Advisory Committee over many years, both while employed by Council and during his term as Councillor. Greg Aitken also conveyed TfNSW appreciation for his chairmanship and extended best wishes for the future.

Closure

This concluded the business and the meeting terminated at 12.05pm.

MINUTES OF THE TRAFFIC ADVISORY COMMITTEE MEETING HELD IN THE COUNCIL CHAMBERS, CORPORATE CENTRE, 43 OLIVER AVENUE, GOONELLABAH ON WEDNESDAY, 19 JANUARY 2022 AT 10.00AM

Please note: These minutes are subject to confirmation at the next Council meeting.

Present

Cr Jeri Hall (Chairperson), Caleisse Dunston, Greg Aitken (Transport for NSW), Janelle Saffin (MP) and Sgt Clint Williams (Lismore Police).

In Attendance

Mayor Steve Krieg, Cr Big Rob, Cr Andrew Gordon, Cr Electra Jensen, Scott Turner (Acting Director Infrastructure Services), Barry Goodwin (Design Services Engineer) and Maddison Spencer (minutes).

Apologies

Nil.

Confirmation of Minutes

TAC1/22 The Committee was advised that the Traffic Advisory Committee minutes of 24 November 2021 will be submitted for consideration by Council at its meeting of 8 February 2022.

Disclosure of Interest

Nil.

Part 'A' – Committee Recommendations

4.1 Request for Accessible Parking - 44 Uralba Street, Lismore

Request received from a representative of the Seventh Day Adventist Church, 44 Uralba Street, for the installation of one accessible car park adjacent to the Church.

Uralba Street is classified as an urban arterial road under Council's road hierarchy. It is a two-way dual lanes undivided, sealed road approximately 22m wide and includes travel lanes and on street angle parking. It is located within the Lismore Base Hospital Parking Precinct and currently restricted to 4P angle parking on week days.

Traffic data (2018) indicates traffic volumes of 11,500 vehicles per day (ADT) including 14.7% heavy vehicle component.

The Church has been in operation since the 1970s where requirements to provide accessible parking were not required.

The Committee was advised Council's Regulatory Services Coordinator had raised no objection in principle, and was not aware of any recent reviews of locations and number of accessibility parking spaces within the CBD and the hospital precinct as to be complying with the appropriate standard. It would be preferable to determine the number of spaces required and then ensure they are strategically located to meet the demands of the precinct as part of any consideration.

TAC2/22 **RECOMMENDED** that:

1. Council support the request for the installation of one accessible car park in front of the Seventh Day Adventist Church at 44 Magellan Street, Lismore.
2. Council's Design Services team prepare a concept plan for a pedestrian centre refuge including kerb blisters, and provide a submission to TfNSW for funding.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

Items for Discussion

5.4 Request for Change to Parking Restrictions Opposite Police Station - Molesworth Street, Lismore

Request received from NSW Police for the parking spaces located opposite 40 Molesworth Street, to be converted to unrestricted parking to allow NSW Police staff long term parking for safety.

This matter has been partly raised previously in conjunction with a request considered by the Committee and Council in October 2020 (refer TAC67/20). NSW Police had requested a follow up discussion.

The previous decision was dependent upon a CBD Traffic Study being conducted, which has not been undertaken to date.

TAC3/22 **RECOMMENDED** that:

1. Council provide in principle support for dedicated onstreet Police parking, inclusive of Corrective Services, located opposite 40 Molesworth Street, Lismore.
2. Council's Design Services team create a functionality plan (incorporating permits and consultation with Council's Compliance Team), and submit to a future Traffic advisory Committee meeting for further discussion.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

5.5 Pedestrian Crossing and Proposed Parking Changes - Magellan Street, Lismore CBD

Request for the Committee to review the proposal for a formal pedestrian crossing and proposed parking changes in Magellan Street, Lismore CBD and crossing location at the intersection of Magellan Street and Keen Street.

The matter was raised in April 2021 for changes to the Loading zone and several other items were subsequently raised following a site meeting by Traffic Committee Members - refer Minute TAC 42/21), including:

1. Provision of a safer crossing location for pedestrians in the form of a formal pedestrian crossing, west of the intersection
2. Consideration of relocating the existing Accessible park (discussed at the Access and Inclusion Group meeting in July 2021 and not supported)
3. Relocation of the existing Loading zone west to approximately 75 Magellan Street, prior to formal community consultation.

Funding has been offered by Transport for NSW under the Safety Minor Works Funding program.

TAC4/22 **RECOMMENDED** that:

1. Council's Design Services Team prepare a design plan for Magellan Street, Lismore, west of the Keen Street intersection, to include:
 - The installation of a formalised pedestrian crossing and pedestrian safety treatments
 - Relocation of the existing Loading zone west to approximately 75 Magellan Street.
2. Consultation be undertaken with affected businesses and community members.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.

Voting against: Nil.

Late Item

5.6 No Stopping Zone – Laurel Avenue, Lismore

Request received from a representative of Northern NSW Health District for the relocation of a No Stopping sign in front of 147 Laurel Avenue to allow an additional small car parking space as part of the Lismore Base Hospital Parking Precinct.

The signage was originally installed as part of the Lismore Base Hospital Parking Precinct plan to provide a buffer between the large fig trees and onstreet parking zones.

TAC5/22 **RECOMMENDED** that Council support the request in principle to relocate the No Stopping zone sign in front of 147 Laurel Avenue, subject to a site inspection of Laurel Avenue on 16 February 2022 to identify similar situations.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.

Voting against: Nil.

Part 'B' – Determined by Committee

4.2 Traffic Safety Issues - 18 Beaumont Drive, East Lismore

Request received from a resident of Beaumont Drive in relation to several traffic safety issues, and requesting the Committee to consider the installation of signage and road humps.

The writer is a family day care educator operating a childcare business at 18 Beaumont Drive and has identified traffic safety issues for the children due to speeding vehicles.

Beaumont Drive is a local access under Council's road hierarchy and connects with both Barham Street and City View Drive/ Wyrallah Road to access Lismore facilities. It is a two way 9m wide carriageway which allows for onstreet parking. There is currently BB line marking around the curve to delineate travel lanes. It is the only access to several streets in this subdivision which houses approximately 125 dwellings.

There is no recorded traffic data for Beaumont Drive. However, Barham Street data (2013) indicates an average daily traffic (ADT) of 1,860 vehicles per day. It is expected that traffic volumes would be in vicinity of 800 vehicles per day, including regular bus services.

Beaumont Drive is on a steep grade at the location of No. 18, with a slope of approximately 15.4% to the west of the driveway and 10.4% to the east. Access to the property is also steep and does not provide a section for vehicles egressing the property to prop and observe approaching traffic which would be exacerbated if there are vehicles parked adjacent to No. 18's access driveway.

NSW Parking Rules allow vehicles to park adjacent to driveways providing they do not block access.

The installation of speed humps can sometimes have a detrimental effect to the surrounding neighbourhood and as listed in *Austrroads Part 8 Local Area traffic Management*, there are some impacts which need to be considered. The installation of speed humps will also include loss of on street parking in the vicinity of the speed hump and generally residents do not like the loss of parking adjacent to their residence.

TAC6/22 **AGREED** that:

1. Council's Design Services Team install traffic counters along Beaumont Drive, East Lismore, to determine vehicle speeds and report to a future meeting.
2. The writer be advised of the outcome.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.

Voting against: Nil.

4.3 Request for Parking Changes - 133 Molesworth Street, Lismore CBD

Request received from Council's Property Team in relation to formalising a driveway and installation of No Stopping zone outside 133 Molesworth Street and adjacent to the Lismore Transit Centre.

Council's Property Team is in negotiations for the potential lease of the site, which is located within the Lismore CBD between the Fire Station and Transit Centre.

Parking on the western side of Molesworth Street is currently zoned as a full-time Bus zone, which caters for four to five buses queuing at peak times. This Bus zone has high bus occupancy at several times of the day, and overflow buses are required to use the Bus zone south of the Fire Station.

There is no formal dish crossing providing access to the site off Molesworth Street.

Molesworth Street is classified as a primary collector road under Council's road hierarchy. It is a two-way dual lanes road divided by centre parking, approximately 23m wide and includes travel lanes and on street parking, parallel on the side and centre parking.

Traffic data (2016) indicates traffic volumes of 5,700 vehicles per day (ADT) including 4% heavy vehicle component.

It is one of the primary roads connecting Ballina Road (B60) to the Lismore CBD and it is therefore recommended that a wider driveway be installed to allow drivers quicker access so as not to delay through traffic or present a traffic hazard through rear end vehicle impacts.

NR Buslines has suggested the area proposed for a wide driveway be allocated as a Bus zone between the hours of 8.30am-9am and 3pm-5pm.

TAC7/22 **AGREED** that:

1. Council's Design Services Team undertake further investigations regarding issues surrounding the Lismore Fire Station, convex mirror installation, speed humps and pedestrian/ driver warning signage.
2. Council's Design Services Team prepare a concept plan and refer back to a future meeting.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.

Voting against: Nil.

4.4 Review of Formal Pedestrian Crossing - 154 Dibbs Street, East Lismore

Request received from Council's Assets Team about need to retain the existing formalised pedestrian crossing adjacent to 154 Dibbs Street .

The issue has been raised by an East Lismore resident in relation to the recently installed lighting upgrades that are creating issues. This part of the matter is being managed by Council's Assets Team and Essential Energy.

The Committee has been requested to consider the need to retain the formal pedestrian crossing as the Our Lady of Lourdes Primary School has been closed for several years. The site is owned by the Roman Catholic Church and feedback has been sought from the owners regarding potential future use of the site.

Formalised pedestrian crossings are managed by the Transport for NSW and essentially are required to meet warrants based on pedestrian usage of the crossing compared to vehicle traffic per hour. The warrant would have met the criteria whilst the school was in operation, based on AS1742.10 Section 6.3. Recent technical directions for the installation of formalised pedestrian crossings have been received from Transport for NSW, stating that Councils do not need to comply with the P,V and PV Values specified in the Supplement AS1742.10. Instead, Councils should start with their movement and place vision or aspirations for a street or area and work from there.

Dibbs Street is a local collector road with a nominal 10m wide carriageway, including onstreet parking. It is a primary link between Ballina Road (B60) south to East Lismore. Traffic count data (2013) indicates average daily traffic (ADT) of approximately 4,350 vehicles including 4% heavy vehicles. It provides access for daily school bus services.

The area is a relatively high recreational walking route in a residential area, providing footpath connectivity to the Wyrallah Road Shopping Village to the north-west via Avondale Avenue, several small shops in Dalley Street to the south and east to the Rivers Secondary College (Lismore High Campus). There is an aged persons complex south of the existing crossing with residents utilising the pedestrian crossing to the Bus zone located on the eastern side of Dibbs Street.

A pedestrian refuge has been installed at the intersection of Dibbs Street and Dalley Street in recent times.

TAC8/22 **AGREED** that:

1. The formal pedestrian crossing adjacent to 154 Dibbs Street, East Lismore, be retained.
2. Council's Assets team be advised of the outcome.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

4.5 Traffic Guidance Scheme - Samson Challenge Event

Request received for approval of Traffic Guidance Scheme for traffic management of the annual Lismore Samson Fitness Challenge planned for 4-5 March 2022.

This will be 12th annual event with proceeds supporting *Our Kids*, a local charity which raises money for the Lismore Base Hospital, Women's Care Unit and the A&E Department including surrounding hospitals.

Whilst the majority of the event will be held at Hepburn Park, Oliver Avenue, Goonellabah, there will be a run and swim leg which will require participants to run along the northern side of Oliver Avenue to and from the Goonellabah Sports and Aquatic Centre.

The event has been adjusted to suit current Covid-19 restrictions with the organisers responsible for the management of rules during the event. The event has been held for a number of years at this location and is very well organised and managed. There are no known issues that have arisen as a result of the event.

TAC9/22 **AGREED** that:

1. The Committee endorse the proposal to hold the annual Lismore Samson Fitness Challenge planned for 4-5 March 2022, and approve the Traffic Guidance Scheme.

2. The organisers gain relevant approvals and advise Emergency Services and NSW Police.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

4.6 Request for Convex Mirror - 526 Terania Creek Road, Terania Creek

Request received from resident of 526 Terania Creek Road for the installation of a convex mirror near their driveway to assist with egressing property.

Terania Creek Road is classified as a local rural road under Council's road hierarchy. It is a two-way dual lanes undivided, sealed road approximately 6.0m wide. The site is located about 4.5km north of The Channon Village on a tight hairpin curve with a curve radius of approximately 20m. The typical curve horizontal geometry preceding and departing from the site has an approximate radius of 180m.

The speed zone is 80 kph and there have been no recorded accidents at this site between 2000 to 2021. Traffic data (2010) indicates traffic volumes of 230 vehicles per day (ADT) including 3.2% heavy vehicle component.

TAC10/22 **AGREED** that:

1. The writer be advised Council does not support the request for the installation of a convex mirror near the driveway access to 526 Terania Creek Road.
2. Council's Design Services Team investigate potential engineering solutions for visibility issues at No. 526.
3. Council's Civic Services Service be requested to undertake vegetation clearing along Terania Creek Road to improve visibility. (*CRM 22/602 - Request for maintenance*)
4. Council's Design Services Team undertake a road signage audit for Terania Creek Road.
5. Council's Design Services Team be requested to install Concealed Driveway signage to relevant signage installation Standards for both approaches to the driveway access for No. 526 (*CRM 22/605 - Request for Concealed Driveways Signage*).

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

Items for Discussion

5.1 Changes to Loading Zone Provisions

Council has received updated information in relation to Loading zone provisions in New South Wales, with the major change relating to, and effective from 1 September 2021, was to allow **All** goods vehicles to use a Loading zone for up to 30 minutes.

Previously, station wagons were limited to a maximum of 15 minutes.

TAC11/22 **AGREED** that the Committee note recent changes to Loading zone provisions.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

5.2 Miscellaneous Traffic Issues - Raised by Janelle Saffin, Local MP

5.2.1 Matter raised by J Frare regarding Bus Zone, Heritage Park

A local bus operator has raised concerns in relation to the loss of Bus zone parking planned in conjunction with the proposed traffic signals at the intersection of Ballina Road (B60) and Molesworth Street.

TAC12/22

Lismore City Council

Meeting held 8 February 2022 - Traffic Advisory Committee Minutes - Meetings of 24 November 2021 and 19 January 2022

AGREED that Janelle Saffin, MP would verify the constituent's enquiry and refer to a future meeting.

5.2.2 Letter received from L Vos, Tunttable Falls

TAC13/22 A letter has been received from a student of the Tunttable Falls Community School in relation to road conditions and submitted to the Committee.

AGREED that the Traffic Advisory Committee will carry out a site inspection of the Tunttable Falls Community School surrounds on Wednesday, 16 February 2022 to discuss the condition of the road and road safety.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

5.3 Rainbow Road Walking Trail, Cullen Street, Nimbin - Changes to Pedestrian and Vehicular Movements

To consider options to manage pedestrian and vehicular movements associated with the Rainbow Road Walking Trail off Cullen Street, Nimbin.

Council's Open Space Assets Coordinator provided the Committee with a brief overview of the project and discussed relevant aspects with the members.

Further updates and any issues requiring the Committee's input or decision will be raised at a future meeting.

Note: Council's Design Services Team will undertake a site survey next week to allow progression of the laneway design for the shared path/ laneway zone.

TAC14/22 **AGREED** that the Committee acknowledge Council's Open Assets Coordinator's presentation and its commitment to work with Transport for NSW on the proposed design.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

Late Item

5.5 Traffic Guidance Scheme – 2022 NimbinMardi Grass Cannabis Law Reform Protest

A Traffic Guidance Scheme has been received from the organisers of this annual event. At its meeting of 17 March 2021, the Committee agreed to provide a three year approval for this event for the years 2021-2023 (refer TAC33/21).

A Traffic Guidance Scheme need only be reviewed pending changes to the TGS or changes to road infrastructure within the event precinct.

The Committee determined that a review of the TGS include consideration for the management of Hostile Vehicle Guidelines for Crowded Places.

TAC15/22 **AGREED** that:

1. The Committee endorse the Traffic Guidance Scheme as provided for the Nimbin MardiGrass Cannabis Law Reform Protest to be held on 1 May 2022 from 2.30pm-3.30pm.
2. The event organisers be required to obtain approval from relevant authorities.
3. The organisers install relevant pedestrian safety barriers as determined by NSW Police and in consideration to *Hostile Vehicle Guidelines for Crowded Places* documentation.

Voting for: Councillor Jeri Hall, Caleisse Dunston, Sgt Clint Williams and Janelle Saffin, MP.
Voting against: Nil.

Closure

This concluded the business and the meeting terminated at 11.53am.

Documents for Signing and Sealing



Document for Signing and Sealing

The following documents have been prepared in accordance with previous resolutions of the Council and/or the provisions of the *Local Government Act*, 1993 and other relevant statutes.

It is now proposed that the Council authorise the execution these documents.

Executive Summary

The purpose of this report is to notify Council of occupancy agreements that have already been substantially negotiated and may be ready for execution by the General Manager under existing delegations. This report does not recommend the Council seal be affixed to these documents as this would be inconsistent with:

- a) Council Corporate Procedure 1.1.36, which purpose is to limit use of the Council seal to documents required by law to be signed under seal; and
- b) the General Manager's delegations to grant leases and licenses at the time these agreements were negotiated.

This report recommends the following agreements be signed by the General Manager under existing delegations to avoid commercial disadvantage to Council and the proposed occupiers that could suffer if agreements were required to be reported to Council prior to being agreed.

New Agreement

Item A: AF20/1870 Option Lease to Stockpot Kitchen Pty Ltd

<i>Premises:</i>	133 Molesworth Street, Lismore and Suite 1A, 133 Molesworth Street, Lismore (being old Art Gallery Building and Café)
<i>Lessee</i>	Stockpot Kitchen Pty Ltd (ACN 617 126 548)
<i>Annual Rent</i>	\$35,632.40 (incl GST)
<i>Outgoings</i>	25% local government rates and charges; and 100% water sewerage and drainage rates and charges
<i>Term</i>	3 years (25 February 2022 – 24 February 2025)
<i>Option to Renew</i>	3 years (25 February 2025 – 24 February 2028)
<i>Permitted Use</i>	Ground floors: Café and restaurant Upstairs: Office, storage, flood evacuation and staff room associated with cafe

Recommendation

That Council note the following occupancy agreement be executed as negotiated under delegated authority by the General Manager:

- A. **Option Lease to Stockpot Kitchen Pty Ltd**, 133 Molesworth Street, Lismore and Suite 1A, 133 Molesworth Street, Lismore (being old Art Gallery Building and Café), for café and restaurant (downstairs) office, storage, flood evacuation and staff room associated with café (upstairs) (ref: AF20/1870).

Attachment/s

There are no attachments for this report.

MINUTES OF THE ORDINARY MEETING OF THE COUNCIL OF THE CITY OF LISMORE HELD IN COUNCIL CHAMBERS ON TUESDAY, 11 JANUARY 2022 AT 6PM

Please note: These minutes are subject to confirmation at the next Council meeting. Decisions recorded in the draft minutes are subject to the Council's Code of Meeting Practice in relation to rescinding decisions.

Present

Mayor, Councillor Krieg; Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Rob, together with the General Manager, Director Corporate Services, Acting Director Infrastructure Services, Director Partnerships, Planning & Engagement, Manager Finance, Manager Technology and Innovation, Technology Support Officer, Governance & Customer Service Manager and Executive Assistant to the General Manager & Mayor and Councillors.

Apologies and Leave of Absence

Nil

Confirmation of Minutes of Previous Meeting

1/22

RESOLVED that the minutes of the following meetings be confirmed:

- Ordinary Meeting held on 9 November 2021
- Confidential Meeting held on 9 November 2021

(Councillors Cook/Bird)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Hall, Jensen, Krieg and Rob

Voting against: Councillor Guise

Disclosure of Interest

Nil

Matter of Urgency

2/22 MOTION moved that the following issue be considered as a matter of urgency.

That councillors can use their own devices to access Lismore City Council's IT Network, applications and information.

(Councillor Rob)

At this time the Mayor ruled that this is a matter of urgency.

3/22 **RESOLVED** that Councillors can use their own devices to access Lismore City Council's IT network, applications and information.

(Councillors Rob/Guise)

Voting for: Councillors Bing, Colby, Guise, Hall, Jensen, Krieg and Rob

Voting against: Councillors Bird, Cook, Ekins and Gordon

Matters Arising

13.1 Planning Review Committee Review

MOTION moved that:

1. Council discontinue the Planning Review Committee; and
2. Council amend policy number 5.2.31 with policy title 'Determination of Development Applications Under Delegated Authority Policy' to increase the number of councillors required to request that an application is to be submitted to a Council meeting for consideration and determination be increased from two (2) to three (3) councillors, in order to better align with the requirement under section 372 of the *Local Government Act 1993* relating to rescinding or altering resolutions.

(Councillors Rob/Gordon)

FORESHADOWED motion moved that this review of the Planning Review Committee be deferred until the February meeting.

(Councillor Cook)

4/22 On submission to the meeting the motion was **RESOLVED** that:

1. Council discontinue the Planning Review Committee; and
2. Council amend policy number 5.2.31 with policy title 'Determination of Development Applications Under Delegated Authority Policy' to increase the number of councillors required to request that an application is to be submitted to a Council meeting for consideration and determination be increased from two (2) to three (3)

councillors, in order to better align with the requirement under section 372 of the *Local Government Act 1993* relating to rescinding or altering resolutions.

(Councillors Rob/Gordon) (BP21/801)

Voting for: Councillors Bing, Colby, Gordon, Hall, Jensen and Rob

Voting against: Councillors Bird, Cook, Ekins, Guise and Krieg

Reports of the General Manager

14.1 Election of Deputy Mayor

5/22

RESOLVED that:

1. Council appoint a Deputy Mayor.
2. the period of appointment be until September 2022.
3. the method of election be by open voting.
4. each candidate be offered the opportunity to make a short presentation prior to any election.

(Councillors Bird/Rob) (BP21/599)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

At this time the General Manager took the Chair to carry out the election of the Deputy Mayor.

Councillor Colby nominated by Councillors Bing and Jensen

Councillor Cook nominated by Councillors Ekins and Bird

Following an open vote Councillor Colby was elected as the Deputy Mayor

14.2 Delegations of Authority

6/22

RESOLVED that :

1. all previous delegations to the General Manager be revoked;
2. Council delegate to the General Manager all functions of the Council pursuant to s 377 of the *Local Government Act 1993* excluding:
 - a) those functions specified in clauses (a) to (u) of section 377(1) of the Local Government Act 1993;

- b) any function that would be inconsistent with the aims, objectives or provisions of any existing Council policy or resolution of Council;
 - c) any function where Council, by resolution, has lawfully directed that a particular matter be referred to Council for decision, in which event this delegation shall not apply to such particular matter unless and until such direction or resolution is revoked by further lawful direction or resolution;
 - d) the write-off of any debts owed to Council with a value of no more than \$5,000; and
 - e) the determination of tenders exceeding \$250,000 in value.
- 3. the General Manager take steps to ensure the conditions and limitations in paragraphs 2 a) to e) apply to functions sub-delegated to Council staff by the General Manager where appropriate;
 - 4. the General Manager circulate to councillors a list of development applications that have been lodged with Council for determination to councillors, and the General Manager informs councillors, at least every month, of development application determinations made under delegation;
 - 5. the General Manager report to councillors via City Notes the acceptance of tenders; and
 - 6. Council delegate to the Mayor the following function of Council pursuant to s 377 of the *Local Government Act 1993*:
 - * the expenditure of Council funds up to a value of \$10,000 to obtain legal advice relating to exercising the role of Mayor under s 226(n) of the *Local Government Act 1993* in reviewing the performance of the General Manager, after first consulting with councillors as required by the Act.

(Councillors Rob/Ekins) (BP21/938)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

14.3 Casual Vacancies

7/22

DEFEATED that pursuant to section 291A(1)(b) of the *Local Government Act 1993* (the Act) Lismore City Council declares that casual vacancies occurring in the office of a councillor within 18 months after the last ordinary election of councillors for the Council on 4 December 2021 are to be filled by a countback of votes cast at that election for the office in accordance with section 291A of the Act and directs the general manager to notify NSW Electoral Commission of the Council's decision within 7 days of the decision.

(Councillors Bird/Ekins) (BP21/650)

Voting for: Councillors Bird, Cook, Ekins and Guise

Voting against: Councillors Bing, Colby, Gordon, Hall, Jensen, Krieg and Rob

14.4 Council's Ordinary Meeting Schedule for 2022

MOTION moved that:

1. Ordinary Meetings of Council for 2022 to 2024 be held on the second Tuesday of the month commencing at 6:00pm from 8 February 2022 to 13 August 2024;
2. Extraordinary Meetings of Council for 2022 to 2024 be held on any weekday, except the second Tuesday of the month, commencing at 6:00pm from 12 January 2022 to 6 September 2024;
3. Council Briefings and Workshops for 2022 to 2024 be held on any weekday, except the second Tuesday of the month, commencing at 1:00pm from 9 February 2022 to 12 August 2024;
4. Council Briefings and Workshops, excluding confidential sessions, are to be live streamed and audio and visually recorded, and the recording is to be made available for on-demand public viewing through the Lismore City Council website no more than two working days after the recording is created;
5. Council Meetings, Briefings and Workshops are not to be catered for events of Council; and
6. the Order of Business for Council Meetings be altered to:

Opening of Meeting
Acknowledgement of Country
Apologies & Applications
Confirmation of Minutes
Disclosures of Interests
Public Access
Public Question Time
Mayoral Minute(s)
Notice of Motion & Question with Notice
Altering Order of Business
Reports to Council
Reports of Committees
Confidential Matters
Closing of Meeting

(Councillors Rob/Gordon)

8/22

AMENDMENT moved that Ordinary Meetings of Council for 2022 to 2024 be held on the second Tuesday of the month commencing at 6:00pm from 8 February 2022 to 13 August 2024, excluding the month of January in each year.

(Councillors Ekins/Bird) (BP21/598)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

9/22 The amendment became the motion and was **RESOLVED** that Ordinary Meetings of Council for 2022 to 2024 be held on the second Tuesday of the month commencing at 6:00pm from 8 February 2022 to 13 August 2024, excluding the month of January in each year.

(Councillors Ekins/Bird) (BP21/598)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

14.5 Committee Delegates

10/22 MOTION moved that:

1. election of delegates be undertaken at this meeting through a nomination process following the order in this report.
2. Council also determine representation for Arts Northern Rivers as the final committee in line with the supplementary report provided. That a councillor is to be the delegate for Arts Northern Rivers, with the alternate being Ashleigh Ralph, Director of the Lismore Regional Art Gallery.
3. if the number of nominations for any committee exceeds the number of vacancies an open ballot show of hands process will run. If the number of nominations does not exceed the number of vacancies, then the nominees are elected. If there are no nominations for a committee a second round of nominations will be conducted. If positions remain unfilled the committee be hibernated until the next election.
4. the Rainforest Botanic Gardens Management Committee, Public Arts Reference Group & Major Events Group be discontinued.
5. a decision on the discontinuation of the Social Justice and Crime Prevention Committee is deferred to the February meeting to allow a more detailed report to be prepared for consideration including secretariat and staffing considerations; and that as part of that report feedback is sought from previous committee members as to the value of continuing the committee.

(Councillor Bird/Ekins)

FORESHADOWED motion that:

1. election of delegates be undertaken at this meeting through a nomination process following the order in this report;
2. the Koala Implementation Group, the Business Activation Working Group, and the Social Justice & Crime Prevention Committee be included in the order for consideration;
3. Councillors may recommend new Committees and Groups to be included in the order for consideration, if supported by a majority of councillors after an open ballot show of hands process following each recommendation;

4. Council may change the number of delegates to be appointed to each Committee and Group following receipt of nominations, where permitted, using an open ballot show of hands process;
5. if the number of nominations exceeds the number of vacancies, and Council cannot or does not alter the number of delegates to be appointed, an open ballot show of hands process will run;
6. if the number of nominations does not exceed the number of vacancies, the nominees are elected;
7. if there are no nominations for a Committee or Group, a second round of nominations will be conducted;
8. if positions on a Committee or Group remain inadequately filled, the Committee or Group will be hibernated until after the next election;
9. the Rainforest Botanic Gardens Management Committee and the Public Arts Reference Group be discontinued.

(Councillor Rob)

Councillor Adam Guise left the meeting, the time being 8:37PM

Councillor Adam Guise returned to the meeting, the time being 8:38PM

11/22

RESOLVED that:

1. election of delegates be undertaken at this meeting through a nomination process following the order in this report.
2. Council also determine representation for Arts Northern Rivers as the final committee in line with the supplementary report provided. That a councillor is to be the delegate for Arts Northern Rivers, with the alternate being Ashleigh Ralph, Director of the Lismore Regional Art Gallery.
3. if the number of nominations for any committee exceeds the number of vacancies an open ballot show of hands process will run. If the number of nominations does not exceed the number of vacancies, then the nominees are elected. If there are no nominations for a committee a second round of nominations will be conducted. If positions remain unfilled the committee be hibernated until the next election.
4. the Rainforest Botanic Gardens Management Committee, Public Arts Reference Group & Major Events Group be discontinued.
5. a decision on the discontinuation of the Social Justice and Crime Prevention Committee is deferred to the February meeting to allow a more detailed report to be prepared for consideration including secretariat and staffing considerations; and that as part of that report feedback is sought from previous committee members as to the value of continuing the committee.

(Councillors Bird/Ekins) (BP21/602)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Guise, Hall and Krieg

Voting against: Councillors Gordon, Jensen and Rob

Lismore City Council Audit, Risk & Improvement Committee

Delegates Clrs Bing and Colby

Aboriginal Advisory Group

Delegates Clrs Bird, Rob, Ekins & Krieg

Access and Inclusion Advisory Group

Delegates Clr Ekins & Rob

Arts Northern Rivers

Delegates Clr Bird – staff delegate Ashleigh Ralph

District Bush Fire Management Committee

Delegates Clr Bird

General Manager's Performance Review Committee

Delegates Clrs Krieg, Colby, Gordon

Lismore Floodplain Risk Management Committee

Delegates Clrs Ekins, Jensen, Rob, Bird

Nimbin Advisory Group

Delegates Clr Krieg

NORPA Cultural Alliance Joint Steering Committee

Delegates Clrs Colby, Ekins & Hall

Northern Rivers Joint Organisation

Membership Mayor (not optional)

NSW Rural Fire Service Zone Liaison Committee

Delegates Clr Bird

Richmond River Historical Society

Delegates Clr Cook

Richmond Tweed Regional Library

Delegates Clrs Colby & Cook – alternate Clr Bird

Sister City Advisory Panel

Delegates Clrs Bing & Ekins

Traffic Advisory Group

Delegates Clr Hall

Matter of Urgency

12/22 MOTION moved that the following issue be considered as a matter of urgency.

That Council call for any final nominations and then proceed to vote to select the two representatives to represent Lismore City Council on Rous County Council.

(Councillor Rob)

At this time the Mayor ruled that this is a matter of urgency due to the timeframe involved.

13/22 **RESOLVED** that Council call for any final nominations and then proceed to vote to select the two representatives to represent Lismore City Council on Rous County Council.

(Councillors Rob/Gordon)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Gordon, Guise, Hall, Jensen, Krieg and Rob

Voting against: Nil

Councillor Adam Guise left the meeting, the time being 8:49PM

Councillor Adam Guise returned to the meeting, the time being 8:51PM

At this time the General Manager took the Chair to carry out the election of the delegates for Rous County Council.

Councillor Ekins nominated by Councillors Bird and Cook

Councillor Cook nominated by Councillors Bird and Ekins

Councillor Gordon nominated by Councillors Bing and Colby

Councillor Rob nominated by Councillors Bing and Krieg

Following a ballot Councillor Gordon and Councillor Rob were elected.

Councillor Elly Bird left the meeting, the time being 9:02PM

Councillor Elly Bird returned to the meeting, the time being 9:04PM

Councillor Big Rob left the meeting, the time being 9:18PM

Councillor Big Rob returned to the meeting, the time being 9:19PM

Councillor Elly Bird left the meeting, the time being 9:48PM

Councillor Elly Bird returned to the meeting, the time being 9:48PM

14.6 2021 Local Government NSW Special Conference

14/22

RESOLVED that Council determined the:

1. three voting delegates to the 2021 Local Government NSW Special Conference are Councillors Krieg, Jensen and Rob.
2. motions to be submitted to the 2021 Local Government NSW Special Conference are as follows -
 - Energy roadmap
 - Red fleet
 - Code of Conduct investigator reports be reviewed by independent panel

(Councillors Ekins/Bird) (BP21/755)

Voting for: Councillors Bing, Bird, Colby, Cook, Ekins, Guise, Hall, Jensen and Krieg

Voting against: Councillors Gordon and Rob

1.1 Additional Committee Delegates

This matter was integrated into item 14.5.

Closure

This concluded the business and the meeting terminated at 9.51pm.

CONFIRMED this > > 2022 at which meeting the signature herein was subscribed.

MAYOR